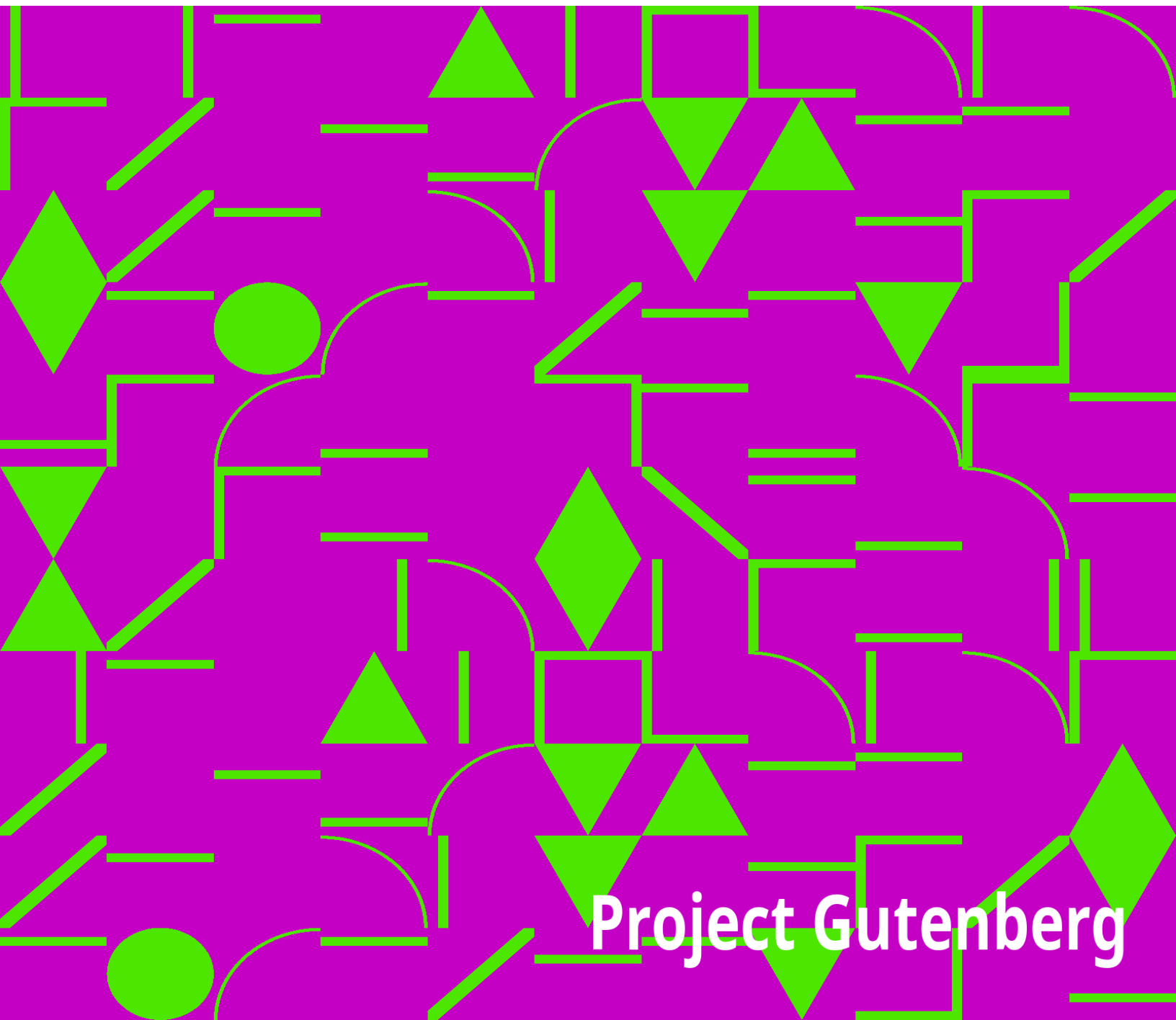


The Abolition Crusade and Its Consequences: Four Periods of American History

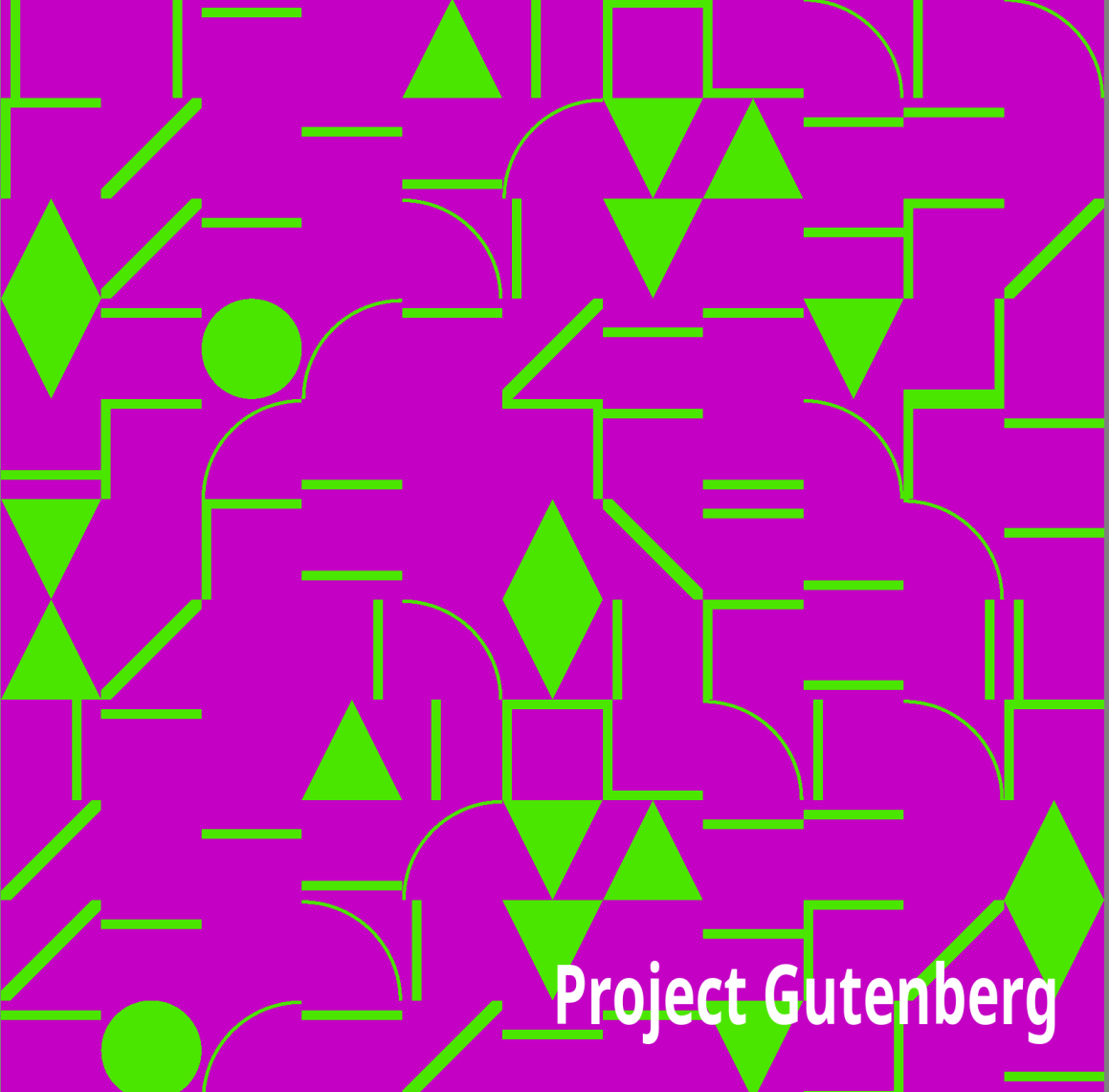
Hilary A. Herbert

An abstract geometric pattern consisting of various shapes like triangles, squares, diamonds, and circles, some solid and some outlined, in shades of blue, green, and yellow, set against a black background.

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The Abolition Crusade and Its Consequences: Four Periods of American History

Hilary A. Herbert



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THE ABOLITION CRUSADE AND ITS CONSEQUENCES

FOUR PERIODS OF AMERICAN HISTORY

BY

HILARY A. HERBERT, LL.D.

NEW YORK
CHARLES SCRIBNER'S SONS
1912

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Published April, 1912



TO MY GRANDCHILDREN
THIS LITTLE BOOK IS AFFECTIONATELY DEDICATED IN THE HOPE THAT ITS PERUSAL WILL
FOSTER IN THEM, AS CITIZENS OF THIS GREAT REPUBLIC, A DUE REGARD FOR THE
CONSTITUTION OF THEIR COUNTRY AS THE SUPREME LAW OF THE LAND

PREFATORY NOTE

BY JAMES FORD RHODES

"Livy extolled Pompey in such a panegyric that Augustus called him Pompeian, and yet this was no obstacle to their friendship." That we find in Tacitus. We may therefore picture to ourselves Augustus reading Livy's "History of the Civil Wars" (in which the historian's republican sympathies were freely expressed), and learning therefrom that there were two sides to the strife which rent Rome. As we are more than forty-six years distant from our own Civil War, is it not incumbent on Northerners to endeavor to see the Southern side? We may be certain that the historian a hundred years hence, when he contemplates the lining-up of five and one-half million people against twenty-two millions, their equal in religion, morals, regard for law, and devotion to the common Constitution, will, as matter of course, aver that the question over which they fought for four years had two sides; that all the right was not on one side and all the wrong on the other. The North should welcome, therefore, accounts of the conflict written by candid Southern men.

Mr. Herbert, reared and educated in the South, believing in the moral and economical right of slavery, served as a Confederate soldier during the war, but after Appomattox, when thirty-one years old, he told his father he had arrived at the conviction that slavery was wrong. Twelve years later, when home-rule was completely restored to the South (1877), he went into public life as a Member of Congress, sitting in the House for sixteen years. At the end of his last term, in 1893, he was appointed Secretary of the Navy by President Cleveland, whom he faithfully served during his second administration.

Such an experience is an excellent training for the treatment of any aspect of the Civil War. Mr. Herbert's devotion to the Constitution, the Union, and the flag now equals that of any soldier of the North who fought against him. We should expect therefore that his work would be pervaded by practical knowledge and candor.

After a careful reading of the manuscript I have no hesitation in saying that the expectation is realized. Naturally unable to agree entirely with his presentation of the subject, I believe that his work exhibits a side that entitles it to a large hearing. I hope that it will be placed before the younger generation, who, unaffected by any memory of the heat of the conflict, may truly say:

Tros Tyriusve, mihi nullo discrimine agetur.

JAMES FORD RHODES.

BOSTON, *November*, 1911.

PREFACE

In 1890 Mr. L. E. Chittenden, who had been United States Treasurer under President Lincoln, published an interesting account of \$10,000,000 United States bonds secretly sent to England, as he said, in 1862, and he told all about what thereupon took place across the water. It was a reminiscence. General Charles Francis Adams in his recent instructive volume, "Studies Military and Diplomatic," takes up this narrative and, in a chapter entitled "An Historical Residuum," conclusively shows from contemporaneous evidence that the bonds were sent, not in 1862, but in 1863, but that, as for the rest of the story, the residuum of truth in it was about like the speck of moisture that is left when a soap bubble is pricked by a needle.

General Adams did not mean that Mr. Chittenden knew he was drawing on his imagination. He was only demonstrating that one who intends to write history cannot rely on his memory.

The author, in the following pages, is undertaking to write a connected story of events that happened, most of them, in his lifetime, and as to many of the most important of which he has vivid recollections; but, save in one respect, he has not relied upon his own memory for any important fact. The picture he has drawn of the relations between the slave-holder and non-slave-holder in the South is, much of it, given as he recollects it. His opportunities for observation were somewhat extensive, and here he is willing to be considered in part as a witness. Elsewhere he has relied almost entirely upon contemporaneous written evidence, memory, however, often indicating to him sources of information.

Nowhere are there so many valuable lessons for the student of American history as in the story of the great sectional movement of 1831, and of its results, which have profoundly affected American conditions through generation after generation.

An effort is here made to tell that story succinctly, tracing it, step after step, from cause to effect. The subject divides itself naturally into four historic periods:

1. The anti-slavery crusade, 1831 to 1860.
2. Secession and four years of war, 1861 to 1865.
3. Reconstruction under the Lincoln-Johnson plan, with the overthrow by Congress of that plan and the rule of the negro and carpet-bagger, from 1865 to 1876.
4. Restoration of self-government in the South, and the results that have followed.

The greater part of the book is devoted to the first period—1831 to 1860, the period of causation. The sequences running through the three remaining periods are more briefly sketched.

Italics, throughout the book, it may be mentioned here, are the author's.

Now that the country is happily reunited in a Union which all agree is indissoluble, the South wants the true history of the times here treated of spread before its children; so does the North. The mistakes that were committed on both sides during that lamentable and prolonged sectional quarrel (and they were many) should be known of all, in order that like mistakes may not be committed in the future. The writer has, with diffidence, attempted to lay the facts before his readers, and so to condense the story that it may be within the reach of the ordinary student. How far he has succeeded will be for his readers to say. The verdict he ventures to hope for is that he has made an honest effort to be fair.

The author takes this occasion to thank that accomplished young teacher of history, Mr. Paul Micou, for valuable suggestions, and his friend, Mr. Thomas H. Clark, who with his varied attainments has aided him in many ways.

HILARY A. HERBERT.

WASHINGTON, D. C., *March*, 1912.

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THE ABOLITION CRUSADE AND ITS CONSEQUENCES

INTRODUCTION

The Constitution of the United States attempts to define and limit the power of our Federal Government.

Lord Brougham somewhere said that such an instrument was not worth the parchment it was written on; people would pay no regard to self-imposed limitations on their own will.

When our fathers by that written Constitution established a government that was partly national and partly federal, and that had no precedent, they knew it was an experiment. To-day that government has been in existence one hundred and twenty-three years, and we proudly claim that the experiment of 1789 has been the success of the ages.

Happy should we be if we could boast that, during all this period, the Constitution had never been violated in any respect!

The first palpable infringement of its provisions occurred in the enactment of the alien and sedition laws of 1798. The people at the polls indignantly condemned these enactments, and for years thereafter the government proceeded peacefully; the people were prosperous, and the Union and the Constitution grew in favor.

Later, there grew up a rancorous sectional controversy about slavery that lasted many years; that quarrel was followed by a bloody sectional war; after that war came the reconstruction of the Southern States. During each of these three trying eras it did sometimes seem as if that old piece of "parchment," derided by Lord Brougham, had been utterly forgotten. Nevertheless, and despite all these trying experiences, we have in the meantime advanced to the very front rank of nations, and our people have long since turned, not only to the Union, but, we are happy to think, to the Constitution as well, with more devotion than ever.

It may be further said that, notwithstanding all the bitter animosities that for long divided our country into two hostile sections, that wonderful old Constitution, handed down to us by our fathers, was always, and in all seasons, in the hearts of our people, and that never for a moment was it out of mind. Even in our sectional war Confederates and Federals were both fighting for it—one side to maintain it over themselves as an independent nation; the other to maintain it over the whole of the old Union. In the very madness of reconstruction the fundamental idea of the Constitution, the equality of the States, ultimately prevailed—this idea it was that imperatively demanded the final restoration of the seceded States, with the right of self-government unimpaired.

The future is now bright before us. The complex civilization of the present is, we do not forget, continually presenting new and complex problems of government, and we are mindful, too, that, for the people who must deal with these problems, a higher culture is required, but to all this our national and State governments seem to be fully alive. We are everywhere erecting memorials to our patriotic dead, we have our "flag day" and many ceremonies to stimulate patriotism, and, throughout our whole country, young Americans are being taught more and more of American history and American traditions.

The essence of these teachings presumably is that time has hallowed our Constitution, and that experience has fully shown the wisdom of its provisions. In this land of ours, where there are so much property and so many voters who want it, and where the honor and emoluments of high place are so tempting to the demagogue, there can be no such security for either life, liberty, or property as those safeguards which our fathers devised in the Constitution of the United States.

Our teachers of history must therefore expose fearlessly every violation in the past of our Constitution, and point out the penalties that followed; and, above all, they cannot afford to condone, or to pass by in silence, the conduct of those who have heretofore advocated, or acted on, any law which to them was *higher than the American Constitution*.

One of the most serious troubles in the past, many think our greatest, was our terrible war among ourselves. Perhaps, after the lapse of nearly fifty years, we can all now agree that if our people and our States had always, between 1830 and 1860, faithfully observed the Federal Constitution we should have not had that war. However that may be, the crusade of the Abolitionists, which began in 1831, was the beginning of an agitation in the North

against the existence of slavery in the South, which continued, in one form or another, until the outbreak of that war.

The negro is now located, geographically, much as he was then. If another attempt shall be made to project his personal status into national politics, the voters of the country ought to know and consider the mistakes that occurred, North and South, during the unhappy era of that sectional warfare. This little book is a study of that period of our history. It concludes with a glance at the war between the North and South, and the reconstruction that followed.

The story of Cromwell and the Great Revolution it was impossible for any Englishman to tell correctly for nearly or quite two centuries. The changes that had been wrought were too profound, too far-reaching; and English writers were too human. The changes—economic, political, and social—wrought in our country by the great controversy over slavery and State-rights, and by the war that ended it, have been quite as profound, and the revolution in men's ideas and ways of looking at their past history has been quite as complete as those which followed the downfall of the government founded by Cromwell. But we are now in the twentieth century; history is becoming a science, and we ought to succeed better in writing our past than the Englishmen did.

The culture of this day is very exacting in its demands, and if one is writing about our own past the need of fairness is all the more imperative. And why not? The masses of the people, who clashed on the battlefields of a war in which one side fought for the supremacy of the Union and the other for the sovereignty of the States, had honest convictions; they differed in their convictions; they had made honest mistakes about each other; now they would like their histories to tell just where those mistakes were; they do not wish these mistakes to be repeated hereafter. Nor is there any reason why the whole history of that great controversy should not now be written with absolute fairness; the two sections of our country have come together in a most wonderful way. There has been reunion after reunion of the blue and the gray. The survivors of a New Jersey regiment, forty-four years after the bloody battle of Salem Church, put up on its site a monument to their dead, on one side of which was a tablet to the memory of the "brave Alabama boys," who were their opponents in that fight. One of those "Alabama boys" wrote the story of that battle for the archives of his own State, and the State of New Jersey has published it in her archives, as a fair account of the battle.

The author has attempted to approach his subject in a spirit like this, and while he hopes to be absolutely fair, he is perfectly aware that he sees things from a Southern view-point. For this, however, no apology is needed. Truth is many-sided and must be seen from every direction.

Nearly all the school-books dealing with the period here treated of, and now considered as authority, have been written from a Northern stand-point; and many of the extended histories that are most widely read seem to the writer to be more or less partisan, although the authors were apparently quite unconscious of it. Attempts made here to point out some of the errors in these books are, as is conceived, in the interests of history.

Of course it is important that readers should know the stand-point of an author who writes at this day of events as recent as those here treated of. Dr. Albert Bushnell Hart, professor of history in Harvard University, in the preface to his "Slavery and Abolition" (Harper Brothers, 1906), says of himself: "It is hard for a son and grandson of abolitionists to approach so explosive a question with impartiality." Following this example, the writer must tell that he was born in the South, of slave-holding parents, three years after the Abolition crusade began in 1831. Growing up in the South under the stress of that crusade, he maintained all through the war, in which he was a loyal Confederate soldier, the belief in which he had been educated—that slavery was right, morally and economically.

One day, not long after Appomattox, he told his father he had reached the conclusion that slavery was wrong. The reply was, to the writer's surprise, that his mother in early life had been an avowed emancipationist; that she (who had lived until the writer was sixteen years old) had never felt at liberty to discuss slavery after the rise of the new abolitionists and the Nat Turner insurrection; and then followed the further information that when, in 1846, the family removed from South Carolina to Alabama, Greenville, Ala., was chosen for a home because it was thought that the danger from slave insurrections would be less there than in one of the richer "black counties."

What a creature of circumstances man is! The writer's belief about a great moral question, his home, his school-mates, and the companions of his youth, were all determined by a movement begun in Boston, Massachusetts, before he was born in the far South!

With a vivid personal recollection of the closing years of the great anti-slavery crusade always in his mind, the writer has studied closely many of the histories dealing with that movement, and he has found quite a consensus of opinion among Northern writers—a view that has even been sometimes accepted in the South—that it was not so much the fear of insurrections, created by Abolition agitation, that shut off discussion in the South about the rightfulness of slavery as it was the invention of the cotton-gin, that made cotton growing and slavery profitable. The cotton-gin was invented in 1792, and was in common use years before the writer's mother was born. A native of, she grew to maturity entirely in, the South, and in 1830 was an avowed emancipationist. The subject was then being freely discussed.

The author has ventured to relate in the pages that follow this introduction two or three incidents that were more or less personal, in the hope that their significance may be his sufficient excuse.

And now, having spoken of himself as a Southerner, the author thinks it but fair, when invoking for the following pages fair consideration, to add that, since 1865, he has never ceased to rejoice that slavery is no more, and that secession is now only an academic question; and, further, that he has, since Appomattox, served the government of the United States for twenty years as loyally as he ever served the Confederacy. He therefore respectfully submits that his experiences ought to render him quite as well qualified for an impartial consideration of the anti-slavery crusade and its consequences as are those who have never, either themselves or through the eyes of their ancestors, seen more than one side of those questions. Certain he is, in his own mind, that this Union has now no better friend than is he who submits this little study, conscious of its many shortcomings, claiming for it nothing except that it is the result of an honest effort to be fair in every statement of facts and in the conclusions reached.

Not much effort has been made in the direction of original research. Facts deemed sufficient to illustrate salient points, which alone can be treated of in a short story, have been found in published documents, and other facts have been purposely taken, most of them, from Northern writers; and the authorities have been duly cited. These facts have been compressed into a small compass, so that the book may be available to such students as have not time for a more extended examination.

Of the results of the crusade of the Abolitionists, and the consequent sectional war, George Ticknor Curtis, one of New England's distinguished biographers, says in his "Life of Buchanan," vol. II, p. 283:

"It is cause for exultation that slavery no longer exists in the broad domain of this republic—that our theory of government and practice are now in complete accord. But it is no cause for national pride that we did not accomplish this result without the cost of a million of precious lives and untold millions of money."

CHAPTER I

SECESSION AND ITS DOCTRINE

John Fiske has said in his school history: "Under the government of England before the Revolution the thirteen commonwealths were independent of one another, and were held together juxtaposed, rather than united, only through their allegiance to the British Crown. Had that allegiance been maintained there is no telling how long they might have gone on thus disunited."

They won their independence under a very imperfect union, a government improvised for the occasion. The "Articles of Confederation," the first formal constitution of the United States of America, were not ratified by Maryland, the last to ratify, until in 1781, shortly before Yorktown. In 1787 the thirteen States, each claiming to be still sovereign, came together in convention at Philadelphia and formed the present Constitution, looking to "a more perfect union." The Constitution that created this new government has been rightly said to be "the most wonderful work ever struck off, at a given time, by the brain and purpose of man."^[1] And so it was, but it left unsettled the great question whether a State, if it believed that its rights were denied to it by the general government, could peaceably withdraw from the Union.

The Federal Government was given by the Constitution only limited powers, powers that it could not transcend. Nowhere on the face of that Constitution was any right expressly conferred on the general government to decide exclusively and finally upon the extent of the powers granted to it. If any such right had been clearly given, it is certain that many of the States would not have entered into the Union. As it was, the Constitution was only adopted by eleven of the States after months of discussion. Then the new government was inaugurated, with two of the States, Rhode Island and North Carolina, still out of the Union. They remained outside, one of them for eighteen months and the other for a year.

The States were reluctant to adopt the Constitution, because they were jealous of, and did not mean to give up, the right of self-government.

The framers of the Constitution knew that the question of the right of a State to secede was thus left unsettled. They knew, too, that this might give trouble in the future. Their hope was that, as the advantages of the Union became, in process of time, more and more apparent, the Union would grow in favor and come to be regarded in the minds and hearts of the people as indissoluble.

From the beginning of the government there were many, including statesmen of great influence, who continued to be jealous of the right of self-government, and insisted that no powers should be exercised by the Federal Government except such as were very clearly granted in the Constitution. These soon became a party and called themselves Republicans. Some thirty years later they called themselves Democrats. Those, on the other hand, who believed in construing the grants of power in the Constitution liberally or broadly, called themselves Federalists.

Washington was a Federalist, but such was his influence that the dispute between the Republicans and the Federalists about the meaning of the Constitution did not, during his administration, assume a serious aspect; but when a new president, John Adams, also a Federalist, came in with a congress in harmony with him, the Republicans made bitter war upon them. France, then at war with England, was even waging what has been denominated a "quasi war" upon us, to compel the United States, under the old treaty of the Revolution, to take her part against England; and England was also threatening us. Plots to force the government into the war as an ally of France were in the air.

Adams and his followers believed in a strong and spirited government. To strike a fatal blow at the plotters against the public peace, and to crush the Republicans at the same time, Congress now passed the famous alien and sedition laws.

One of the alien laws, June 25, 1798, gave the President, for two years from its passage, power to order out of the country, *at his own will, and without "trial by jury" or other "process of law," any alien he deemed dangerous to the peace and safety of the United States.*

The sedition law, July 14, 1798, made criminal any unlawful conspiracy to oppose any measure of the government of the United States "which was directed by proper authority," as well as also any "false and scandalous accusations against the Government, the President, or the Congress."

The opportunity of the Republicans had come. They determined to call upon the country to condemn the alien and sedition laws, and at the presidential election in 1800 the Federalists received their death-blow. The party as an organization survived that election only a few years, and in localities the very name, Federalist, later became a reproach.

The Republicans began their campaign against the alien and sedition laws by a series of resolutions, which, drawn by Jefferson, were passed by the Kentucky legislature in November, 1798. Other quite similar resolutions, drawn by Madison, passed the Virginia assembly the next year; and these together became the celebrated Kentucky and Virginia resolutions of 1798-9.^[2] The alien and sedition laws were denounced in these resolutions for the exercise of powers not delegated to the general government. Adverting to the sedition law, it was declared that no power over the freedom of religion, freedom of speech, or freedom of the press had been given. On the contrary, it had been expressly provided by the Constitution that "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof, or *abridging the freedom of speech, or of the press.*"

The first of the Kentucky resolutions was as follows:

"Resolved, That the several States composing the United States of America, are not united on the principle of unlimited submission to their general government, but that by compact, under the style and title of a constitution for the United States, and of amendments thereto, they constituted a general government for specific purposes, delegated to that Government certain definite powers, reserving, each State to itself, the residuary mass of right to their own self-government; and that whensoever the general government assumes undelegated powers its acts are unauthoritative, void, and of no effect: That to this compact each State acceded as a State, and is an integral party, its co-States forming, as to itself, the other party: That the government created by this compact, was not made the exclusive or final judge of the extent of the powers delegated to itself, since that would have made its direction, and not the Constitution, the measure of its powers; but that, as in all other cases of compact among parties having no common judge, each party has a right to judge for itself as well of infractions as of the mode and measure of redress."

Undoubtedly it is from the famous resolutions of 1798-9 that the secessionists of a later date drew their arguments. The authors of these celebrated resolutions were, both of them, devoted friends of the Union they had helped to construct. Why should they announce a theory of the Constitution that was so full of dangerous possibilities?

The answer is, they were announcing the theory upon which the States, or at least many of the States, had ten years before ratified the Constitution. A crisis in the life of the new government had now come. Congress had usurped powers not given; it had exercised powers that had been prohibited, and the government was enforcing the obnoxious statutes with a high hand. Dissatisfaction was intense.

Jefferson and Madison were undoubtedly Republican partisans, Jefferson especially; but it is equally certain that they were both friends of the Union, and as such they concluded, with the lights before them, that the wise course would be to submit to the people, in ample time for full consideration, before the then coming presidential election, a full, clear, and comprehensive exposition of the Constitution precisely as they, and as the people, then understood it. This they did in the resolutions of 1798 and 1799, and the very same voters who had created the Constitution of 1789, now, with their sons to aid them, endorsed these resolutions in the election of 1800, which had been laid before them by the legislatures of two Republican States as a correct construction of that instrument.

The Republicans under Jefferson came into power with an immense majority. The people were satisfied with the Constitution as it had been construed in the election of 1800, and the country under control of the Republicans was happy and prosperous for three decades. Then the party in power began to split into National Republicans and Democratic Republicans. The National Republicans favored a liberal construction of the Constitution and became Whigs; the Democratic Republicans dropped the name Republican and became Democrats.

The foregoing sketch has been given with no intent to write a political history, but only to show with what emphasis the American people condemned all violations of the Constitution up to the time when, in 1831, our story

of the Abolitionists is to begin. The sketch has also served to explain the theory of State-rights, as it was held in early days, and later, by the Southern people.

Whether the union of the States under the Constitution as expounded by the Kentucky and Virginia resolutions would survive every trial that was to come, remained to be seen. The question was destined to perplex Mr. Jefferson himself, more than once.

Indeed, even while Washington was President there had been disunion sentiment in Congress. In 1794 the celebrated Virginian, John Taylor, of Caroline, shortly after he had expressed an intention of publicly resigning from the United States Senate, was approached in the privacy of a committee room by Rufus King, senator from New York, and Oliver Ellsworth, a senator from Massachusetts, both Federalists, with a proposition for a dissolution of the Union by mutual consent, the line of division to be somewhere from the Potomac to the Hudson. This was on the ground "that it was utterly impossible for the Union to continue. That the Southern and the Eastern people thought quite differently," etc. Taylor contended for the Union, and nothing came of the conference, the story of which remained a secret for over a hundred years.^[3]

"In the winter of 1803-4, immediately after, and as a consequence of, the acquisition of Louisiana, certain leaders of the Federal party conceived the project of the dissolution of the Union and the establishment of a Northern Confederacy, the justifying causes to those who entertained it, that the acquisition of Louisiana to the Union transcended the constitutional powers of the government of the United States; that it created, in fact, a new confederacy to which the States, united by the former compact, were not bound to adhere; that it was oppressive of the interests and destructive of the influence of the northern section of the Confederacy, whose right and duty it was therefore to secede from the new body politic, and to constitute one of their own."^[4]

This project did not assume serious proportions.

John Fiske in his school history says: "John Quincy Adams, a supporter of the embargo act of 1807, privately informed President Jefferson (in February, 1809) that further attempts to enforce it in the New England States would be likely to drive them to secession. Accordingly, the embargo was repealed, and the non-intercourse act substituted for it."

The spirit of nationality was yet in its infancy, threats of secession were common, and they came then mostly from New England. These threats were in no wise connected with slavery; agitators had not then made slavery a national issue; the idea of separation was prompted by the fear that power in the councils of the Union would pass into the hands of other sections.

Massachusetts was heard from again in 1811, when the State of Louisiana, the first to be carved from the Louisiana purchase, asked to come into the Union. In discussing the bill for her admission, Josiah Quincy said: "Why, sir, I have already heard of six States, and some say there will be at no great distance of time more. I have also heard that the mouth of the Ohio will be far to the east of the contemplated empire.... It is impossible that such a power could be granted. It was not for these men that our fathers fought. It was not for them this Constitution was adopted. You have no authority to throw the rights and liberties and property of this people into hotchpot with the wild men on the Missouri, or with the mixed, though more respectable, race of Anglo-Hispano-Gallo-Americans who bask in the sands in the mouth of the Mississippi.... *I am compelled to declare it as my deliberate opinion that, if this bill passes, the bonds of the Union are virtually dissolved; that the States which compose it are free from their moral obligations; and that, as it will be the right of all, so it will be the duty of some, to prepare definitely for a separation—amicably, if they can; violently, if they must.*"

June 15, 1813, the Massachusetts legislature endorsed the position taken in this speech.^[5]

Later, in 1814, a convention of representative New England statesmen met at Hartford, to consider of secession unless the non-intercourse act, which also bore hard on New England, should be repealed; but the war then pending was soon to close, and the danger from that quarter was over.

But secession was not exclusively a New England doctrine. "When the Constitution was adopted by the votes of States in popular conventions, it is safe to say there was not a man in the country, from Washington and Hamilton, on the one side, to George Clinton and George Mason, on the other, who regarded the new system as anything but an experiment, entered into by the States, and from which each and every State had the right to withdraw, a right which was very likely to be exercised."^[6]

As late as 1844 the threat of secession was to come again from Massachusetts. The great State of Texas was applying for admission to the Union. But Texas was a slave State; Abolitionists had now for thirteen years been arousing in the old Bay State a spirit of hostility against the existence of slavery in her sister States of the South, and in 1844 the Massachusetts legislature resolved that "the Commonwealth of Massachusetts, faithful to the *compact* between the people of the United States, according to the plain meaning and intent in which it was understood by them, is sincerely anxious for its preservation; but that it is determined, as it *doubts not other States are, to submit to undelegated powers in no body of men on earth,*" and that "the project of the annexation of Texas, unless arrested at the threshold, may tend to drive *these States into a dissolution of the Union.*"

This was *just seventeen years before the Commonwealth of Massachusetts began to arm her sons to put down secession in the South!*

The Southern reader must not, however, conclude from this startling about-face on the question of secession, that the people of Massachusetts, and of the North, did not, *in 1861*, honestly believe that under the Constitution the Union was indissoluble, or that the North went to war simply for the purpose of perpetuating its power over the South. Such a conclusion would be grossly unjust. The spirit of nationality, veneration of the Union, was a growth, and, after it had fairly begun, a rapid growth. It grew, as our country grew in prestige and power. The splendid triumphs of our ships at sea, in the War of 1812, and our victory at New Orleans over British regulars, added to it; the masterful decisions of our great Chief Justice John Marshall, pointing out how beneficently our Federal Constitution was adapted to the preservation not only of local self-government but of the liberties of the citizen as well; peace with, and the respect of, foreign nations; free trade between the people of all sections, and abounding prosperity—all these things created a deep impression, and Americans began to hark back to the words of Washington in his farewell address: "The unity of our government, which now constitutes you one people, is also dear to you. It is justly so, for it is a main pillar in the edifice of your real independence, the support of your tranquillity at home, your peace abroad, of your safety, of your prosperity, of that very liberty which you so highly prize."

But far and away above every other single element contributing to the development of Union sentiment was the wonderful speech of Daniel Webster, January 26, 1830, in his debate in the United States Senate with Hayne, of South Carolina. Hayne was eloquently defending States' rights, and his argument was unanswerable if his premise was admitted, that, as had been theretofore conceded, the Constitution was *a compact between the States*. Webster saw this and he took new ground; the Constitution was, he contended, not a compact, but the formation of a government. His arguments were like fruitful seed sown upon a soil prepared for their reception. No speech delivered in this country ever created so profound an impression. It was the foundation of a new school of political thought. It concluded with this eloquent peroration: "When my eyes shall be turned to behold for the last time the sun in heaven, may I not see him shining on the broken and dishonored fragments of a once glorious Union; on States dissevered, discordant, belligerent; on a land rent with civil feuds, or drenched, it may be, in fraternal blood! Let their last feeble and lingering glance rather behold the gracious ensign of the republic, now known and honored throughout the earth, still full high advanced, its arms and trophies streaming in their original lustre, not a stripe erased or polluted, not a single star obscured, bearing for its motto no such miserable interrogatory as 'What is all this worth?' nor those other words of delusion and folly, 'Liberty first and Union afterwards,' but everywhere, spread all over with living light, blazing on all its ample folds, as they float over the sea and over the land, and in every wind under the whole heavens, that other sentiment, dear to every American heart—'Liberty *and* Union, now and forever, one and inseparable.'"

For many years every school-house in the land resounded with these words. By 1861 they had been imprinted on the minds and had sunk into the hearts of a whole generation. Their effect was incalculable.

It is perfectly true that the secession resolution of the Massachusetts legislature of 1844 was passed fourteen years after Webster's speech, but the Garrisonians had then been agitating the slavery question within her borders for fourteen years, and the old State was now beside herself with excitement.

There was another great factor in the rapid manufacture of Union sentiment at the North that had practically no existence at the South. It was immigration.

The new-comers from over the sea knew nothing, and cared less, about the history of the Constitution or the dialectics of secession. They had sought a land of liberty that to them was one nation, with one flag flying over it, and in their eyes secession was rebellion. Immigrants to America, practically all settling in Northern States, were

during the thirty years, 1831-1860, 4,910,590; and these must, with their natural increase, have numbered at least six millions in 1860. In other words, far more than one-fourth of the people of the North in 1860 were not, themselves or their fathers, in the country in the early days when the doctrine of States' rights had been in the ascendant; and, as a rule, to these new people that old doctrine was folly.

In the South the situation was reversed. Slavery had kept immigrants away. The whites were nearly all of the old revolutionary stock, and had inherited the old ideas. Still, love of and pride in the Union had grown in them too. Nor were the Southerners all followers of Jefferson. From the earliest days much of the wealth and intelligence of the country, North and South, had opposed the Democracy, first as Federalists and later as Whigs. In the South the Whigs have been described as "a fine upstanding old party, a party of blue broadcloth, silver buttons, and a coach and four." It was not until anti-slavery sentiment had begun to array the North, as a section, against the South, that Southern Whigs began to look for protection to the doctrine of States' rights.

Woodrow Wilson says, in "Division and Reunion," p. 47, of Daniel Webster's great speech in 1830: "The North was now beginning to insist upon a national government; the South was continuing to insist upon the original understanding of the Constitution; that was all."

And in those attitudes the two sections stood in 1860-61, one upon the modern theory of an indestructible Union; the other upon the old idea that States had the right to secede from the Union.

In 1848 there occurred in Ireland the "Rebellion of the Young Irishmen." Among the leaders of that rebellion were Thomas F. Meagher and John Mitchel. Both were banished to Great Britain's penal colony. Both made their way, a few years later, to America. Both were devotees of liberty, both men of brilliant intellect and high culture. Meagher settled in the North, Mitchel in the South. This was about 1855. Each from his new stand-point studied the history and the Constitution of his adopted country. Meagher, when the war between the North and South came on, became a general in the Union army. Mitchel entered the civil service of the Confederacy and his son died a Confederate soldier.

The Union or Confederate partisan who has been taught that his side was "eternally right, and the other side eternally wrong," should consider the story of these two "Young Irishmen."

How fortunate it is that the ugly question of secession has been settled, and will never again divide Americans, or those who come to America!

CHAPTER II

EMANCIPATION PRIOR TO 1831

In the sixteenth and seventeenth centuries, Dutch, French, Portuguese, Spanish, English, and American vessels brought many thousands of negroes from Africa, and sold them as slaves in the British West Indies and in the British-American colonies. William Goodell, a distinguished Abolitionist writer, tells us^[2] that "in the importation of slaves for the Southern colonies the merchants of New England competed with those of New York and the South" (which never had much shipping). "They appear indeed to have outstripped them, and to have *almost monopolized* at one time the profits of this detestable trade. Boston, Salem, and Newburyport in Massachusetts, and Newport and Bristol in Rhode Island, amassed, in the persons of a few of their citizens, vast sums of this rapidly acquired and ill-gotten wealth."^[2]

The slaves coming to America went chiefly to the Southern colonies, because there only was slave labor profitable. The laws and conditions under which these negroes were sold in the American colonies were precisely the same as in the West Indies, except that the whites in the islands, so far as is known, never objected, whereas the records show that earnest protests came from Virginia^[8] and also from Georgia^[9] and North Carolina.^[10] The King of England was interested in the profits of the iniquitous trade and all protests were in vain.

Of the rightfulness, however, of slavery itself there was but little question in the minds of Christian peoples until the closing years of the eighteenth century. Then the cruelties practised by ship-masters in the Middle Passage attracted attention, and then came gradually a revolution in public opinion. This revolution, in which the churches took a prominent part, originated in England, but it soon swept over America also, both North and South.

England abolished the slave trade in 1807. The United States followed in 1808; the Netherlands in 1814; France in 1818; Spain in 1820; Portugal in 1830. The great Wilberforce, Buxton, and others, who had brought about the abolition of the slave trade in England, continued their exertions in favor of the slave until finally, in 1833, Parliament abolished slavery in the British West Indies, appropriating twenty millions sterling (\$100,000,000) as compensation to owners—this because investments in slave property had been made under the sanction of existing law.

"Great Britain, loaded with an unprecedented debt and with a grinding taxation, contracted a new debt of a hundred millions of dollars to give freedom, not to Englishmen, but to the degraded African. This was not an act of policy, but the work of statesmen. Parliament but registered the edict of the people. The English nation, with one heart and one voice, under a strong Christian impulse and without distinction of rank, sex, party, or religious names, decreed freedom to the slave. I know not that history records a national act so disinterested, so sublime."

So wrote Dr. Channing, the great New England pulpit orator, in his celebrated letter on Texas annexation, to Henry Clay, in 1837.

While the rightfulness of slavery was being discussed in England, the American conscience had also been aroused, and emancipation was making progress on this side of the water.

Emancipation was an easy task in the Northern States, where slaves were few, their labor never having been profitable, and by 1804 the last of these States had provided for the ultimate abolition of slavery within its borders. But the problem was more difficult in the Southern States, where the climate was adapted to slave labor. There slaves were numerous, and slavery was interwoven, economically and socially, with the very fabric of existence. Naturally, it occurred to thoughtful men that there ought to be some such solution as that which was subsequently adopted in England, and which, as we have seen, was so highly extolled by Dr. Channing—emancipation of the slaves with compensation to the owners by the general government. The difficulty in our country was that the Federal Constitution conferred upon the Federal Government no power over slavery in the States—no power to emancipate slaves or compensate owners; and that for the individual States where the negroes were numerous the problem seemed too big. Free negroes and whites in great numbers, it was thought, could not live together. To get rid of the negroes, if they should be freed, was for the States a very serious, if not an unsurmountable task.

On the seventeenth of January, 1824, the following resolutions, proposed as a solution of the problem, were passed by the legislature of Ohio:^[11]

Resolved, That the consideration of a system providing for the gradual emancipation of the people of color, held in servitude in the United States, be recommended to the legislatures of the several States of the American Union, and to the Congress of the United States.

Resolved, That, in the opinion of the general assembly, a system of foreign colonization, with correspondent measures, might be adopted that would in due time effect the entire emancipation of the slaves of our country without any violation of the national compact, or infringement of the rights of individuals; by the passage of a law by the general government (with the consent of the slave-holding States) which would provide that all children of persons now held in slavery, born after the passage of the law, should be free at the age of twenty-one years (being supported during their minority by the persons claiming the service of their parents), provided they then consent to be transported to the intended place of colonization. Also:

Resolved, That it is expedient that such a system should be predicated upon the principle that the evil of slavery is a national one, and that the people and the States of the Union ought mutually to participate in the duties and burthens of removing it.

Resolved, That His Excellency the Governor be requested to forward a copy of the foregoing resolutions to His Excellency the Governor of each of the United States, requesting him to lay the same before the legislature thereof; and that His Excellency will also forward a like copy to each of our senators and representatives in Congress, requesting their co-operation in all national measures having a tendency to effect the grave object embraced therein.

By June of 1825 eight other Northern States had endorsed the proposition, Pennsylvania, Vermont, New Jersey, Illinois, Connecticut, Massachusetts. Six of the slave-holding States emphatically disapproved of the suggestion, viz., Georgia, South Carolina, Missouri, Mississippi, Louisiana, and Alabama.^[12]

Reasons which in great part influenced all the Southern States thus rejecting the proposition may be gathered from the following words of Governor Wilson, of South Carolina, in submitting the resolutions: "A firm determination to resist, at the threshold, every *invasion of our domestic tranquillity*, and to *preserve our sovereignty and independence as a State*, is earnestly recommended."^[13]

The resolutions required of the Southern States a complete surrender in this regard of their reserved rights; they feared what Governor Wilson called "the overwhelming powers of the general government," and were unwilling to make the admission required, that the slavery in the South was a question for the nation.

Another reason was that, although there was a quite common desire in the Southern States to get rid of slavery, the majority sentiment doubtless was not yet ready for the step.

Basing this plan on the "consent of the slave-holding States," as the Ohio legislature did, was an acknowledgment that the North had no power over the matter; while the proposition to share in the expense of transporting the negroes, after they were manumitted, seems to be a recognition of the joint responsibility of both sections for the existence of slavery in the South. However that may be, the generous concurrence of nine of the thirteen Northern States indicates how kindly the temper of the North toward the South was before the rise of the "New Abolitionism" in 1831. Had emancipation been, under the Federal Constitution, a national and not a local question, it is possible that slavery might have been abolished in America, as it was in the mother country, peacefully and with compensation to owners.

The Ohio idea of freeing and at the same time colonizing the slaves, was no doubt suggested by the scheme of the African Colonization Society. This Colonization Society grew out of a resolution passed by the General Assembly of Virginia, December 23, 1816. Its purpose was to rid the country of such free negroes and subsequently manumitted slaves as should be willing to go to Liberia, where a home was secured for them, and a government set up that was to be eventually controlled by the negro from America. The plan was endorsed by Georgia in 1817, Maryland in 1818, Tennessee in 1818, and Vermont in 1819.^[14]

The Colonization Society was composed of Southern and Northern philanthropists and statesmen of the most exalted character. Among its presidents were, at times, President Monroe and ex-President Madison. Chief Justice

Marshall was one of its presidents. Colonization, while relieving America, was also to give the negro an opportunity for self-government and self-development in his native country, aided at the outset by experienced white men, and Abraham Lincoln, when he was eulogizing the dead Henry Clay, one of the eloquent advocates of the scheme, seemed to be in love with the idea of restoring the poor African to that land from which he had been rudely snatched by the rapacious white man. The society, with much aid from philanthropists and some from the Federal Government, was making progress when, from 1831 to 1835, the Abolitionists halted it.^[15] They got the ears of the negro and persuaded him not to go to Liberia. Its friends thought the enterprise would stimulate emancipation by furnishing a home for such negroes as their owners were willing to manumit; but the new friends of the negro told him it was a trick of the slave-holder, and intended to perpetuate slavery—it was banishment. And Dr. Hart now, in his "Abolition and Slavery," calls it a move for the "expatriation of the negro."

All together only a few thousand negroes went to Liberia. The enterprise lagged, and finally failed, partly because of opposition, but chiefly because the negroes were slothful and incapable of self-government. The word came back that they were not prospering. For a time, while white men were helping them in their government, the outlook for Liberia had more or less promise in it. When the whites, to give the negroes their opportunity for self-development withdrew their case was hopeless.^[16]

In 1828, while emancipation was still being freely canvassed North and South, Benjamin Lundy, an Abolition editor in charge of *The Genius of Emancipation*, then being published at Baltimore, in a slave State, went to Boston to "stir up" the Northern people "to the work of abolishing slavery in the South." Dr. Channing, who has been previously quoted, wrote a letter to Daniel Webster on the 28th of May, 1828, in which, after reciting the purpose of Lundy, and saying that he was "aware how cautiously exertions are to be made for it in this part of the country," it being a local question, he said: "It seems to me that, before moving in this matter, we ought to say to them (our Southern brethren) distinctly, 'We consider slavery *as your calamity, not your crime*, and *we will share with you the burden* of putting an end to it. We will consent that the public lands shall be appropriated to this object; or that the general government shall be *clothed with the power to apply a portion of revenue to it*.'

"I throw out these suggestions merely to illustrate my views. We must first let the Southern States see that we are their *friends* in this affair; that we sympathize with them and, from principles of *patriotism and philanthropy*, are *willing to share the toil and expense* of abolishing slavery, or, I fear, our interference will avail nothing."^[17] Mr. Webster never gave out this letter until February 15, 1851.^[18]

In less than three years after that letter was written, Lundy's friend, William Lloyd Garrison, started in Boston a crusade against slavery in the South, on the ground that instead of being the "*calamity*," as Dr. Channing deemed it to be, it was the "*crime*" of the South. Had no such exasperating sectional cry as this ever been raised, the story told in this little book would have been very different from that which is to follow. Even Spain, the laggard of nations, since that day has abolished slavery in her colonies. Brazil long ago fell into line, and it is impossible for one not blinded by the sectional strife of the past, now to conceive that the Southern States of this Union, whose people in 1830 were among the foremost of the world in all the elements of Christian civilization, would not long, long ago, if left to themselves, have found some means by which to rid themselves of an institution condemned by the public sentiment of the world and even then deplored by the Southerners themselves.

The crime, if crime it was, of slavery in the South in 1830 was one for which the two sections of the Union were equally to blame. Abraham Lincoln said in his debate with Douglas at Peoria, Illinois, October 15, 1858: "When Southern people tell us they are no more responsible for slavery than we are, I acknowledge the fact. When it is said that the institution exists, and that it is very difficult to get rid of it, in any satisfactory way, I can understand and appreciate the saying. I surely do not blame them for not doing what I would not know how to do myself."^[19]

Prior to the rise of the Abolitionists in 1831, emancipationists in the South had been free to grapple with conditions as they found them. What they and what the people of the North had accomplished we may gather from the United States census reports. The tables following are taken from "Larned's History of Ready Reference," vol. V. The classifications are his. We have numbered three of his tables, for the sake of reference, and have added columns 4 and 5, calculated from Larned's figures, to show "excess of free blacks" and "increase of free blacks, South."

Let the reader assume as a fact, which will perhaps not be questioned, that "free blacks" in the census means freedmen and their increase, and these tables tell their own story, a story to which must be added the statement that slaves in the South had been freed only by voluntary sacrifices of owners.

It will be noted that in 1790 the total "blacks" in the North was 67,479, and, although emancipation in these States had begun some years before, the excess of "free blacks" in the South was over 5,000. Also that at every succeeding census, down to and including that of 1830, the "excess of free blacks" increased with considerable regularity until 1830, when that excess is 44,547.

		WHITES	FREE BLACKS	SLAVES	TOTAL BLACKS, NORTH	EXCESS OF FREE BLACKS, SOUTH	INCREASE IN FREE BLACKS, SOUTH
1790:	North, 9	1,900,976	27,109	40,370	67,479		
	States South, 8	1,271,488	32,357	657,527		5,248	
1800:	States North, 11	2,601,521	47,154	35,946	83,100		20,045
	States South, 9	1,702,980	61,241	857,095		14,087	28,884
	States and D. C.						
1810:	North, 13	3,653,219	78,181	27,510	105,691		31,027
	States South, 11	2,208,785	108,265	1,163,854		30,084	47,024
	States and D. C.						
1820:	North, 13	5,030,371	99,281	19,108	118,359		21,100
	States South, 13	2,831,560	134,223	1,519,017		34,942	25,958
	States and D. C.						
1830:	North, 13	6,871,302	137,529	3,568	141,097		38,248
	States South, 13	3,660,758	182,070	2,005,475		44,541	47,747
	States, D.C. and Ter.						
1840:	North, etc.	9,577,065	170,728	1,728	171,857		33,199
	South, etc.	4,632,530	215,575	2,486,326		44,547	33,505
1850:	North, etc.	13,269,149	196,262	262	196,524		25,534
	South, etc.	6,283,965	238,187	3,204,051		1,925	22,612

1860:	North, etc.	18,791,159	225,967	64	226,031		29,705
	South, etc.	8,162,684	262,003	3,953,696		36,036	23,816

There was always in the South, prior to 1831, an active and freely expressed emancipation sentiment. But there was not enough of it to influence legislation. In all but three or four of these States, emancipation was made difficult by laws which, among other conditions, required that slaves after being freed should leave the State.

Emancipation in the North had not been completed in 1830. Professor Ingram, president of the Royal Irish Academy, says in his "History of Slavery," London, 1895, p. 184: "The Northern States—beginning with Vermont in 1777 and ending with New Jersey in 1804—either abolished slavery or adopted measures to effect its gradual abolition within their boundaries. But the principal operation of (at least) the latter change was to transfer Northern slaves to Southern markets."

There had been in 1820 an angry discussion in Congress about the admission of Missouri—with or without slavery—which was finally settled by the Missouri Compromise. This dispute over the admission of Missouri is often said to have been the beginning of the sectional quarrel that finally ended in secession; but the controversy over Missouri and that begun by the "New Abolitionists" in 1831 were entirely distinct. They were conducted on different plans.

In the Missouri controversy the only questions were as to the expediency and constitutionality of denying to a new State the right to enter the Union, with or without slavery, as she might choose. The entire dispute was settled to the satisfaction of both sections by an agreement that States thereafter, south of 36° 30', might enter the Union with or without slavery; *and nobody denied, during all that discussion about Missouri, or at any time previous to 1831, that every citizen was bound to maintain the Constitution and all laws passed in pursuance of it, including the fugitive slave law.*

"The North submitted at that time (1828) to the obligations imposed upon it by the fugitive slave-catching clause of the Constitution and the fugitive slave law of 1793."^[20] So say the biographers of William Lloyd Garrison for the purpose of establishing, as they afterwards do, their claim that Garrison conducted a successful revolt against that provision of the Constitution. What strengthens the statement that the North in 1828 submitted without protest to the "fugitive slave-catching clause of the Constitution," is that the Compromise Act of 1820 contained a provision extending the fugitive slave law over the territory made free by the act, while it should continue to be territory, and until there should be formed from it States, to which the existing law would automatically apply. Every subsequent *nullification of the fugitive slave laws* of the United States, whether by governors or state legislatures, was therefore a palpable *violation of a provision that was of the essence of the Missouri Compromise.*

The South was content with the Missouri Compromise, and from that date, 1820, until the rise of the "New Abolitionists," slavery was in all that region an open question. Judge Temple says in his "Covenanter, Cavalier, and Puritan," p. 208: "In 1826, of the 143 emancipation societies in the United States, 103 were in the South."

The questions for Southern emancipationists were: How could the slaves be freed, and in what time? How about compensation to owners? Where could the freed slaves be sent, and how? And, if deportation should prove impossible, what system could be devised whereby the two races could dwell together peacefully? These were indeed serious problems, and required time and grave consideration.

"Who can doubt," says Mr. Curtis, to quote once more his "Life of Buchanan," "that all such questions could have been satisfactorily answered, if the Christianity of the South had been left to its own time and mode of answering them, and without any external force but the force of kindly, respectful consideration and forbearing Christian fellowship?"^[21]

But this was not to be.

CHAPTER III

THE NEW ABOLITIONISTS

On the first day of January, 1831, there came out in Boston a new paper, *The Liberator*, William Lloyd Garrison, editor. That was the beginning, historians now generally agree, of "New Abolitionism." The editor of the new paper was the founder of the new sect.

Benjamin Lundy was a predecessor of Garrison, on much the same lines as those pursued by the latter. Lundy had previously formed many Abolition societies. *The Philanthropist* of March, 1828, estimated the number of anti-slavery societies as "upwards of 130, and most of them in the slave States, and of Lundy's formation, among the Quakers."^[22] But Garrison became the leader and Lundy the disciple.

Garrison was a man of pleasing personal appearance, abstemious in habits, and of remarkable energy and will power. He was a vigorous and forceful writer. Denunciation was his chief weapon, and he had "a genius for infuriating his antagonists." The following is a fair specimen of his style. Speaking of himself and his fellow-workers as the "soldiers of God," he said: "Their feet are shod with the preparation of the *gospel of peace*.... Hence, when smitten on one cheek they turn the other also, being defamed they entreat, being reviled they bless," etc. And on that same page,^[23] and in the same prospectus, showing how he "blesses" those who, as he understands, are outside of the "Kingdom of God," he says: "All without are dogs and sorcerers, and ... and murderers, and idolaters, and whatsoever loveth a lie."

Mr. Garrison had no perspective, no sense of relation or proportion. In his eye the most humane slave-holder was a wicked monster. He had a genius for organization, and a year after the first issue of *The Liberator* he and his little body of brother fanatics had grown into the New England Anti-Slavery Society.

The new sect called themselves for a time the "New Abolitionists," because their doctrines were new. The principles upon which this organization was to be based were not all formulated at once. The key-note was sounded in Garrison's "Address to the Public" in the first number of *The Liberator*:

I shall strenuously contend for the immediate enfranchisement of our slave population. I shall be as harsh as truth and as uncompromising as justice on this subject. *I do not wish to think or speak or write with moderation.*

In an earlier issue, after denouncing slavery as a "damning crime," the editor said: "Therefore my efforts shall be directed to *the exposure of those who practise it.*"

The substance of Garrison's teachings was that slavery, anywhere in the United States, was the concern of all, and that it was to be put down by making not only slavery but also the slave-holder odious. And, further, it was the slave, not the slave-owner, who was entitled to compensation.

Thus the distinctive features of the new crusade were to be warfare upon the personal character of every slave-holder and the confiscation of his property. It was, too, the beginning of that sectional war by people of the North against the existence of slavery in the South, which, as we have seen, was deprecated by Dr. Channing in his letter three years before to Mr. Webster.

The new sect began by assailing slavery in States other than their own, and very soon they were openly denouncing the Constitution of their country because under it slavery in those sections was none of their business; and of course they repudiated the Missouri Compromise absolutely, the essence of that compromise being that slavery was the business of the States in which it existed.

It was a part of their scheme to send circulars depicting the evils of slavery broadcast through the South; and they were sent especially to the free negroes of that section.

"In 1820," says Dr. Hart in his "Slavery and Abolition," "at Charleston (South Carolina), Denmark Vesey, a free negro, made an elaborate plot to rise, massacre the white population, seize the shipping in the harbor, and, if hard

pressed, to sail away to the West Indies. One of the negroes gave evidence, Vesey was seized, duly tried, and with thirty-four others was hanged."^[24]

This plot, so nearly successful, was fresh in the minds of Southerners when the Abolitionists began their programme, and naturally, the South at once took the alarm—an alarm that was increased by the massacre, in the Nat Turner insurrection, of sixty-one men, women, and children, which took place in Virginia seven months after the first issue of *The Liberator*. One of Turner's lieutenants is stated to have been a free negro. This insurrection the South attributed to *The Liberator*. Professor Hart says a free negro named Walker had previously sent out to the South, from Boston, a pamphlet, "the tone of which was unmistakable," and that "this pamphlet is known to have reached Virginia, and may possibly have influenced the Nat Turner insurrection."^[25]

If this surmise be correct, knowledge that Walker, a free negro, had been responsible for the Turner insurrection, would have lessened neither the guilt of the Abolitionists nor the fears of the Southerners.

But in 1832 Abolition agitation and the fears of insurrection had not as yet entirely stifled the discussion of slavery in the South. A debate on slavery took place that year in the Virginia Assembly, the immediate cause of which was no doubt the Turner insurrection. The members of that body had not been elected on any issue of that character. The discussion thus precipitated shows, therefore, the state of public opinion in Virginia on slavery. Of this debate a distinguished Northern writer says:^[26]

"In the year 1832 there was, nowhere in the world, a more enlightened sense of the wrong and evil of slavery than there was among the public men and people of Virginia."

In the Assembly of that year Mr. Randolph brought forward a bill *to accomplish gradual emancipation*. Mr. Curtis continues:

"No member of the House defended slavery.... There could be nothing said anywhere, there had been nothing said out of Virginia, stronger and truer in deprecating the evils of slavery, than was said in that discussion, by Virginia gentlemen, debating in their own legislature, a matter that concerned themselves and their people."

The bill was not pressed to a vote, but the House, by a vote of 65 to 38, declared "that they were profoundly sensible of the great evils arising from the condition of the colored population of the Commonwealth and were induced by policy, as well as humanity, to attempt the immediate removal of the free negroes; but that further action for the *removal of the slaves should await a more definite development of public opinion*."

Mr. Randolph, who was from the large slave-holding county of Albemarle, was re-elected to the next assembly.

But when the early summer of 1835 had come the fear of insurrection had created such wide-spread terror throughout the whole South that every emancipation society in that region had long since closed its doors; and now the Abolitionists were sending South their circulars in numbers. Many were sent to Charleston, South Carolina,^[27] where fifteen years before^[28] the free negro, Denmark Vesey, had laid the plot to massacre the whites, that had been discovered just in time to prevent its consummation.

The President, Andrew Jackson, in his next message to Congress, December, 1835, called their "attention to the painful excitement produced in the South by attempts to circulate through the mails *inflammatory appeals addressed to the passions of the slaves, in prints and in various sorts of publications calculated to stimulate them to insurrection and produce all the horrors of a servile war*."

The good people of Boston were now thoroughly aroused. They had from the first frowned on the Abolition movement. Garrison was complaining that in all the city his society could not "hire a hall or a meeting-house." The Abolition idea had been for a time thought chimerical and therefore negligible. Later, civic, business, social, and religious organizations had all of them in their several spheres been earnest and active in their opposition; now it seemed to be time for concerted action.

In Garrison's "Garrison" (vol. I, p. 495), we read that "the *social, political, religious and intellectual élite* of Boston filled Faneuil Hall on the afternoon of Friday, August 3, 1835, to frame an indictment against their fellow-citizens."

This "indictment" the *Boston Transcript* reported as follows:

Resolved, That the people of the United States by the Constitution under which, by the Divine blessing, they hold their most valuable political privileges, have solemnly agreed with each other to leave to their respective States the jurisdiction pertaining to the relation of master and slave within their boundaries, and that no man or body of men, except the people of the governments of those States, can of right do any act to dissolve or impair the obligations of that contract.

Resolved, That we hold in reprobation all attempts, in whatever guise they may appear, to coerce any of the United States to abolish slavery by *appeals to the terror of the master or the passions of the slave*.

Resolved, That we disapprove of all associations instituted in the non-slave-holding States with the intent to act, within the slave-holding States, on the subject of slavery in those States without their consent. For the purpose of securing freedom of individual thought they are needless—and they afford to those persons in the Southern States, whose object is to effect a dissolution of the Union (if any such there may be now or hereafter), a pretext for the furtherance of their schemes.

Resolved, That all measures adopted, *the natural and direct tendency of which is to excite the slaves of the South to revolt, or of spreading among them a spirit of insubordination*, are repugnant to the duties of the man and the citizen, and that where such measures become manifest by overt acts, which are recognizable by constitutional laws, we will aid by all means in our power in the support of those laws.

Resolved, That while we recommend to others the duty of sacrificing their opinions, passions and sympathies upon the altar of the laws, we are bound to show that a regard to the supremacy of those laws is the rule of our conduct—and consequently to deprecate all tumultuous assemblies, all riotous or violent proceedings, all outrages on person and property, and all illegal notions of the right or duty of executing summary and vindictive justice in any mode unsanctioned by law.

The allusion in the last resolution is to a then recent lynching of negroes in Mississippi charged with insurrection.

In speaking to these resolutions, Harrison Gray Otis, a great conservative leader, denounced the Abolition agitators, accusing them of "wishing to 'scatter among our Southern brethren *firebrands, arrows, and death*,' and of attempting to force Abolition by appeals to the terror of the masters and the passions of the slaves," and decrying their "measures, the natural and direct tendency of which is to excite the slaves of the South to revolt," etc.

Another of the speakers, ex-Senator Peleg Sprague, said (p. 496, Garrison's "Garrison") that "if their sentiments prevailed it would be all over with the Union, which would give place to two hostile confederacies, with forts and standing armies."

These resolutions and speeches, viewed in the light of what followed, read now like prophecy.

It is a familiar rule of law that a contemporaneous exposition of a statute is to be given extraordinary weight by the courts, the reason being that the judge then sitting knows the surrounding circumstances. That Boston meeting pronounced the deliberate judgment of the most intelligent men of Boston on the situation, as they knew it to be that day; it was in their midst that *The Liberator* was being published; there the new sect had its head-quarters, and there it was doing its work.

Quite as strong as the evidence furnished by that great Faneuil Hall meeting is the testimony of the churches.

The churches and religious bodies in America had heartily favored the general anti-slavery movement that was sweeping over all America between 1770 and 1831, while it was proceeding in an orderly manner and with due regard to law.

In 1812 the Methodist General Conference voted that no slave-holder could continue as a local elder. The Presbyterian General Assembly in 1818 unanimously resolved that "slavery was a gross violation of the most precious and moral rights of human nature," etc.

These bodies represented both the North and the South, and this paragraph shows what was, and continued to be, the general attitude of American churches until after the Abolitionists had begun their assault on both slavery in the South and the Constitution of the United States, which protected it. Then, in view of the awful social and political cataclysm that seemed to be threatened, there occurred a stupendous change. We learn from Hart that Garrison "soon found that neither minister *nor church anywhere in the lower South continued* (as before) to protest against

slavery; *that the cloth in the North was arrayed against him*; and that many Northern divines vigorously opposed him." Also that Moses Stuart, professor of Hebrew in Andover Theological Seminary; President Lord, of Dartmouth College, and Hopkins, the Episcopal bishop of Vermont, now became defenders of slavery. "The positive opposition of churches soon followed."

And then we have cited, condemnations of Abolitionism by the Methodist Conference of 1836, by the New York Methodist Conference of 1838, by the American Board of Commissioners for Foreign Missions, by the American Home Missionary Society, the American Bible Society, the Protestant Episcopal Church, and the Baptists. See for these statements, Hart, pp. 211-12.

The import of all this is unmistakable; and this "about-face" of religious organizations on the question of the morality of slavery has no parallel in all the history of Christian churches. Its significance cannot be overstated. It took place North and South. It meant opposition to a movement that was outside the church *and with which religion could have no concern, except in so far as it was a vital assault upon the State, and the peace of the State*. To make their opposition effective the Christians of that day did this remarkable thing. *They reversed their religious views on slavery, which the Abolitionists were now assailing, and which they themselves had previously opposed*. They re-examined their Bibles and found arguments that favored slavery. These arguments they used in an attempt to stem an agitation that, as they saw it, was arraying section against section and threatening the perpetuity of the Union.

United testimony from all these Christian bodies is more conclusive contemporaneous evidence against the agitators and their methods than even the proceedings of all conservative Boston at Faneuil Hall in August, 1835.

This new attitude of the church toward slavery meant perhaps also something further—it meant that slavery, as it actually existed, was not then as horrible to Northerners, who could go across the line and see it, which many of them did, as it is now to those whose ideas of it come chiefly from "Uncle Tom's Cabin."

In view of this phenomenal movement of Northern Christians it is not strange that Southern churches adhered, throughout the deadly struggle that was now on, to the position into which they had been driven—that slavery was sanctioned by the Bible—nor is it matter of wonder that, as Professor Hart makes prominent on p. 137, "not a single Southern man of large reputation and influence failed to stand by slavery."

Historians of to-day usually narrate without comment that nearly all the American churches and divines at first opposed the Abolitionists. It illustrates the courage with which the Abolitionists stood, as Dr. Hart delights to point out, "for a despised cause." They assuredly did stand by their guns.

Later, another change came about in the attitude of the churches. In 1844 the Abolitionists were to achieve their first victory in the great religious world. The Methodist Church was then disrupted, "squarely on the question whether a bishop could own slaves, and all the Southern members withdrew and organized the Methodist Episcopal Church, South." Professor Hart, p. 214, says of this: "Clearly, the impassioned agitation of the Abolitionists had made it impossible for a great number of Northern anti-slavery men *to remain on terms of friendship with their Southern brethren*."

That great Faneuil Hall meeting of August 31, 1835, was followed some weeks later by a lamentable anti-Garrison mob, which did not stand alone. In the years 1835, 1836, and 1837 a great wave of anti-Abolition excitement swept over the North. In New York, Philadelphia, Cincinnati, Alton (Illinois), and many other places, there were anti-Abolition riots, sometimes resulting in arson and bloodshed.

The heart of the great, peace-loving, patriotic, and theretofore happy and contented North, was at that time stirred with the profoundest indignation against the Abolitionists. Northern opinion then was that the Abolitionists, by their unpatriotic course and their nefarious methods, were driving the South to desperation and endangering the Union. If the North at that time saw the situation as it really was, the historian of the present day should say so. If, on the other hand, the people of both the North and South were then laboring under delusions, as to the facts that were occurring among them, those of this generation, who are wiser than their ancestors, should give us the sources of their information. To know the lessons of history we must have the facts.^[29]

In 1854, at Framingham, Massachusetts, the Abolitionists celebrated the Fourth of July thus: Their leader, William Lloyd Garrison, held up and burned to ashes, before the applauding multitude, one after another, copies of

1st. The fugitive slave law.

2d. The decision of Commissioner Loring in the case of Burns, a fugitive slave.

3d. The charge to the Grand Jury of Judge Benjamin R. Curtis in reference to the effort of a mob to secure a fugitive slave.

4th. "Then, holding up the United States Constitution, he branded it as the source and parent of all other atrocities, 'a covenant with death and an agreement with hell,' and consumed it to ashes on the spot, exclaiming, 'So perish all compromises with tyranny! And let all the people say, Amen!' A tremendous shout of 'Amen!' went up to heaven in ratification of the deed, mingled with a few hisses and wrathful exclamations from some, who evidently were in a *rowdyish* state of mind, but who were at once cowed by the popular feeling."^[30]

The Abolitionist movement was radical; it was revolutionary. When an accredited teacher of history, in one of the greatest of our universities, writes a volume on "Abolition and Slavery," why should he restrict himself in comment, as Dr. Hart thus does in his preface? The book is "intended to show that there was more than one side to the controversy, and that both the milder form of opposition called anti-slavery and *the extreme form called Abolition*, were confronted by *practical difficulties* which to many public men seemed insurmountable."

Why should not the historian, in addition to pointing out the "difficulties" encountered by these extremists, *show how and why the people of that day condemned their conduct?*

Condonation of the Abolitionists, and a proper regard for the Constitution of the United States, cannot be taught to the youth of America at one and the same time.

The writer has been unable to find any of the incendiary pamphlets that had proved so inflammatory. He has, however, before him a little anonymous publication entitled "Slavery Illustrated in its Effects upon Woman," Isaac Knapp, Boston, 1837. It was for circulation in the North, being "Affectionately Inscribed to all the Members of Female Anti-Slavery Societies," and it is only cited here as an illustration of the almost inconceivable venom with which the crusade was carried on to *embitter the North against the South*. It is a vicious attack upon the morality of Southern men and women, and upon Southern churches. None of its charges does it claim to authenticate, and it gives no names or dates. One incident, related as typical, is of two white women, all the time in full communion with their church, under pretence of a boarding-house, keeping a brothel, negro women being the inmates.

In the chapter entitled "Impurity of the Christian Churches" is this sentence: "At present the Southern Churches are only one vast consociation of hypocrites and sinners."

The booklet was published anonymously, but at that time any prurient story about slavery in the South would circulate, no matter whether vouched for or not.

CHAPTER IV

FEELING IN THE SOUTH—1835

Not stronger than the proceedings of a great non-partisan public meeting, or than the action of religious bodies, but going more into detail as to public opinion in the South and the effect upon it of Abolition agitation, is the evidence of a quiet observer, Professor E. A. Andrews, who, in July, 1835, had been sent out as the agent of "The Boston Union for the Relief and Improvement of the Colored Race." His reports from both Northern and Southern States, consisting of letters from various points, constitute a book, "Slavery and the Domestic Slave Trade," Boston, 1836.

July 17, 1835, from Baltimore, Professor Andrews reports that a resident clergyman, who appears to have his entire confidence, says, among other things, "that a disposition to emancipate their slaves is very prevalent among the slave-holders of this State, could they see any way to do so consistently with the true interest of the slave, but that it is their universal belief that no means of doing this is now presented except that of colonizing them in Africa."

From the same city, July 17, 1835, he writes, p. 53: "In this city there appears to be no strong attachment to slavery and no wish to perpetuate it."

Again, on p. 95: "There is but one sentiment amongst those with whom I have conversed in this city, respecting the possibility of the white and colored races living peaceably together in freedom, nor during my residence at the South and my subsequent intercourse with the Southern people, *did I ever meet with one who believed it possible for the two races to continue together after emancipation....* When the slaves of the South are liberated they form an integral part of the population of the country, and must influence its destiny for ages—perhaps forever."

From Fredericksburg, Virginia, Professor Andrews writes:

Since I entered the slave-holding country I have seen but one man who did not deprecate wholly and absolutely the direct interference of Northern Abolitionists with the institutions of the South. "I was an Abolitionist," has been the language of numbers of those with whom I have conversed; "I was an Abolitionist, and was laboring earnestly to bring about a prospective system of emancipation. I even saw, as I believed, the certain and complete success of the friends of the colored race at no distant period, when these Northern Abolitionists interfered, and by their extravagant and impracticable schemes frustrated all our hopes.... Our people have become exasperated, the friends of the slaves alarmed, etc....^[31] Equally united are they in the opinion that the servitude of the slaves is far more rigorous now than it would have been had there been no interference with them. *In proportion to the danger of revolt and insurrection, have been the severity of the enactments for controlling them and the diligence with which the laws have been executed.*"

From a private letter, written at Greenville, Alabama, August 30, 1835, by a distinguished lawyer, John W. Womack, to his brother, we quote:

The anti-slavery societies in the Northern and Middle States are doing all they can to destroy our domestic harmony by sending among us pamphlets, tracts, and newspapers—for the purpose of exciting dissatisfaction and insurrection among our slaves.... Meetings have been held in Mobile, in Montgomery, in Greensboro, and in Tuscaloosa, and in different parts of all the Southern States. At these meetings resolutions have been adopted, disclaiming (*sic*) and denying the right of the Northern people to interfere in any manner in our internal domestic concerns.... It is my solemn opinion that this question (to wit, slavery) will ultimately bring about a dissolution of the Union of the States.

It should be remembered that in 1832 the massacre in Santo Domingo of all the whites by the blacks was fresh in mind. It had occurred in 1814—after manumission—and had produced, especially in the minds of statesmen and of all observers of the many signs of antagonism between the two races, a profound and lasting impression.

The fear that the races, both free, could not live together was in the mind of Thomas Jefferson, of Henry Clay, and of every other Southern emancipationist. And deportation, its expense, and the want of a home to which to send the negro—here was a stumbling-block in the way of Southern emancipation.

Indeed, the incompatibility of the races was an appalling thought in the minds of Southerners for the whole thirty years of anti-slavery agitation. It was even with Abraham Lincoln, and weighed upon his mind when, at last, in 1862, military necessity placed upon his shoulders the responsibility of emancipating the Southern slaves. Serious as was the responsibility, the question was not new to him. When Mr. Lincoln said, in his celebrated Springfield speech in 1858, "I believe this government cannot endure permanently half slave and half free," and added that he did not expect the government to fail, he certainly expected that emancipation in the South was coming; and, of course, he thought over what the consequences might be.

In that same debate with Douglas, in his speech at Charleston, Illinois, Mr. Lincoln said: "There is a physical difference between the white and black races, which, I believe, will forever forbid the two races living together on terms of social and political equality."

In his memorial address on Henry Clay, in 1852, he had said: "If, as the friends of colonization hope, the present and coming generations of our countrymen shall by some means succeed in freeing our land from the dangerous presence of slavery, and at the same time in restoring a captive people to their long lost father-land, ... it will, indeed, be a glorious consummation. And if to such a contribution the efforts of Mr. Clay shall have contributed ... none of his labors will have been more valuable to his country and his kind."

In his famous emancipation proclamation he promised "that the effort to colonize persons of African descent upon this continent or elsewhere, with the consent of the government existing there, will be continued."

It must have been with a heavy heart that the great President announced the failure of all his efforts to find a home outside of America for the freedmen, *when he informed Congress in his December message, 1862, that all in vain he had asked permission to send the negroes, when freed, to the British, the Danish, and the French West Indies; and that the Spanish-American countries in Central America had also refused his request.* He could find no places except Hayti and Liberia. He even made the futile experiment of sending a ship-load to a little island off Hayti. ^[32] Hume, in "The Abolitionists," tells us that Mr. Lincoln for a time *considered setting Texas apart as a home for the negroes*—so much was he disturbed by this trouble.

CHAPTER V

ANTI-ABOLITION AT THE NORTH

Southerners, save perhaps a few who were wise enough to foresee what the consequences might be, were deeply gratified when they read (1835-1838) of the violent opposition in the North to the desperate schemes of the Abolitionists. Surely these mobs fairly represented public opinion, and that public opinion certainly was a strong guaranty to the South of future peace and security.

But the Abolitionists themselves were not dismayed. They may have misread, indeed it is certain they did misunderstand, the signs of the times. Garrison in his *Liberator* took the ground—as do his children in their life of him, written fifty years later—that the great Faneuil Hall meeting of August 31, 1835, which they themselves declare represented "the intelligence, the wealth, the culture, and the religion of Boston," was but an indication of the "pro-slavery" sentiment then existing. In reality it was just what it purported to be—an authoritative condemnation, not of the anti-slavery opinions, but of the avowed purposes and methods of the new sect. The mobbing of Garrison and the sacking of his printing office in Boston on September 26th, however, and the lawless violence to Abolitionists that followed the denunciations of that despised sect by speakers, and by the public press, in New York, in Philadelphia, in Cincinnati, and elsewhere in the North, proved disastrous in the extreme.

While that great wave of anti-Abolition feeling was sweeping over that whole region from East to West, there were many good people who deluded themselves with the idea that this new sect with its visionary and impracticable ideas was being consigned to oblivion, but in what followed we have a lesson that unfortunately some of our people have not yet fully learned. Mob law in any portion of our free country, where there is law with officers to enforce it, is a mistake, a mistake that is likely to be followed sooner or later by most disastrous results. The mobs that marked the beginning of our Revolution in 1774 were legitimate; they meant revolt, revolt against constituted authorities. But where a mob does not mean the overthrow of government, where it only means to substitute its own blind will for the arm of the law, not good but evil—it may be long deferred, but evil eventually—is sure to follow. When mobs assailed Abolitionists because they threatened the peace and tranquillity of the country, evil followed swiftly.

Violent and harsh treatment of these mischievous agitators almost everywhere in the North, and the heroism with which they endured ignominy and insult, brought about a revulsion of public sentiment. To understand the philosophy of this, read two extracts from the writings of that great, and universally admired, pulpit orator, Dr. William E. Channing of Boston, the first written sometime prior to that August meeting:

The adoption of the common system of agitation by the Abolitionists has not been justified by success. From the beginning it has created alarm in the considerate, and strengthened the sympathies of the Free States with the slave-holder. It has made converts of a few individuals, but alienated multitudes. *Its influence at the South has been almost wholly evil. It has stirred up bitter passions, and a fierce fanaticism, which have shut every ear and every heart against its arguments and persuasions.* These efforts are more to be deplored, because the hope of freedom to the slave lies chiefly in the dispositions of his master. The Abolitionist proposed indeed to convert the slave-holder; and for this end he *approached them with vituperation, and exhausted upon them the vocabulary of reproach.* And he has reaped as he sowed.... Perhaps (though I am anxious to repel the thought) something has been lost to the cause of freedom and humanity. ^[33]

These were Dr. Channing's opinions of the Abolitionists prior to August, 1835, and he seems to have kept silent for a time after the mobbing that followed that great Faneuil Hall meeting; but a year later, when many other things had happened along the same line, he spoke out in an open letter to James G. Birney, an Abolitionist editor who had been driven from Cincinnati, and whose press, on which *The Philanthropist* was printed, had been broken up. In that letter, p. 157, *supra*, speaking of course not for himself alone, Dr. Channing says:

I think it best ... to extend my remarks to the spirit of violence and persecution which has broken out against the Abolitionists throughout the whole country. Of their merits and demerits as Abolitionists I have formerly spoken.... I have expressed my fervent attachment to the great end to which they are pledged and at the same

time my disapprobation, to a certain extent, of their spirit and measures.... Deliberate, systematic efforts have been made, *not here and there, but far and wide*, to wrest from its adherents that *liberty of speech and the press*, which our fathers asserted in blood, and which our National and State Governments are pledged to protect as our most sacred right. Its most conspicuous advocates have been hunted and stoned, its meetings scattered, its presses broken up, and nothing but the patience, constancy and intrepidity of its members has saved it from extinction.... They are *sufferers for the liberty of thought, speech and press; and in maintaining this liberty, amidst insult and violence, they deserve a place among its honorable defenders*.

Still admitting that "their writings have been blemished by a spirit of intolerance, sweeping censure, and rash, injurious judgment," this great man now threw all the weight of his influence on the side of the Abolitionists, because they were *the champions of free speech*. Their moral worth and steady adherence to their ideas of non-resistance he pointed to admiringly, and it must always be remembered to their credit that the private lives of Garrison and his leading co-workers were irreproachable. Indeed, the unselfish devotion of these agitators and their high moral character were in themselves a serious misfortune. They soon attracted a lot of zealots, male and female, who became as reckless as they were. And these out-and-out fanatics were not themselves office-seekers. What they feared, they said, was that a "lot of soulless scamps would jump on to their shoulders to ride into office";^[34] and there really was the great danger, as appeared later.

In the results that followed the mobbing of Abolitionists in the North, from 1834 to 1836, is to be found another lesson for those voters of this day who can profit by the teachings of history. The violent assaults on the Abolitionists by the friends of the Constitution and the Union constituted an epoch in the lives of these people. It gave them a footing and a hearing and many converts.

We have already noted some wonderful and instructive changes in the tide of events set in motion by the radical teachings of the New Abolitionists. The churches, as has been shown, to save the country, North and South, changed their attitude on slavery itself. Dr. Channing, who had opposed the methods of the Abolitionists, became, as many others did with him, when mobs had assailed these people, their defender and eulogist, because they were martyrs for the sake of free speech; and now we are to see in John Quincy Adams another change, equally notable, a change that was to make Mr. Adams thenceforward the most momentous figure, at least during its earlier stages, in the tragic drama that is the subject of our story.

Elected to the House of Representatives after the expiration of his term as President, Mr. Adams was not in sympathy with the methods of the Abolitionists. Indeed, prior to December 31, 1831, he had shown as little interest in slavery as he did when on that day in presenting to the House fifteen petitions against slavery he "deprecated a discussion which would lead to ill-will, to heart-burning, to mutual hatred ... without accomplishing anything else."^[35]

The petitions presented by Mr. Adams were referred to a committee.

The Southerners had not then become so exasperated as to insist on Congress refusing to receive Abolition petitions. But multiplying these petitions was a ready means of provoking the slave-holders, and soon petitions poured in from many quarters, couched, most of them, in language, not disrespectful to Congress but provoking to slave-holders.

Unfortunately, the lower house of Congress on May 26, 1836, which was while mobs in the North were still trying to put down the Abolitionists, passed a resolution that all such petitions, etc., should thereafter be laid upon the table, *without further action*. Adams voted against it as "a direct violation of the Constitution of the United States." The Constitution forbids any law "abridging the freedom of speech ... or the right ... to petition the government for a redress of grievances." The resolution to lay all anti-slavery petitions on the table without further action was passed, "with the hope that it might put a stop to the agitation that seemed to endanger the existence of the Union." But it had the opposite effect. It soon became known as the "gag resolution," and was, for years, the centre of the most aggravating discussions that had, up to that time, ever occurred in Congress. Mr. Adams in these debates became, without, it seems, ever having been in full sympathy with the agitators, thenceforward their champion in Congress, and so continued until the day of his death in 1848.

The Abolitionists were happy. They were succeeding in their programme—making the Southern slave-holder odious by exasperating him into offending Northern sentiment.

CHAPTER VI

A CRISIS AND A COMPROMISE

In 1840 there were 200 Abolition societies, with a membership of over 200,000. Agitation had created all over the North a spirit of hostility to slavery as it existed in the South, and especially to the admission of new slave States into the Union. In 1840 the struggle over the application of Texas for admission into the Union had already, for three years, been mooted. Objections to the admission of the new State were many, such as: American adventurers had wrongfully wrested control of the new State from Mexico; boundary lines were unsettled; war with Mexico would follow, etc.; but chiefly, Texas was a slave State, which was, in the South, a strong reason for annexation. There were, however, many sound and unanswerable arguments for the admission of the new State, just such as had influenced Jefferson in purchasing the Louisiana territory: Texas was contiguous, her territory and resources immense.

On the issue thus joined the first great gun had been fired by Dr. Channing, who, though still more moderate than some, might now be classed as an Abolitionist. August 1, 1837, he wrote a long open letter to Henry Clay against annexation, and in that letter he said:

To me it seems not only the right but the duty of the Free States, in case of the annexation of Texas, to say to the slave-holding States, "We regard this act as the dissolution of the Union; the essential conditions of the National Compact are violated."^[36]

This was very like the pronunciamiento already made by Garrison—"no union with slavery."

The underlying reasons that controlled Southern statesmen in this contest over Texas, and the motives that animated them in the fierce battles they fought later for new slave States, are thus stated by Mr. George Ticknor Curtis, of New England.^[37]

It should in justice be remembered that the effort at that period to enlarge the area of slavery was an effort on the part of the South, dictated by a desire to remain in the Union, and not to accept the issue of an inherent incompatibility of a political union between slave-holding and non-slave-holding States.

In 1840 the first effort for the annexation of Texas, by treaty, was defeated in the Senate.

If the Southerners had been as ready to accept the doctrine of an inherent incompatibility between slave and free States as were Dr. Channing and those other Abolitionists who were now declaring for "no union with slave-holders," they would at once have seceded and joined Texas; but the South still loved the Union, and strove, down to 1860, persistently, and often passionately, for power that would enable it to remain safely in its folds.

Texas was finally admitted in 1845, after annexation had been passed on by the people in the presidential election of 1844. In that election Clay was defeated by the Abolitionists. Because Clay was not unreservedly against annexation the Abolitionists drew from the Whigs in New York State enough votes, casting them for Birney, to defeat Clay and elect Polk; and now Abolitionism was a factor in national politics.

The two great national parties were the Democrats and the Whigs, the voters somewhat equally divided between them. For years both parties had regarded the Abolitionists precisely as did the non-partisan meeting at Faneuil Hall, in August, 1835—as a band of agitators, organized for the purpose of interfering with slavery where it was none of their business; and both parties had meted out to this new and, as they deemed it, pestilent sect, unstinted condemnation. But at last the voters of this despised cult had turned a presidential election and were making inroads in both parties. Half a dozen Northern States, in which in 1835 "no protest had been made against the fugitive slave law of 1793," had already passed "personal liberty laws" intended to obstruct and nullify that law. And now it was "slave-catchers" and not Abolitionists who were being mobbed in the North.

Boston had reversed its attitude toward the Abolitionists. On May 31, 1849, the New England Anti-Slavery Society was holding its annual convention in that very Faneuil Hall where, in 1835, Abolitionism had been so roundly

condemned; and now Wendell Phillips, pointing to one of two fugitive slaves, who then sat triumphantly on the platform, said, "amid great applause, ... 'We say that they may make their little laws in Washington, but that *Faneuil Hall repeals them*, in the name of the humanity of Massachusetts.'" ^[38]

Poets headed by Whittier and Longfellow, authors like Emerson and Lowell, and orators like Theodore Parker and Wendell Phillips, had joined the agitators, and all united in assaulting the fugitive slave law. The following, from James Russell Lowell's "Biglow Papers," No. 1, June, 1840, is a specimen of the literature that was stirring up hostility against slavery and the "slave-catcher" in the breasts of many thousands, who were joining in an anti-slavery crusade while disdaining companionship with the Abolitionists:

"Ain't it cute to see a Yankee
Take such everlastin' pains
All to get the Devil's Thankee
Helpin' on 'em weld their chains?"
W'y it's jest es clear es figgers,
Clear es one and one makes two,
Chaps that makes black slaves of niggers
Want to make w'ite slaves o' you.

In the meantime the people of the South, much excited, were resorting to repression, passing laws to prevent slaves from being taught to read, and laws, in some States, inhibiting assemblages of slaves above given numbers, unless some white person were present—all as safeguards against insurrection. Thus, in 1835, an indictment was found in Tuscaloosa County, Alabama, against one Williams, who had never been in Alabama, for circulating there an alleged incendiary document, and Governor Gayle made requisition on Governor Marcy, of New York, for the extradition of Williams. Governor Marcy denied the request. The case was the same as that more recently decided by the Supreme Court of the United States, when it held that editors of New York and Indiana papers could not be brought to the District of Columbia for trial.

The South, all the while clamoring to have the agitators put down, had by still other means than these contributed to the ever-increasing excitement in the North. Southerners had mobbed Abolitionists, and whipped and driven out of the country persons found in possession of *The Liberator* or suspected of circulating other incendiary literature. And violence in the South against the Abolitionists had precisely the same effect on the Northern mind as the violence against them in the North had from 1835 to 1838, but there was this difference: the refugee from the distant South, whether he were an escaped slave or a fleeing Abolitionist, could color and exaggerate the wrongs he had suffered and so parade himself as a martyr. While this was true, it was also quite often true that the outrage committed in the South against the suspect was real enough—a mob had whipped and expelled him without any trial. *And this is another of the lessons as to the evil effects of mob law that crop out all through the history of the anti-slavery crusade. No good can come from violating the law.*

In 1848 another presidential election turned on the anti-slavery vote, this time again in New York State. Anti-slavery Democrats bolted the Democratic ticket, thus electing General Taylor, the Whig candidate.

In the canvass preceding this election originated, we are told, the catch-phrase applied to Cass, the Democratic candidate—"a Northern man with Southern principles." The phrase soon became quite common, South and North—"a Southern man with Northern principles," and *vice versa*.

The invention and use of it in 1848 shows the progress that had been made in arraying one section of the Union against the other. Later, a telling piece of doggerel in Southern canvasses, and it must also have been used North, was

He wired in and wired out,
Leaving the people all in doubt,
Whether the snake that made the track
Was going North, or coming back.

Over the admission of California in 1849 there was another battle. California, 734 miles long, with about 50,000 people (less than the usual number), and with a constitution improvised under military government, applied for admission as a State. Southerners insisted on extending the line of the Missouri Compromise to the Pacific, thereby making of the new territory two States. The South had been much embittered by the opposition to the admission of

Texas. Texas was, nearly all of it, below the Missouri Compromise line, and the South thought it was equitably entitled to come in under that agreement. Its case, too, differed from that of Missouri, which already belonged to the United States when it applied for admission as a State. Texas, with all its vast wealth, was asking to come in without price.

Another continuing and increasing cause of distraction had been the use made by Abolitionists of the right of petition. As already shown, petitions to Congress against slavery had been received without question till 1836, when Northern conservatives and Southern members, hoping to abate this source of agitation, had combined to pass a resolution to lay them on the table, which meant that they were to be no further noticed. The Abolitionists were so delighted over the indefensible position into which they had driven the conservatives—the "gag law"—that they continued, up to the crisis of 1850, with unflagging zeal to hurry in monster petitions, one after another. The debates provoked by the presentation of these petitions, and the more and more heated discussions in Congress of *slavery in the States*, which was properly *a local and not a national question*, now attracted still wider public attention. The Abolitionists had almost succeeded in arraying the entire sections against each other, in making of the South and North two hostile nations. Professor John W. Burgess, dean of the Faculty of Political Science in Columbia University, says: "It would not be extravagant to say that the whole course of the internal history of the United States from 1836 to 1861 was more largely determined by the struggle in Congress, over the *Abolition petitions* and the use of the mails for the Abolition literature, than anything else."^[39]

The South had its full share in the hot debates that took place over these matters in Congress. Its congressmen were quite as aggressive as those from the North, and they were accused of being imperious in manner, when demanding that a stop should be put to Abolition petitions, and Abolition literature going South in the mails.

There was another cause of complaint from the South, and this was grave. By the "two underground railroads" that had been established, slaves, estimated at 2,000 annually, abducted or voluntarily escaping, were secretly escorted into or through the free States to Canada. To show how all this was then regarded by those who sympathized with the Abolitionists, and how it is still looked upon by some modern historians, the following is given from Hart's "Abolition and Slavery":

"The underground railroad was manned chiefly by orderly citizens, members of churches, and philanthropical citizens. *To law-abiding folk* what could be more delightful than the sensation of aiding an oppressed slave, *exasperating* a cruel master, and at the same time incurring the penalties of *defying an unrighteous law*?"

Southerners at that time thought that conductors on that line were practising, and readers of the above paragraph will probably think that Dr. Hart in his attractive rhetoric is now extolling in his history, "higher law doctrines."

It is undoubtedly true that, in 1850, a large majority of the Northern people strongly disapproved of the Abolitionists and their methods. Modern historians carefully point out the difference between the great body of Northern anti-slavery people and the Abolitionists. Nevertheless, here were majorities in eleven Northern States voting for, and sustaining, the legislators who passed and kept upon the statute books laws which were intended to enable Southern slaves to escape from their masters. The enactment and the support of these laws was an attack upon the constitutional rights of slave-holders; and Southern people looked upon all the voters who sustained these laws, and all the anti-slavery lecturers, speakers, pulpit orators, and writers of the North, as engaged with the Abolitionists in one common crusade against slavery. From the Southern stand-point a difference between them could only be made by a Hudibras:

He was in logic a great critic
Profoundly skilled in analytic,
He could distinguish and divide
A hair 'twixt South and South West side.

As to how much of the formidable anti-slavery sentiment of that day had been created by the Abolitionists, we have this opinion of a distinguished English traveller and observer. Mr. L. W. A. Johnston was in Washington, in 1850, studying America. He says:

"Extreme men like Garrison seldom have justice done to them. It is true they may be impracticable, both as to their measures and their men, but that unmixed evil is the result of their exertions, all history of opinion in every country, I think, contradicts. Such ultra men are as necessary as the more moderate and reasonable advocates of any growing opinion; and, as *an impartial person*, who never happened to fall in with one of the party in the course of my tour, I must express my belief that the present wide diffusion of anti-slavery sentiment in the United States is, in no small degree, owing to their exertions."^[40]

And Professor Smith, of Williams College, speaking of the anti-slavery feeling in the North in 1850, says:

"This sentiment of the free States regarding slavery was to a large degree the result of an agitation for its abolition which had been active for a score of years (1831-1850) without any positive results."^[41]

But no matter what had produced it, the anti-slavery sentiment that pervaded the North in 1850 boded ill to slavery and to the Constitution, and the South was bitterly complaining. Congress met in December, 1849, and was to sit until October, 1850. Lovers of the Union, North and South, watched its proceedings with the deepest anxiety. The South was much excited. The continual torrent of abuse to which it was subjected, the refusal to allow slavery in States to be created from territory in the South-west that was below the parallel of the Missouri Compromise, and the complete nullification of the fugitive slave law, seemed to many to be no longer tolerable, and from sundry sources in that section came threats of secession.

In 1849-50 the South was demanding a division of California, an efficient fugitive slave law, and that the territories of New Mexico and Arizona should be organized with no restrictions as to slavery. Other minor demands were unimportant.

Henry Clay, Daniel Webster, Stephen A. Douglas, Lewis Cass, and other conservative leaders came forward and, after long and heated debates in Congress, the Compromise of 1850 was agreed on. To satisfy the North, California, as a whole, came in as a free State, and the slave trade was abolished in the District of Columbia. To satisfy the South, a new and stringent fugitive slave law was agreed on, and the territories of New Mexico and Arizona were organized with no restrictions as to slavery.

In bringing about this compromise, Daniel Webster was, next to Clay, the most conspicuous figure. He was the favorite son of New England and the greatest statesman in all the North. On the 7th of March, 1850, Mr. Webster made one of the greatest speeches of his life on the Compromise measures. Rising above the sectional prejudices of the hour, he spoke for the Constitution and the Union. The manner in which he and his reputation were treated by popular historians in the North, for half a century afterward, on account of this speech, is the most pathetic and, at the same time, the most instructive story in the whole history of the anti-slavery crusade.

Mr. Webster was under the ban of Northern public opinion for all this half a century, not because of inconsistency between that speech and his former avowals, an averment often made and never proven, but because he was consistent. He stood squarely upon his record, and the venom of the assaults that were afterward made upon him was just in proportion to the love and veneration which had been his before he offended. His offence was that he would not move with the anti-slavery movement.^[42] He did not stand with his section in a sectional dispute.

Henry Clay, old and feeble, had come back into the Senate to render his last service to his country. He was the author of the Compromise. Daniel Webster was everywhere known as the champion of the Union. Henry Clay was known as the "Old Man Eloquent," and he now spoke with all his old-time fire; but Webster's great speech probably had more influence on the result.

Before taking up Mr. Webster's speech his previous attitude toward slavery must be noted. The purpose of the friends of the Union was, of course, to effect a compromise that would, if possible, put an end to sectional strife. Compromise means concession, and a compromise of political differences, made by statesmen, may involve some concession of view previously held by those who advocate as well as by those who accept it. Webster thought his section of the Union should now make concessions.

Fanaticism, however, concedes nothing; it never compromises, although statesmanship does. One of the most notable utterances of Edmund Burke was:

"All government, indeed every human benefit and enjoyment, every virtue and every prudent act, is founded on compromise and barter."

Great statesmen, on great occasions, speak not only to their countrymen and for the time being, but they speak to all mankind and for all time. So spoke Burke in that famous sentence when advocating, in the British Parliament in 1776, "conciliation with America"; and so did Daniel Webster speak, in the Senate of the United States, on the 7th of March, 1850, for "the Constitution and the Union." If George III and Lord North had heeded Burke, and if the British government and people, from that day forth, had followed the wise counsels given in that speech by their greatest statesman, all the English-speaking peoples of the world, now numbering over 170,000,000, might have been to-day under one government, that government commanding the peace of the world. And if all the people of the United States in 1850 and from that time on, had heeded the words of Daniel Webster, we should have been spared the bloodiest war in the book of time; every State of the Union would have been left free to solve its own domestic problems, and it is not too much to say that these problems would have been solved in full accord with the advancing civilization of the age.

The sole charge of inconsistency against Webster that has in it a shadow of truth relates to the proposition he made in his speech as to the "Wilmot proviso." That celebrated proviso was named for David Wilmot, of Pennsylvania, its author. It provided against slavery in all the territory acquired from Mexico. The South had opposed the Wilmot proviso because the territory in question, much of it, was south of the Missouri Compromise

line extended. Mr. Webster had often voted for the Wilmot proviso, as all knew. In his speech for the Compromise, by which the South was urged to and did give up its contentions as to the admission of California, and its contentions as to the slave trade in the District of Columbia, Webster argued that *the North might forego* the proviso as to New Mexico and Arizona for the reason that the proviso was, as to these territories, *immaterial*. Those territories, he argued, would never come in as slave States, because the God of nature had so determined. Climate and soil would forbid. Time vindicated this argument. In 1861 Charles Francis Adams said, in Congress, that New Mexico, open to slave-holders and their slaves for more than ten years, then had only twelve slaves domiciled on the surface of over 200,000 square miles of her extent. ^[43]

Daniel Webster's services to the cause of the Union, the preservation of which had been the passion of his life, had been absolutely unparalleled. It is perhaps true that without him Abraham Lincoln and the armies of the Union in 1861-65 would have been impossible. The sole and, as he then stated and as time proved, immaterial concession this champion of the Union now (1850) made for the sake of preserving the Union was his proposition as to New Mexico and Arizona.

Henry Clay spoke before Webster. These words were the key-note of Clay's great speech: "In my opinion the body politic cannot be preserved unless this agitation, this distraction, this exasperation, which is going on between the two sections of the country, shall cease."

The country waited with anxiety to hear from Webster. Hundreds of suggestions and appeals went to him. Both sides were hopeful. ^[44] Anti-slavery people knew his aversion to slavery. He had never countenanced anti-slavery agitation, but he had voted for the Wilmot proviso. They knew, too, that he had long been ambitious to be President, and, carried away by their enthusiasm, they hoped that Webster would swim along with the tide that was sweeping over the majority section of the Union. In view of Mr. Webster's past record, however, it would be difficult to believe that Abolitionists were really disappointed in him had we not many such proofs as the following stanza from Whittier's ode, published after the speech:

Oh! dumb be passing, stormy rage

When he who might
Have lighted up and led his age
Falls back in night!

The conservatives also were hopeful. They knew that, though Webster had always been, as an individual, opposed to slavery, he had at all times stood by the Constitution, as well as the Union. At no time had he ever qualified or retracted these words in his speech at Niblo's Garden in 1839: "Slavery, as it exists in the States, is beyond the reach of Congress. It is a concern of the States themselves. They have never submitted it to Congress, and Congress has no rightful power over it. I shall concur therefore in *no act, no measure, no menace*, no indication of purpose which *shall interfere or threaten to interfere with the exclusive authority* of the several States over the subject of slavery, as it exists within their respective limits. All this appears to me to be matter of plain imperative duty."

Nullifying the fugitive slave law was a plain "interference" with the rights of the slave States.

Mr. Webster's intent, when he spoke on the Compromise measures, is best explained by his own words, on June 17, while these measures were still pending: "Sir, my object is peace. My object is reconciliation. My purpose is not to make up a case *for the North* or a case *for the South*. My object is not to continue useless and irritating controversies. I am against agitators, North and South, and all narrow local contests. I am an American, and I know no locality but America."

In his speech made on the 7th of March he dwelt at length on existing conditions, on the attitude of the North toward the fugitive slave law, and argued fully the questions involved in the "personal liberty" laws passed by Northern States. Referring to the complaints of the South about these, he said: "In that respect *the South, in my judgment, is right and the North is wrong*. Every member of every Northern legislature is bound by oath, like every other officer in the country, to support the Constitution of the United States; and the article of the Constitution which says to these States that they shall deliver up fugitives from service *is as binding in honor and conscience as any other article*. No man fulfils his duty in any legislature

who sets himself to find excuses, evasions, escapes, from this constitutional obligation."

And further on he said: "Then, sir, there are the Abolition societies, of which I am unwilling to speak, but in regard to which I have very clear notions and opinions. I do not think them useful. *I think their operations for the last twenty years have produced nothing good or valuable.... I cannot but see what mischief their interference with the South has produced.*"

In these statements is the substance of Webster's offending.

Webster's speech was followed, on the 11th of March, by the speech of Senator Seward, of New York, in the same debate. Quoting the fugitive slave provision of the Federal Constitution, Mr. Seward said: "This is from the Constitution of the United States in 1787, and the parties were the Republican States of the Union. The law of nations *disavows such compacts; the law of nature, written on the hearts and consciences of freemen, repudiates them.*"^[45] The people of the North, instead of following Webster, chose to follow Seward, the apostle of a *law higher than the Constitution*; and when, ten years later, it appeared to them that the whole North had given in its adhesion to the "higher law" doctrine, the people of eleven Southern States seceded, and put over themselves in very substance the Constitution that Seward had flouted and Webster had pleaded for in vain.

Anti-slavery enthusiasts in the North generally, and Abolitionists especially, in their comments on Webster's speech scouted the idea that the preservation of the Union depended upon the faithful execution of the fugitive slave law or the cessation of anti-slavery agitation. "What," said Theodore Parker, "cast off the North! They set up for themselves! Tush! Tush! Fear boys with bugs!... I think Mr. Webster knew there was no danger of a dissolution of the Union."^[46]

The immediate effect of the speech was wonderful; congratulations poured in upon Mr. Webster from conservative classes in every quarter, and he must have felt gratified to know that he had contributed greatly to the enactment of measures that, for a time, had some effect in allaying sectional strife. But the revilings of the Abolitionists prevailed, and it turned out that Daniel Webster, great as he was, had undertaken a task that was too much

even for him. His enemies struck out boldly at once: and years afterward, when the anti-slavery movement that Webster's appeals could not arrest had culminated in secession, and when the Union had been saved by arms, the triumphant hosts of the anti-slavery crusade all but succeeded in writing Daniel Webster down permanently in the history of his country as an apostate from principle for the sake of an office he did not get. Here is their verdict, which Mr. Lodge, a biographer of Webster, passes on into history:

"The *popular verdict* has been given against the 7th of March speech, *and that verdict has passed into history*. Nothing can be said or done which will alter the fact that the people of this country, *who maintained and saved the Union, have passed judgment on Mr. Webster*, and condemned what he said on the 7th of March as *wrong in principle and mistaken in policy*."

Here are specimens of the assaults that were made on Webster after his speech. They are selected from among many given by one of his biographers.^[47]

"'Webster,' said Horace Mann, 'is a fallen star! Lucifer descended from Heaven.'... 'Webster,' said Sumner, 'has placed himself in the dark list of apostates.' When Whittier named him Ichabod, and mourned for him in verse as one dead, he did but express the feeling of half New England:

'Let not the land once proud of him
Mourn for him now,
Nor brand with deeper shame his dim
Dishonored brow.
* * * * *
Then pay the reverence of old days
To his dead fame!
Walk backward with averted gaze
And hide his shame.'

After much more to the same effect, Professor McMaster proceeds: "The attack by the press, the *expressions of horror* that rose from New England, Webster felt keenly, but the absolute isolation in which he was left by his New England colleagues cut him to the quick."^[48]

On Mr. Webster's speech, its purpose and effect, we have this opinion from Mr. Lodge:

"The speech, if exactly defined, is in reality a powerful effort, not for a compromise, or for the fugitive slave law, or for any other one thing, *but to arrest the whole anti-slavery movement, and in that way put an end to the danger which threatened the Union and restore harmony to the jarring sections.*"

And then he adds:

"*It was a mad project. Mr. Webster might as well have attempted to stay the incoming tide at Marshfield with a rampart of sand, as to check the anti-slavery movement with a speech.*"

To undertake at this time to arrest the whole anti-slavery movement by holding up the Constitution was indeed useless.

Seward, who had spoken for the "higher law," was riding on the tide of anti-slavery sentiment that was submerging "the Sage of Marshfield," who had stood for the Constitution. Seward's reputation, in the years following, went steadily up, while Webster's was going down. Webster died, in dejection, in 1852.

Seward, at Rochester, in 1854, later on in the same crusade, made another famous declaration—there was an "irrepressible conflict between slavery and freedom." The conflict was "irrepressible," as Seward well knew; and this was simply and solely because the anti-slavery crusade could not be suppressed. Clay and Webster, now both dead and gone, had tried it in vain. Every one knew that if, in 1850, or at any other time, the anti-slavery hosts had halted, and asked for, or consented to, peace, they could have had it at once.

Mr. Lodge, in the following paragraph, seems to have almost made up his mind to defend Webster. He says: "What most shocked the North were his utterances in regard to the fugitive slave law. There can be no doubt that, *under the Constitution*, the South had a *perfect right* to claim the extradition of fugitive slaves. The legal *argument to support that right was excellent.*" This would seem to justify the speech in that regard. "But," Mr. Lodge adds, "the Northern people could not feel that it was *necessary* for *Daniel Webster*

to make it." They wanted him to be sectional or to hold his tongue. Then Mr. Lodge goes on to say: "The fugitive slave law was in *absolute conflict with the awakened conscience and moral sentiment of the North.*"

The conscience of *the North* at that time, Mr. Lodge means, was a *higher law* than the *Constitution*; and Webster's "excellent argument," therefore, fell on deaf ears.

No American historian stands higher as an authority than Mr. Rhodes. He says on page 161, vol. I, of his "History of the United States," published in 1892: "*Until the closing years of our century a dispassionate judgment could not be made of Webster*; but we see now that in the war of secession his principles were mightier than those of Garrison. It was not 'No Union with slave-holders,' but *Liberty and Union* that won."

This tribute to services Webster had rendered to the Union in his great speech in 1850, in which he advocated "Liberty and Union, now and forever," exactly as he was advocating it in 1830, is just. How pathetic that the historian was impelled also to record the fact, in the same sentence, that for nearly half a century partisan prejudice had rendered it impossible to form a dispassionate judgment of him who had pleaded in vain for the Union without war!

After an able analysis of his "7th of March speech," and a discussion of his record, in which he paralleled Webster and Edmund Burke, Mr. Rhodes declares: "His dislike of slavery was strong, but his love of the Union was stronger, and the more powerful motive outweighed the other, for he believed that *the crusade against slavery had arrived at a point where its further prosecution was hurtful to the Union*. As has been said of Burke, 'He changed his front but he never changed his ground.'"^[49]

Daniel Webster's name and its place in history may be likened to a giant oak, a monarch of the forest, that, while towering high above all others, was stripped of its branches; for a time it stood, a rugged trunk, robbed of its glory by a cyclone; but its roots were deep down in the rich earth; the storm is passing away; the tree has put out buds again; now its branches are stretching out once more into the clear reaches of the upper air.

Mr. Rhodes seems to be the first historian of note to do justice to Daniel Webster and the great speech which, McMaster takes pains to inform us, historians have written down as his "7th of March speech," in spite of the fact that Mr. Webster himself entitled it "The Constitution and the Union."

Other historians besides Mr. Rhodes have come to the rescue of Webster's speech for "the Constitution and the Union." Mr. John Fiske says of it in a volume (posthumous) published in 1907: "So far as Mr. Webster's moral attitude was concerned, although he was not prepared for the bitter hostility that his speech provoked in many quarters, he must nevertheless have known it was quite as likely to injure him at the North as to gain support for him in the South, and his resolute adoption of a policy that he regarded as national rather than sectional was really an instance of high moral courage."

[\[50\]](#)

Mr. William C. Wilkinson has recently written an able "Vindication of Daniel Webster," and, after a conclusive argument on that branch of his subject, he says: "Webster's consistency stands like a rock on the shore after the fretful waves are tired with beating upon it in vain."[\[51\]](#)

Mr. E. P. Wheeler, concluding a masterly sketch of Daniel Webster, setting forth his services as statesman and expounder of the Constitution, and not deigning to notice the partisan charges against him, concludes with these words:

"Great men elevate and ennoble their countrymen. In the glory of Webster we find the glory of our whole country."

The story of Daniel Webster and his great speech in 1850 has been told at some length because it is instructive. The historians who had set themselves to the task of upholding the idea that it was the aggressiveness of the South, during the controversy over slavery, and not that of the North, that brought on secession and war, could not make good their contention while Daniel Webster and his speech for "the Constitution and the Union" stood in their way. They, therefore, wrote the great statesman "down and out," as they conceived. But Webster and that speech still stand as beacon lights in the history of that crusade. The attack came from the North. The South, standing for its constitutional rights in the Union, was the conservative party. Southern leaders, it is true, were, during the controversy over slavery,

often aggressive, but they were on the defensive-aggressive, just as Lee was when he made his campaign into Pennsylvania for the purpose of stopping the invasion of his own land; and the South lost in her political campaign just for the same reason that Lee lost in his Gettysburg campaign: numbers and resources were against her. "The stars in their courses fought against Sisera."

Mr. Webster in his great speech for "the Constitution and the Union," as became a great statesman pleading for conciliation, measured the terms in which he condemned "personal liberty" laws and Abolitionism. But afterward, irritated by the attacks made upon him, he naturally spoke out more emphatically. McMaster quotes several expressions from his speeches and letters replying to these assaults, and says: "His hatred of Abolitionists and Free-soilers grew stronger and stronger. To him these men were a 'band of sectionalists, narrow of mind, wanting in patriotism, without a spark of national feeling, and quite ready to see the Union go to pieces if their own selfish ends were gained.'" Such, if this is a fair summing up of his views, was Webster's final opinion of those who were carrying on the great anti-slavery crusade. [\[52\]](#)

CHAPTER VII

EFFORTS FOR PEACE

The desire for peace in 1850 was wide-spread. Union loving people, North and South, hoped that the Compromise would result in a cessation of the strife that had so long divided the section; and the election of Franklin Pierce, in 1852, as President, on a platform strongly approving that Compromise, was promising. But anti-slavery leaders, instead of being convinced by such arguments as those of Webster, were deeply offended by the contention that legislators, in passing personal liberty laws, had violated their oaths to support the Constitution. They were angered also by the presumptuous attempt to "arrest the whole anti-slavery movement."

The new fugitive slave law was stringent; it did not give jury trial; it required bystanders to assist the officers in "slave-catching," etc. For these and other reasons the law was assailed as unconstitutional. All these contentions were overruled by the Supreme Court when a case eventually came before it. The court decided that the act was, in all its provisions, fully authorized by the Constitution.^[53] But in their present mood, no law that was efficient would have been satisfactory to the multitudes of people, by no means all "Abolitionists," who had already made up their minds against the "wicked" provision of the Constitution that required the delivery of fugitive slaves. This deep-seated feeling of opposition to the return to their masters of escaping slaves was soon to be wrought up to a high pitch by a novel that went into nearly every household throughout the North—"Uncle Tom's Cabin." On its appearance the poet Whittier, who had so ferociously attacked Webster in the verses quoted in the last chapter, "offered up thanks for the fugitive slave law, for it gave us 'Uncle Tom's Cabin.'"

Rufus Choate, a celebrated lawyer and Whig leader, is reported to have said of "Uncle Tom's Cabin": "That book will make two millions of Abolitionists." Drawing, as it did, a very dark picture of slavery, it aroused sympathy for the escaping slave and pictured in glowing colors the dear, sweet men and women who dared, for his sake, the perils of the road in the

darkness of night and all the dangers of the law. Mrs. Stowe was *making heroes of law-breakers, preaching the higher law.*

Mrs. Stowe declared she had not written the book for political effect; she certainly did not anticipate the marvellous results that followed it. That book made vast multitudes of its readers ready for the new sectional and anti-slavery party that was to be organized two years after its appearance. It was the most famous and successful novel ever written. It was translated into every language that has a literature, and has been more read by American people than any other book except the Bible. As a picture of what was conceivable under the laws relating to slavery there was a basis for it. Though there were laws limiting the master's power, cruelty was nevertheless possible.

Here, then, Mrs. Stowe's imagination had full scope. Her book, however, has in it none of the strident harshness, none of the purblind ferocity of Garrison, in whose eyes every slave-holder was a fiend. "Uncle Tom's Cabin" assailed a system; it did not assault personally, as the arch-agitator did, every man and woman to whom slaves had come, whether by choice or chance. Light and shadow and the play of human nature made Mrs. Stowe's picture as attractive in many of its pages as it was repulsive and unfair in others. Mrs. Shelby was a type of many a noble mistress, a Christian woman, and when financial misfortunes compelled the sale of the Shelby slaves and the separation of families, we have not only what might have been, but what sometimes was, one of the evils of slavery, which, by reason of the prevailing agitation, the humanity of the age could not remedy. But Mrs. Stowe's slave-master, Legree, was impossible. The theory was inconceivable that it was cheaper to work to death in seven years a slave costing a thousand dollars, than to work him for forty years. Millions of our people, however, have accepted "Uncle Tom" as a fact, and have wept over him; they have accepted also as a fact the monster Legree.

"Uncle Tom's Cabin" lives to-day as a classic on book shelves and as a popular play. The present generation get most of their opinions about slavery as it was in the South from its pages, and not one in ten thousand of those who read it ever thinks of the inconsistency between the picture of slavery drawn there and that other picture, which all the world now knows of—the Confederate soldier away in the army, his wife and children at

home faithfully protected by slaves—not a case of violence, not even a single established case, during four years, although there were four millions of negroes in the South, of that crime against white women that, after the reconstruction had demoralized the freedmen, became so common in that section.

The unwavering fidelity during the four years of war of so many slaves to the families of their absent masters, and the fact that those who, during that war, left their homes to seek their freedom invariably went without doing any vengeful act, is a phenomenon that speaks for itself. It tells of kindly relations between master and slave. It is not to be denied that where the law gave so much power to the master there were individual instances of cruelty, nor is it supposable that there were not many slaves who were revengeful; but at the same time there was, quite naturally, among slaves who were all in like case, a more clannish and all-pervading public opinion than could have been found elsewhere. It was that all-pervading and rigid standard of kindly feeling among the slaves to their masters that made the rule universal—fidelity toward the master's family, at least to the extent of inflicting no injury.

What a surprise to many this conduct of the slave was may be gathered from a telling Republican speech made by Carl Schurz during the campaign of 1860.^[54] A devotee of liberty, recently a revolutionist in his native land, and, like other foreigners, disregarding all constitutional obstacles, Mr. Schurz had naturally espoused the cause of anti-slavery in this country. He had absorbed the views of his political associates and now contended that secession was an empty threat and that secession was impossible. "The mere anticipation of a negro insurrection," he said, "will paralyze the whole South." And, after ridiculing the alarm created by the John Brown invasion, the orator said that in case of a war between the South and the North, "they will not have men enough to quiet their friends at home; what will they have to oppose to the enemy? Every township will want its home regiment; every plantation its garrison; and what will be left for its field army?"

Slavery in the South eventually proved to be, instead of a weakness, an element of strength to the Confederates, and Mr. Lincoln finally felt himself compelled to issue his proclamation of emancipation as a military necessity

—the avowed purpose being to deprive the Confederates of the slaves who were by their labor supporting their armies in the field.

The faithfulness during the war of the slave to his master has been a lesson to the Northerner, and it has been a lesson, too, to the Southerner. It argues that the danger of bloody insurrections was perhaps not as great as had been apprehended where incendiary publications were sent among them. That danger, however, did exist, and if the fear of it was exaggerated, it was nevertheless real, and was traceable to the Abolitionists.

The rights of the South in the territories had now been discussed for years and Stephen A. Douglas, a Democratic senator from Illinois, had reached the conclusion that under the Constitution Southerner and Northerner had exactly the same right to carry their property, whatever it might be, into the territories, which had been purchased with the common blood and treasure of both sections, a view afterward sustained by the Supreme Court of the United States in the Dred Scott case. Douglas, "entirely of his own motion," [\[55\]](#) introduced, and Congress passed, such a bill—the Kansas-Nebraska act. The new act replaced the Missouri Compromise. This the Southerners considered had been a dead letter for years. Every "personal liberty" law passed by a Northern State was a violation of it.

Ambition was now playing its part in the sectional controversy. Douglas was a Democrat looking to the presidency and had here made a bid for Southern support. On the other hand was Seward, an "old line Whig," aspiring to the same office. The South had been the dominant element in national politics and the North was getting tired of it. Seward's idea was to organize all the anti-slavery voters and to appeal at the same time to the pride and jealousy of the North as a section.

The immediate effect of the Kansas-Nebraska act was to aggravate sectionalism. It opened up the territory of Kansas, allowing it to come into the Union with or without slavery, as it might choose. Slave State and free State adventurers rushed into the new territory and struggled, and even fought, for supremacy. The Southerners lost. Their resources could not match the means of organized anti-slavery societies, and the result was an increase, North and South, of sectional animosity.

The overwhelming defeat of the old Whig party in 1852 presaged its dissolution. Until that election, both the Whig and Democratic parties had been national, each endeavoring to hold and acquire strength, North and South, and each combating, as best it could, the spirit of sectionalism that had been steadily growing in the North, and South as well, ever since the rise of Abolitionism. Both these old parties had watched with anxiety the increase of anti-slavery sentiment in the North. Both parties feared it. Alliance with the anti-slavery North would deprive a party of support South and denationalize it. For years prior to 1852 the drift of Northern voters who were opposed to slavery had been as to the two national parties toward the Whigs, and the tendency of conservative Northerners had been toward the Democratic party. Thus the great body of the Whig voters in the North had become imbued with anti-slavery sentiments, and now, with no hope of victory as a national party and left in a hopeless minority, the majority of that old party in that section were ready to join a sectional party when it should be formed two years later. William H. Seward was still a Whig when he made in the United States Senate his anti-slavery "higher law" speech of 1850.

The Kansas-Nebraska act was a political blunder. The South, on any dispassionate consideration, could not have expected to make Kansas a slave State. The act was a blunder, too, because it gave the opponents of the Democratic party a plausible pretext for the contention, which they put forth then and which has been persisted in till this day, that the new Republican party, immediately thereafter organized, was called into existence by, and only by, the Kansas-Nebraska act.

As far back as 1850 it was clear that a new party, based on the anti-slavery sentiment that had been created by twenty years of agitation, was inevitable. Mr. Rhodes, speaking of conditions then, says: "It was, moreover, obvious to an astute politician like Seward, and probably to others, that a dissolution of parties was imminent; that to oppose the extension of slavery, *the different anti-slavery elements must be organized as a whole*; it might be called Whig or some other name, but it would be based on the principle of the Wilmot proviso"^[56]—the meaning of which was, no more slave States.

Between 1850 and the passage of the Kansas-Nebraska act in 1854, new impulse had been given anti-slavery sentiment by fierce assaults on the new

fugitive slave law and, as has been seen, by "Uncle Tom's Cabin." The Kansas-Nebraska act did serve as a cry for the rallying of all anti-slavery voters. That was all. It was a drum-call, in answer to which soldiers already enlisted fell into ranks, under a new banner. Any other drum-call—the application of another slave State for admission into the Union—would have served quite as well. Thus the Republican party came into existence in 1854. Mr. Rhodes sums up the reason for the existence of the new party and what it subsequently accomplished in the following pregnant sentence, "The moral agitation had accomplished its work, the cause (of anti-slavery) ... was to be consigned to a political party that brought to a successful conclusion the movement begun by the moral sentiment of the community," [57]—which successful conclusion was, of course, *the freeing of the slaves by a successful war*.

For a time the new Republican party had a powerful competitor in another new organization. This was the American or Know-Nothing party. This other aspirant for power made an honest effort to revitalize the old Whig party under a new name and, by gathering in all the conservatives North and South, to put an end to sectionalism. Its signal failure conveys an instructive lesson. After many and wide-spread rumors of its coming, the birth of the American party was formally announced in 1854. It had been organized in secret and was bound together with oaths and passwords; its members delighted to mystify inquirers by refusing to answer questions, and soon they got the name of "Know-Nothings." The party had grown out of the "Order of the Star Spangled Banner," organized in 1850 to oppose the spread of Catholicism and indiscriminate immigration—the two dangers that were said to threaten American institutions.

The American party made its appeal: For the Union and against sectionalism; for Protestantism, the faith of the Fathers, against Catholicism that was being imported by foreigners; its shibboleth was "America for the Americans."

The Americans or Know-Nothings everywhere put out in 1854 full tickets and showed at once surprising strength. In the fall elections of that year they polled over one-fourth of all the votes in New York, two-fifths in Pennsylvania, and over two-thirds in Massachusetts, where they made a clean sweep of the State and Federal offices. [58]

They struck directly at sectionalism by exacting of their adherents the following oath:

"You do further swear that you will not vote for any one ... whom you know or believe to be in favor of a dissolution of the Union ... or who is endeavoring to produce that result."

The effect of this oath at the South was almost magical. The Whig party there was speedily absorbed by the Americans, and Southern Democrats by thousands joined the new party that promised to save the Union.^[59] But the attitude of the Northern and Southern members of the American party soon became fundamentally different. Southerners saw their Northern allies in Vermont, Maine, and Massachusetts passing "personal liberty" laws.^[60]

The Know-Nothings were strong enough in the elections of 1855 to directly check the progress of the new Republican party; but the American party, though it succeeded in electing a Speaker of the national House of Representatives in February, 1856, soon afterward went down to defeat. Even though led by such patriots as John Bell, of Tennessee, and Edward Everett, of Massachusetts, it could not stand against the storm of passion that had been aroused by the crusade against slavery.

There was a fierce and protracted struggle between the pro-slavery and anti-slavery men in Kansas for possession of the territorial government. Rival constitutions were submitted to Congress, and the debates over these were extremely bitter. In their excitement the Democrats again delighted their adversaries by committing what now seems to have been another blunder. They advocated the admission of Kansas under the "Lecompton Constitution." A review of the conflicting evidence appears to show that the Southerners were fairly outnumbered in Kansas and that the Lecompton Constitution did not express the will of the people.^[61]

While "the war in Kansas" was going on, Charles Sumner, an Abolitionist from Massachusetts, delivered in the Senate a speech of which he wrote his friends beforehand: "I shall pronounce the most thorough Philippic ever delivered in a legislative body." He was a classical scholar. *His purpose was to stir up in the North a greater fury against the South than Demosthenes had aroused in Athens against its enemies, the Macedonians.* His speech

occupied two days, May 28 and 29, 1855. At its conclusion, Senator Cass, of Michigan, arose at once and pronounced it "the most un-American and unpatriotic that ever grated on the ears of this high body." The speech attacked, without any sufficient excuse, the personal character of an absent senator, Butler of South Carolina, a gentleman of high character and older than Sumner. Among other unfounded charges, it accused him of falsehood. Preston Brooks, a representative from South Carolina, attacked Sumner in the Senate chamber during a recess of that body and beat him unmercifully with a cane. The provocation was bitter, indeed, but Brooks's assault was unjustifiable. Nevertheless, the exasperated South applauded it, while the North glorified Sumner as a martyr for free speech.

In less than two years the new Republican party had absorbed all the Abolition voters, and in the election of 1856 was in the field with its candidates for the presidency and vice-presidency—Fremont and Dayton—upon a platform declaring it the duty of Congress to abolish in the territories "those twin relics of barbarism, polygamy and slavery."

Excitement during that election was intense. Rufus Choate, the great Massachusetts lawyer, theretofore a Whig, voiced the sentiment of conservatives when he said it was the "duty of every one to prevent the madness of the times from working its maddest act—the permanent formation and the actual present triumph of a party which knows one-half of America only to hate it," etc.

Senator Toombs, of Georgia, said: "The object of Fremont's friends is the conquest of the South. I am content that they shall own us when they conquer us."

The Democrats elected Buchanan; Democrats 174 electoral votes; Republicans 74, all Northern; and the Know-Nothings, combined with a remnant of Whigs, 8.

The work of sectionalism was nearly completed.

The extremes to which some of the Southern people now resorted show the madness of the times. They encouraged filibustering expeditions to capture Cuba and Nicaragua. These wild ventures were absolutely indefensible. They had no official sanction and were only spontaneous movements, but they met with favor from the Southern public, the outgrowth of a feeling that, if these countries should be captured and annexed as slave States, the South could the better, by their aid, defend its rights in the Union. *The Wanderer* and one or two other vessels, contrary to the laws of the United States, imported slaves from Africa, and when the participants were, some of them, indicted, Southern juries absolutely refused to convict.

"Judgment had fled to brutish beasts,
And men had lost their reason."

When later the Southern States had seceded and formed a government of their own their constitution absolutely prohibited the slave traffic.

CHAPTER VIII

INCOMPATIBILITY OF SLAVERY AND FREEDOM

That it was possible for slave States and free States to coexist under our Federal Constitution was the belief of its framers and of most of our people down to 1861. The first to announce the absolute impossibility of such coexistence seems to have been William Lloyd Garrison. In 1840, at Lynn, Massachusetts, the Essex County Anti-Slavery Society adopted this resolution, offered by him:

"That freedom and slavery are natural and irreconcilable enemies; that it is morally impossible for them to endure together in the same nation, and that the existence of the one can only be secured by the destruction of the other."
[\[62\]](#)

Garrison's remedy was disunion. Near that time his paper's motto was "No Union with Slave-Holders."

The next to announce the idea of the incompatibility of slave States and free States seems to have been one who did not dream of disunion. No such thought was in the mind of Abraham Lincoln when, in a speech at Springfield, Illinois, June 15, 1858, he said:

"A house divided against itself cannot stand. I believe this government cannot endure permanently half slave and half free. I do not expect the Union to be divided. It will become one thing or the other. Either the opponents of slavery will arrest the further spread of it, and place it where the public mind will rest in the belief that it is in the course of ultimate extinction; or its advocates will push it forward until it shall become alike lawful in all the States—old as well as new—North as well as South."

When the Southerners read that statement they concluded that, as Mr. Lincoln knew very well that the South could not, if it would, force slavery on the North, he was announcing the intention of his party to place slavery "in course of ultimate extinction," constitution or no constitution.

Senator Seward, at Rochester, New York, some weeks later, reannounced the doctrine, declaring that the contest was "an irrepressible conflict between opposing and enduring forces; and it means that the United States *must and will*, sooner or later, become either an entirely slave-holding nation or entirely a free labor nation."

The utterances of Lincoln and Seward were distinctly radical. The question was, would this radical idea ultimately dominate the Republican party?

Less than eighteen months after the announcement in 1858 of the doctrine of the "irrepressible conflict," John Brown raided Virginia to incite insurrections. With a few followers and 1,300 stands of arms for the slaves who were to join him, he captured the United States arsenal at Harper's Ferry. Only a few slaves came to him and, after a brief struggle, with some bloodshed, Brown was captured, tried by a jury, and hanged.

In the South the excitement was intense; the horror and indignation in that section it is impossible to describe. Brown was already well known to the public. He was not a lunatic. Not long before this, in Kansas, "at the head of a small group of men, including two of his sons and a son-in-law, he went at night down Pottowattamie Creek, stopping at three houses. The men who lived in them were well known pro-slavery men; they seem to have been rough characters; their most specific offence (according to Sanborn, Brown's biographer and eulogist) was the driving from his home, by violent threats, of an inoffensive old man. John Brown and his party went down the creek, called at one after the other of three houses, took five men away from their wives and children, and deliberately shot one and hacked the others to death with swords."[\[63\]](#)

Quite a number of people, some of them men of eminence in the North, aided Brown in his enterprise. Among the men of repute were Gerrit Smith, a former candidate for the presidency; and Theodore Parker, Dr. Howe, and Thomas Wentworth Higginson, of Boston, who were all members of a "secret committee to collect money and arms for the expedition." With them was F. S. Sanborn, who has since the war vauntingly revealed the scheme in his "Life of John Brown."[\[64\]](#)

Sanborn intimates that Henry Wilson, subsequently vice-president, was more or less privy to the design.^[65] At various places in the North church bells were tolled on the day of John Brown's execution; meetings were held and orators extolled him as a martyr. Emerson, the greatest thinker in all that region, declared that if John Brown was hanged he would glorify the gallows as Jesus glorified the cross; and now many Southern men who loved the Union reluctantly concluded that separation was inevitable. John Bell, of Tennessee, Union candidate for President in 1860, is said to have cried like a child when he heard of Brown's raid.

The great body of the Northern people condemned John Brown's expedition without stint. Edward Everett, voicing the opinion of all who were really conservative, said of Brown's raid, in a speech at Faneuil Hall, that its design was to "let loose the hell hounds of a servile insurrection, and to bring on a struggle which, for magnitude, atrocity, and horror, would have stood alone in the history of the world."

But they who had been preaching the "irrepressible conflict," they whom public opinion might hold responsible, did not feel precisely as Mr. Everett did. They were concerned about political consequences, as appears from a letter written somewhat later during the State canvass in New York by Horace Greeley to Schuyler Colfax. Horace Greeley afterward proved himself in many ways a broad-minded, magnanimous man, but now he wrote: "Do not be downhearted about the old John Brown business. Its present effect is bad and throws a heavy load on us in this State ... *but the ultimate effect is to be good.... It will drive the slave power to new outrages.... It presses on the irrepressible conflict.*"^[66]

The fact that such a man as Horace Greeley was taking comfort because that outrage would "drive the slave power to new outrages"^[67] throws a strong side-light on the tactics of the anti-slavery leaders. They were following Garrison. Garrison, the father of the Abolitionists, had begun his campaign against slave-holders by "exhausting upon them the vocabulary of abuse," and he had shown "a genius for infuriating his antagonists."^[68] The new party—his successor and beneficiary, was now felicitating itself that ultimate good would come, even from the John Brown raid. It would further their policy of "*driving the slave power to new outrages.*"

People at the North, conservatives and all, held their breath for a time after Harper's Ferry. Then the crusade went on, in the press, on the rostrum, and from the pulpit, with as much virulence as ever. No assertion was too extravagant for belief, provided only its tendency was to disparage the Southern white man or win sympathy for the negro. From the noted "Brownlow and Pryne's Debate," Philadelphia (*Lippincott*), we take the following as a specimen of the abuse a portion of the Northern press was then heaping on the Southern people. Brownlow quotes from the *New York Independent* of November, 1856:

"The mass of the population of the Atlantic Coast of the slave region of the South are descended from the transported convicts and outcasts of Great Britain.... Oh, glorious chivalry and hereditary aristocracy of the South! Peerless first families of Virginia and Carolina!... Progeny of the highwaymen, and horse-thieves and sheep-stealers, and pick-pockets of Old England!"

The South was not to be outdone, and here was a retort from *De Bow's Review*, July, 1858:

"The basis, framework, and controlling influence of Northern sentiment is Puritanism—the old Roundhead, rebel refuse of England, which ... has ever been an unruly sect of Pharisees ... the worst bigots on earth and the meanest of tyrants when they have the power to exercise it."[\[69\]](#)

And the non-slave-holder of the South did not escape from the pitiless pelting of the storm. He was sustaining the slave-holder, and this was not only an offence but a puzzle.

It became quite common in the North for anti-slavery writers to classify the non-slave-holding agricultural classes of the South as "poor whites," thus distinguishing them from the slave-holders; and the idea is current even now in that section that as a class the lordly slave-holder despised his poor white fellow-citizen. The average non-slave-holding Southern agriculturist, whether farming for himself or for others, was a type of man that no one who knew him, least of all the Southern slave-holder, his neighbor and political ally, could despise. Educated and uneducated, these people were independent voters and honest jurors, the very backbone of Southern State

governments that always will be notable in history for efficiency, purity, and economy.

This class of voters, however, came in for much abuse in the literature of the crusade. They were all lumped together as "poor whites," sometimes as "poor white trash," and the belief was inculcated that their imperious slave-holding neighbors applied that term to them. "Poor white trash," on its face, is "nigger talk," caught up, doubtless, from Southern negro barbers and bootblacks, and used by writers who, from information thus derived, pictured Southern society.

This is a sample of the numerous errors that crept into the literature of one section of our Union about social conditions in the other during that memorable sectional controversy. It is on a par with the idea that prevailed, in some quarters in the South, that the Yankee cared for nothing but money, and would not fight even for that.

Southerners were practically all of the old British stock. Homogeneity, common memories of the wars of the Revolution, of 1812, and with Mexico, and Fourth of July celebrations, all tended to bind together strongly the Southern slave-holder and non-slave-holder.

There were, of course, many classes of non-slave-holders—the thrifty farmer, the unthrifty, and the laborer who worked for hire, but more frequently for "shares of the crop." Then there were others—the inhabitants of the "sand-hills" and the mountain regions. These people were, as a rule, very shiftless; too lazy to work, they were still too proud to beg, as the very poor usually do in other countries. The mountaineers were hardier than the sand-hillers, and it was from the mountains of Tennessee, Alabama, etc., that the Union armies gathered many recruits. This was not, as is often stated, because mountaineers love liberty better than others, but because these mountaineers never came into contact with either master or slave. The crusade against slavery, therefore, did not threaten to affect their personal status.

There were very few public schools in the South, but in the cities and towns there were academies and high-schools, and the country was dotted with "old field schools," most of them not good, but sufficient to train those who became efficient leaders in social, religious, and political circles.

The wonderful progress made by the Southern white man during the last thirty-five years is by no means all due to the abolition of slavery. Labor, it is true, is held in higher esteem. This is a great gain, but still more is due to improved transportation, to better prices for timber and cotton, to commercial fertilizers, and an awakening interest in education. The South is also developing its mineral resources and is now rapidly forging to the front. The white man is making more cotton than the negro.

But the very strongest bond that bound together the Southern slave-holder and non-slave-holder was the pride of caste. Every white man was a freeman; he belonged to the superior, the dominant race.

Edmund Burke, England's philosopher-statesman, in his speech on "Conciliation with America" at the beginning of our Revolution, complimented in high terms the spirit of liberty among the dissenting protestants of New England. Then, alluding to the hopes indulged in by some gentlemen, that the Southern colonies would be loyal to Great Britain because the Church of England had there a large establishment, he said: "It is certainly true. There is, however, a circumstance attending these colonies which in my opinion fully counter-balances this difference, and makes the spirit of liberty still more high and haughty than in those to the Northward. It is, that in Virginia and Carolina they have a vast multitude of slaves. Where this is the case, in any part of the world, *those who are free are by far the most proud and jealous of their freedom*. Freedom with them is not only an enjoyment, but a kind of *rank and privilege*."

The privilege of belonging to the superior race and of being free was a bond that tied all Southern whites together, and it was infinitely strengthened by a crusade that seemed, from a Southern stand-point, to have for its purpose the levelling of all distinctions between the white man and the slave hard by.

Socially, there were classes in the South as there are everywhere. The controlling class consisted of professional men, lawyers, physicians, teachers, and high-class merchants (though the merchant prince was unknown), and slave-holders. Slave-holders were, of course, divided into classes, chiefly two: those who had acquired culture and breeding from slave-holding ancestors, and those who had little culture or breeding,

principally the newly rich. It was the former class that gave tone to Southern society. The performance of duty always ennobles, and this is especially true of duty done by superiors to inferiors. The master and mistress of a slave establishment were responsible for the moral and material welfare of their dependents. When they appreciated and fulfilled their responsibilities, as the best families usually did, there was found what was called the Southern aristocracy. The habit of command, assured position, and high ideals, coming down, as these often did, with family traditions, gave these favored people ease and grace, and they were social favorites, both in the North and Europe. At home they dispensed a hospitality that made the South famous. They were exemplars, giving tone to society, and it was notable that breeding and culture, and not wealth, gave tone to Southern society. There was perhaps in Virginia and South Carolina an aristocracy that was somewhat more exclusive than elsewhere.

Slavery was at its worst when masters were not equal to their responsibilities, for want of either culture or Christian feeling, or both, as also when, as was now and then the case, a brutal overseer was in charge of a plantation far away from the eye of the owner.

The influence of the slave-holder and his lavish hospitality did not make for thrift among his less fortunate brethren; it made perhaps for prodigality, but it also made for a high sense of honor among slave-holders and non-slave-holders as well. Both slave-holders and non-slave-holders were extremely punctilious. Money did not count where honor was concerned, and Southerners do well to be proud of the record in this respect that has been made by their statesmen.

Among the more cultured classes in the period here treated of, the duel prevailed, a practice now very properly condemned. But it made for a high sense of honor. Demagogues were not common when a false statement on "the stump" was apt to result in a mortal combat.

Among the less cultured classes insult was answered with a blow of the fist. Fisticuffs, too, were quite common to ascertain who was the "best man" in a community or county. The rules were not according to the Marquis of Queensbury, but they always secured "fair play."^[70]

This combative spirit of Southerners was undoubtedly a result of the spirit of caste that came from slavery. Sometimes it was unduly exhibited in Congress during the controversy over slavery and State's rights, and excited Southerners occasionally subjected themselves to the charge of arrogance.

One of the great evils of slavery was that, as a rule, neither the slave-holder nor the non-slave-holder properly appreciated the dignity of labor. A witty student at a Southern university said that his chief objection to college life was that he could not have a negro to learn his lessons for him. The slave-holder quite generally disdained manual labor, and the non-slave-holder was also inclined to deprecate the necessity that compelled him to work.

The sudden abolition of slavery was the ruin of thousands of innocent families—a loss for which there was no recompense. But for the South at large, and especially to this generation, it is a blessing that all classes have come to see, that to labor and to be useful is not only a duty, but a privilege.

Political conditions, North and South, differed widely. The North was the majority section. Its majority could protect its rights; recourse to the limitations of the Federal Constitution was seldom necessary. The South, a minority section, with a devotion that never failed, held high the "Constitution of the fathers, the palladium" of its rights. To one section the Constitution was the bond of a Federal Union that was the security for interstate commerce and national prosperity; to the other it was a guaranty of peace abroad and local self-government at home. In the one section the brightest minds were for the most part engaged in business or in literary pursuits; in the other, politics absorbed much of its talent. In the North the staple of political discussion was usually some business or moral question, while in the South the political arena was a great school in which the masses were not only educated in the history of the formation of the Constitution, but taught an affectionate regard for that instrument as a revered "gift from the fathers" and the only safeguard of American liberty. Joint political discussions, which were common between the ablest men of opposing parties, were always numerously attended, and the Federal Constitution was an unfailing topic. The result was, an amount of political information in the average Confederate soldier that the average Union soldier in his business training had never acquired, and a devotion of the

Southerner to the Constitution of his country which even the ablest historians of to-day have failed to comprehend.

It is often stated, as if it were an important fact in the consideration of the great anti-slavery crusade, that not many of the Abolitionists were as radical as Garrison, and that of the anti-slavery voters very few favored social equality between whites and blacks. Southerners did not stop to make distinctions like these. They saw the Abolitionists advocating mixed schools and favoring laws authorizing mixed marriages; saw them practising social equality; saw the general trend in that direction; and so from its very beginning the Republican party, which had absorbed the Abolitionists, was dubbed, North and South, the "Black Republican" party.

The whites of the South believed that the triumph of the "Black Republican" party, as they called it, would be ultimately the triumph of its most radical elements. Judge Reagan, of Texas, United States congressman in 1860-61, Confederate Postmaster-General, later United States senator, and always until 1860 an avowed friend of the Union, in his farewell speech to the Congress of the United States in January, 1861, gave expression to this idea when he said:

"And now you tender to us the inhuman alternative of unconditional submission to *Republican rule on abolition principles, and ultimately to free negro equality, and a government of mongrels*, or a war of races on the one hand, and on the other, secession and a bloody and desolating civil war."[\[21\]](#)

Judge Reagan was expressing in Congress the opinion that animated the Confederate soldier in the war that was to follow secession, an opinion the ex-Confederate did not see much reason to change when the era of Reconstruction had been reached, and the ballot had been given to every negro, while the leading whites were disfranchised.

In 1857 Hinton Rowan Helper, of North Carolina, wrote a notable book to show that slavery was a curse to the South, and especially to the non-slaveholders. It was an appeal to the latter to become Abolitionists. His arguments availed nothing; back of his book was the Republican party, now planting itself, as Garrison had planted himself, on an extract from the first sentence of the Declaration of Independence, "all men are created equal."

The Republican contention was, in platforms and speeches, that the Declaration of Independence covered negroes as well as whites,^[72] and Southern whites, nearly all of Revolutionary stock, resented the idea. They rebelled at the suggestion that the signers, every one of whom, save possibly those from Massachusetts, represented slave-holding constituents, intended to say that the negroes then in the colonies were the equals of the whites. If so, why were these negroes kept in slavery, and why were they not immediately given the right to vote, to sit on juries, to be educated, and to intermarry with the whites?

All this, the Southerners said, as, indeed, did many Northerners also, was to be the logical outcome of the Republican doctrine, that negroes and whites were equals. It is passing strange that modern historians so often have failed to note that this thought was in the minds of all the opponents of the Republican party from the day of its birth—North and South it was called the "Black Republican" party. Douglas, in his debate with Lincoln, gave it that name and stood by it. In his speech at Jonesboro, Illinois, September 15, 1858, he charges the Republicans with advocating "negro citizenship and negro equality, putting the white man and the negro on the same basis under the law."^[73]

John C. Calhoun, in a memorial to the Southern people in 1849, signed by many other congressmen, had said that Northern fanaticism would not stop at emancipation. "Another step would be taken to raise them [the negroes] to a political and social equality with their former owners, by giving them the right of voting and holding public office under the Federal Government.... But when raised to an equality they would become the fast political associates of the North, acting and voting with them on all questions, and by this perfect union between them holding the South in complete subjection. *The blacks and the profligate whites that might unite with them* would become the principal recipients of Federal patronage, and would, in consequence, be raised above the whites of the South in the social and political scale. We would, in a word, change conditions with them, *a degradation greater than has as yet fallen to the lot of a free and enlightened people.*"^[74]

In the light of Reconstruction, this was prophecy.

These words, once heard by a Southern white man, of course sank into his heart. They could never have been forgotten. The argument of Helper fell on deaf ears. If Helper had come with the promise (and an assurance of its fulfilment) that the negroes, when emancipated, would be sent to Liberia, or elsewhere *out of the country*, the South would have become Republicanized at once. Even if the slave-holder had been unwilling, the Southern non-slave-holder, with his three, and often five, to one majority, would have seen to it.

And it is not too much to say that if the negro had been, as the Abolitionists and ultimately many Republicans contended he was, the equal of the white man, Liberia would have been a success. What a glorious consummation of the dreams of statesmen and philanthropists that would have been! Abolitionists, unable to frustrate their scheme, and the American negro, profiting by the civilization here received from contact with the white man, building by his own energy happy homes for himself and his kinsmen, and enjoying the blessings of a great government of his own, in his own great continent!

Africa with its vast resources is a prize that all Europe is now contending for. It is believed to be adapted even to white men. Most assuredly, for the negro Liberia offered far better opportunities than did the rocky coast of New England to the white men who settled it. Liberia had been carefully selected as a desirable part of Africa. It was an unequalled group of statesmen and philanthropists that had planted the colony; they provided for it and set it on its feet. But it failed; failed just for the same reason that prevented the aboriginal African from catching on to the civilization that began to develop thousands of years ago, close by his side on the borders of the Mediterranean; failed for the same reason that Hayti, now free for a century, has failed. The failure of the plan of the American Colonization Society to repatriate the American negro in Africa was due *primarily to the incapacity of the negro*.

A very complete and convincing story will be found in an article entitled "Liberia, an Example of Negro Self-Government,"^[75] by Miss Agnes P. Mahony, for five years a missionary in that country. The author of the article was a sympathizing friend. She says: "In 1847 the colony was considered healthy enough to stand alone.... So our flag was lowered on the

African continent, and the protectors of the colony retired, leaving the people to govern the country in their own way." Then she recites that in order to test their capacity for self-government their constitution (1847) provided that no white man should hold property in the country; and to this Miss Mahony traces the failure that followed. When she wrote, the Liberian negroes, for fifty-nine years under the protectorship of the United States, had been troubled by no foreign enemy; yet their failure was complete—not a foot of railroad, no cable communication with foreign countries, no telegraphic communication with the interior, etc. Still the devoted missionary thinks that Liberia might prosper, if it could but have "*the encouraging example of and contact with the right kind of white men.*"

The presidential campaign of 1860 was very exciting. There were four tickets in the field, Douglas and Johnson, Democrats; Breckenridge and Lane, Democrats; Lincoln and Hamlin, Republicans, and Bell and Everett representing the "Constitutional Union" party. As the election approached it became apparent that the Republicans were leading, and far-seeing men, like Samuel J. Tilden, of New York, became much alarmed for fear that the election of Lincoln would bring about secession in the South. Mr. Tilden, in view of the danger that to him was apparent, wrote, shortly before the election, to William Kent, of New York City, an open letter in which he earnestly urged a combination in New York State of the supporters of other candidates, in order to defeat Abraham Lincoln. The letter was so alarming that some of Tilden's friends thought he had lost his balance; but now that letter is regarded as a remarkable proof of his sagacity. In the first volume of Mr. Tilden's "Life and Letters," by Bigelow, appears an "Appreciation" by James C. Carter and an analysis of this letter. Of this the following is a brief abstract: Mr. Tilden first argued that two strictly sectional parties, arrayed upon the question of destroying an institution which one of them, not unnaturally, regarded as essential to self-existence, would bring war.

Then Mr. Tilden further said that if the Republican party should be successful in establishing its dominion over the South, the national

government in the Southern States would cease to be self-government and become a government of one people over a distinct people, a thing impossible with our race, except as a consequence of a successful war, and even then incompatible with our democratic institutions. He also said: "I assert that a controversy between powerful communities, organized into governments, of a nature like that which now divides the North and South, can be settled only by convention or by war."

And again: "A condition of parties in which the Federative Government shall be carried on by a party, having no affiliations in the Southern States, is impossible to continue. Such a government would be out of all relations to those States. It would have neither the nerves of sensation, which convey intelligence to the intellect of the body politic, nor the ligaments and muscles, which hold its parts together and move them in harmony. It would be in substance the government of one people by another people. That system will not do for our race."

Mr. Tilden, when he spoke of "two sectional parties arrayed upon the question of destroying an institution," viz., slavery, saw the situation exactly as the South did. To prove that the Republican party was looking to the ultimate destruction of the institution, Mr. Tilden cited the leadership of Chase and his speeches in which he was propounding the higher law theory; asserting that the conflict was "irrepressible"; suggesting the power of the North to amend the Constitution, etc.

The South noted this, and it regarded, not the platform, but the record of the Republican party and of the statesmen the party was following.

Long before 1860, that great American scholar, George Ticknor, saw the dilemma in which the North was involving itself by its concern over slavery in the South, and he thus stated it, in a letter to his friend, William Ellery Channing, April 30, 1842:[\[76\]](#)

"On the subject of our relations with the South and its slavery, we must—as I have always thought—do one of two things; either keep honestly the bargain of the Constitution as it shall be interpreted by the authorities—of which the Supreme Court of the United States is the chief and safest—or declare honestly that we can no longer in our conscience consent to keep it, and break it."

The North had failed to "keep honestly the bargain of the Constitution" by faithfully delivering fugitive slaves and leaving the question of slavery to be dealt with by the States in which it existed, and was now, in 1860, upon the other horn of the dilemma—repudiating and denouncing a decision of the Supreme Court, which, as Mr. Ticknor had said, was the "chief and safest authority." But during that campaign of 1860 very many, perhaps a majority of the Republican voters, failed to realize what their party was standing for. Indeed, down to this day the members of that organization, taught as they have been, indignantly deny that a vote for Lincoln and Hamlin in 1860 looked to an interference with slavery in the States.

But now Professor Emerson David Fite, of Yale University, sees in 1911 what was the underlying hope, and consequently the ultimate aim, of the Republican party in 1860, exactly as the South saw it then. In a powerful summing up of more evidence than there is room to recite here, he says: "The testimony of the Democracy and of the leaders of the Republican party accords well with the evidence of daily events in *revealing Republican aggression. The party hoped to destroy slavery, and this was something new in a large political organization.*"^[77]

That this party, when it should ultimately come into full power, would, to carry out the purpose which Professor Fite now sees, ignore the Federal Constitution was, in 1860, evident to Southerners from the following facts:

In 1841 the governor of Virginia demanded of the governor of New York the extradition of two men indicted in Virginia for enticing away slaves from their masters. Governor Seward, of New York, refused the demand, on the ground that no such offence existed in New York. This case did not go to the courts, but in 1860 the governor of Kentucky made a similar demand in a like case on the governor of Ohio, who placed his refusal on the same grounds as had Governor Seward in the former case. The Supreme Court of the United States in this case decided that the governor of Ohio, in refusing to deliver up the fugitive, was violating the Constitution. The court further said:

"If the governor of Ohio refuses to *discharge this duty there is no power delegated to the general government*, either through the judicial department or any other department, to use any coercive means to compel him."^[78]

If these two governors had defied the Federal Constitution, so had eleven State legislatures. From 1854 to 1860, inclusive, Vermont, Rhode Island, Connecticut, Maine, Massachusetts, Michigan, Wisconsin, Kansas, Ohio, and Pennsylvania, had all passed new "personal liberty laws" to abrogate the new fugitive slave law of 1850.

Of these laws Professor Alexander Johnston said:

"There is absolutely no excuse for the personal liberty laws. If the rendition of fugitive slaves was a federal obligation, the personal liberty laws were flat disobedience to the law; if the obligation was upon the States, they were a gross breach of good faith, for they were intended and operated to prevent rendition; and, in either case, they were in violation of the Constitution."^[79]

And now came the State of Wisconsin. Its Supreme Court intervened and took from the hands of the federal authorities an alleged fugitive slave. The Supreme Court of the United States reversed the case and ordered the slave back into the custody of the United States marshal;^[80] and thereupon the General Assembly of Wisconsin expressly repudiated the authority of the United States Supreme Court. The Wisconsin assembly asserted its right to nullify the Federal law, basing its action on the Kentucky Resolutions of 1798—a recrudescence of a doctrine long since abandoned even in the South.

In reality all this defiance of the Constitution of the United States by State executives, State legislatures, and a State court, was on the ground that whatever was dictated by conscience to these officials was a "higher law than the Constitution of the United States"; and modern historians recognize, as Tilden did, the leadership of the statesman who in 1850 announced that startling doctrine. It is Alexander Johnston who says, "Seward's speeches in the Senate made him the leader of the Republican party from its first organization."^[81]

To the minds of Southerners it seemed clear that *if the Southern States desired to preserve for themselves the Constitution of the fathers, they must secede and set it up over a government of their own*. This eleven of these States did. Many of them were reluctant to take the step; all their people had loved the old Union, but they passed their ordinances of secession, united as

the Confederate States of America, and their officials took an oath to maintain inviolate the old Constitution, which, with unimportant changes in it, they had adopted.

The new government sent delegates to ask that the separation should be peaceful. The application was denied and the war followed. Attempts to secede were made in Kentucky and Missouri. In neither of these States did the seceders get full control. They were represented, however, in the Confederate Congress by senators and representatives elected by the troops from those States that were serving in the Confederate army.

CHAPTER IX

FOUR YEARS OF WAR

The bitter fruits of anti-slavery agitation were secession and four years of bloody war. The Federal Government waged war to coerce the seceding States to remain in the Union. With the North it was a war for the Union; the South was fighting for independence—denominated by Northern writers as "the Civil War." It was in reality a war between the eleven States which had seceded, as autonomous States, and were fighting for independence, as the Confederate States of America, against the other twenty-two States, which, as the United States of America, fought against secession and for the Union of all the States. It is true the States remaining in the Union had with them the army and the navy and the old government, but that government could not, and did not, exercise its functions within the borders of the seceded States until by force of arms in the war that was now waged it had conquered a control. It was a war between the States for such control; for independence on the one hand, and for the Union on the other. It was not, save in exceptional cases, a war between neighbor and neighbor; it was a war between States as entities, and therefore not properly a civil war. The result of the war did not change the principles upon which it was fought, though it did decide finally the issues that were involved, the right of secession primarily, and slavery incidentally.

Jefferson Davis, afterward the much-loved President of the Confederacy, in his farewell speech in the United States Senate, March 21, 1861, thus stated the case of the South: "Then, senators, we recur to the compact which binds us together. We recur to the principles upon which this government was founded, and *when you deny them*, and when you deny to us the right to withdraw from a Union which thus perverted *threatens to be destructive of our rights, we but tread in the path of our fathers when we proclaim our independence and take the hazard*. This is done not in hostility to others, not to injure any section of our country, *not even for our own pecuniary benefit, but from the high and solemn motive of defending and protecting*

the rights we inherited and which it is our duty to transmit unshorn to our children."

Southerners were, as Mr. Davis understood it, treading in the path of their fathers when they proclaimed their independence and fought for the right of self-government.

Professor Fite, of Yale, justifies secession on the following ground:

"In the last analysis the one complete justification of secession was the necessity of saving the vast property of slavery from destruction; secession was a commercial necessity designed to make those billions secure from outside interference. Viewed in this light, secession was right, for any people, prompted by the commonest motives of self-defence and with no moral scruples against slavery, would have followed the same course. The present generation of Northerners, born and reared after the war, must shake off their inherited political passions and prejudices and pronounce the verdict of justification for the South. Believing slavery to be right, it was the duty of the South to defend it. It is time that the words 'traitors,' 'conspirators,' 'rebels,' and 'rebellion' be discarded."^[82]

These words of Professor Fite will waken a responsive echo in the hearts of Southerners, but Southerners place, and their fathers planted, themselves on higher ground than commercial considerations. The Confederates were defending their inherited right of local self-government and the Federal Constitution that secured it. It was for these rights that, as Mr. Davis had said, they were willing to *follow the path their fathers trod*.

The preservation of the Union the North was fighting for, was a noble motive; it looked to the future greatness and glory of the republic; but devotion to the Union had been a growth, the product largely of a single generation; the devotion of the South to the right of local self-government was an older and deeper conviction; it had been bred in the bone for three generations; it dated from Bunker Hill and Valley Forge and Yorktown. Close as the non-slave-holders of the South were to the slave-holders, of the same British stock, and with the same traditions, blood kinsmen as they were, they might not have been willing to dare all and do all for the protection of property in which they were not interested; but they were ready to, and they did, wage a death struggle to maintain against a hostile

sectional majority, their inherited right to govern themselves in their own way. Added to this was the ever-present conviction of Southerners all, that they were battling not only for the supremacy of their race but for the preservation of their homes. There was a little ditty quite prevalent in the Army of Northern Virginia, of which nothing is now remembered except the refrain, but that of itself speaks volumes. It ran:

"Do you belong to the rebel band
Fighting for your home?"

Northerners had, most of them, convinced themselves that the South would never dare to secede. The danger of servile insurrections, if nothing else, would prevent it.^[83] Many Southerners, on the other hand, could not see how, under the Constitution, the North could venture on coercion.

But to the South the greatest surprise furnished by the events of that era has been Abraham Lincoln—as he appears now in the light of history. What, in the minds of Southerners, fixed his status personally, during the canvass of 1860, was the statement he had made in his speech at Chicago, preliminary to his great debate with Douglas in 1858, that the Union could not "continue to exist half slave and half free." And he was now the candidate of the "Black Republican" party, a party that was denouncing a decision of the Supreme Court; that, in nearly every State in the North, had nullified the fugitive slave law, and that stood for "negro equality," as the South termed it.

There were other statements by Mr. Lincoln in that debate with Douglas that the South has had especial reason to take note of since the period of Reconstruction. At Springfield, Illinois, September 18, 1858, he said: "There is a physical difference between the white and black races which, I believe, will forever forbid the two races living together on terms of social and political equality, and, *inasmuch as they can not so live, while they do live together there must be the position of superior and inferior; and I, as much as any other man, am in favor of having that position assigned to the white man.*"

The new Confederacy took the Constitution of the United States, so modified as to make it read plainly as Jefferson had expounded it in the Kentucky Resolutions of 1798. Other changes were slight. The presidential

term was extended to six years and the President was not to be re-eligible. The slave trade was prohibited and Congress was authorized to forbid the introduction of slaves from the old Union.

Abraham Lincoln became President, with a fixed resolve to preserve the Union but with no intent to abolish slavery. Had the war for the Union been as successful as he hoped it would be, slavery would not have been abolished by any act of his. It is clear that, when inaugurated, he had not changed his opinions expressed at Springfield, nor those others, which, at Peoria, Illinois, on October 16, 1854, he had stated thus: "When our Southern brethren tell us they are no more responsible for slavery than we are, I acknowledge the fact. When it is said the institution exists and it is very difficult to get rid of it in any satisfactory way, I can understand and appreciate the saying. I will surely not blame them for not doing what I should not know how to do myself. If all earthly power were given me, I should not know what to do as to the institution. My first impulse would be to free all the slaves and send them to Liberia, their native land."

This, he said, it was impracticable to do, at least suddenly, and then proceeded: "To free them all and keep them among us as underlings—is it quite certain that this would better their condition?... What next? Free them and make them politically and socially our equals?" This question he answered in the negative, and continued: "It does seem to me that systems of gradual emancipation might be adopted, but for their tardiness I will not undertake to judge our brethren of the South."

In these extracts from his speeches we find a central thread that runs through the history of his whole administration. We see it again when, pressed by extremists, Mr. Lincoln said in an open letter to Horace Greeley, August 22, 1862: "My paramount object in this struggle is to save the Union, and it is not either to save or to destroy slavery. If I could save the Union without freeing any slave I would do it; and if I could save it by freeing all the slaves I would do it; and if I could save it by freeing some and leaving others alone, I would also do that."

Indeed, Congress had, in 1861, by joint resolution declared that the sole purpose of the war was the preservation of the Union. In no other way, and

for no other purpose, could the North at that time have been induced to wage war against the South.

Abraham Lincoln, the President of the United States, and Jefferson Davis, the President of the Confederate States, were both Kentuckians by birth, both Americans. In the purity of their lives, public and private, in patriotic devotion to the preservation of American institutions as understood by each of them, they were alike; but they represented different phases of American thought, and each was the creature more or less of his environment. Both were men of commanding ability, but the destiny of each was shaped by agencies that now seem to have been directed by the hand of Fate. Mr. Lincoln, by nature a political genius, was carried to Illinois when a child, reared in the North-west among those to whom, with the Mississippi River as their only outlet to the markets of the world, disunion, with its loss of their highway to the sea, was unthinkable. Lincoln became a Whig, with the Union of the States the passion of his life, and finally, by forces he had not himself put in motion, he was placed at the head of the Federal Government at a time when sectionalism had decided that the question of the permanence of the Union was to be tried out, once and forever.

Mr. Davis went from Kentucky further South. He was a Democrat, and environment also moulded his opinions. During the long sectional controversy between the North and the South, "State-rights" became the passion of his life, and when the clash between the sections came, he found himself, without his seeking, at the head of the Confederacy. He had been prominent among the Southerners at Washington, who had hoped that the South, by threats of secession, might obtain its rights in the Union, as had been done in Jefferson's days by New England. In the movement (1860-61) that resulted in secession, the people at home had been ahead of their congressmen. William L. Yancey, then in Alabama, not Jefferson Davis at Washington, was the actual leader of the secessionists. Mr. Davis feared a long and bloody war and, unlike Yancey, he had doubts as to its result.^[84]

Mr. Lincoln, standing for the Union, succeeded in the war, but just as he was on the threshold of his great work of Reconstruction he fell, the victim of a crazy assassin. Martyrdom to his cause has naturally added some cubits to the just measure of his wonderful reputation.

Jefferson Davis and his cause failed; and the triumphant forces that swept the Confederacy out of existence have long (and quite naturally) sought to bury the cause of the South and its chosen leader in ignominy. But the days of hate and passion are past; reason is reasserting her sway; and history will do justice to both the Confederacy and its great leader, whose ability, patriotism, and courage were conspicuous to the end.

Mr. Davis was also a martyr—his long imprisonment, the manacles he wore, the sentinel gazing on him in the bright light that day and night disturbed his rest; the heroism with which he endured all this, and the quiet dignity of his after life—these have doubly endeared his memory to those for whose cause he suffered.

Mr. Lincoln had remarkable political tact—he seemed to know how long to wait and when to act, and, if we may credit Mr. Welles, ^[85] his inflexibly honest Secretary of the Navy, he was, with the members of his cabinet, wonderfully patient and even long-suffering. And although he was the subject of much abuse, especially at the hands of Southerners who then totally misunderstood him, he was animated always by the philosophy of his own famous words, "With malice towards none, with charity for all." Never for one moment did he forget, amidst even the bitterest of his trials, that the Confederates, then in arms against him, were, as he regarded them, his misguided fellow-citizens; and the supreme purpose of his life was to bring them back into the Union, not as conquered foes, but as happy and contented citizens of the great republic.

The resources of the Confederacy and the United States were very unequal. The Confederacy had no army, no navy, no factories, save here and there a flour mill or cotton factory, and practically no machine shops that could furnish engines for its railroads. It had one cannon foundry. The Tredegar Iron Works, at Richmond, Virginia, was a fully equipped cannon foundry. The Confederacy's arms and munitions of war were not sufficient to supply the troops that volunteered during the first six months of military operations. Its further supplies, except such as the Tredegar works furnished, depended on importations through the blockade soon to be established and such as might be captured.

The North had the army and navy, factories of every description, food in abundance, and free access to the ports of the world.

The population of the North was 22,339,978.

The population of the South was 9,103,332, of which 3,653,870 were colored. The total white male population of the Confederacy, of all ages, was 2,799,818.

The reports of the Adjutant-General of the United States, November 9, 1880, show 2,859,132 men mustered into the service of the United States in 1861-65. General Marcus J. Wright, of the United States War Records Office, in his latest estimate of Confederate enlistments, places the outside number at 700,000. The estimate of Colonel Henderson, of the staff of the British army, in his "Life of Stonewall Jackson," is 900,000. Colonel Thomas J. Livermore, of Boston, estimates the number of Confederates at about 1,000,000, and insists that in the Adjutant-General's reports of the Union enlistments there are errors that would bring down the number of Union soldiers to about 2,000,000. Colonel Livermore's estimates are earnestly combated by Confederate writers.

General Charles Francis Adams has, in a recently published volume,^[86] cited figures given mostly by different Confederate authorities, which aggregate 1,052,000 Confederate enlistments. What authority these Confederate writers have relied on is not clear. The enlistments were for the most part directly in the Confederate army and not through State officials. The captured Confederate records should furnish the highest evidence. But it is earnestly insisted that these records are incomplete, and there is no purpose here to discuss a disputed point.

The call to arms was answered enthusiastically in both sections, but the South was more united in its convictions, and practically all her young manhood fell into line, the rich and the poor, the cultured and uncultured serving in the ranks side by side.

The devotion of the noble women of the North, and of its humanitarian associations, to the welfare of the Federal soldiers was remarkable, but there was nothing in the situation in that section that could evoke such a wonderful exhibition of heroism and self-sacrifice as was exhibited by the

devoted women of the South, who made willingly every possible sacrifice to the cause of the Confederacy.

Both sides fought bravely. Excluding from the Union armies negroes, foreigners, and the descendants of recent immigrants, the Confederates and the Union soldiers were mainly of British stock. The Confederates had some notable advantages. Excepting a few Union regiments from the West, the Southerners were better shots and better horsemen, especially in the beginning of the war, than the Northerners; and the Southerners were fighting not only for the Constitution of their fathers and the defence of their homes, but for the supremacy of their race. They had also another military advantage, that would probably have been decisive but for the United States navy: they had interior lines of communication which would have enabled them to readily concentrate their forces. But the United States navy, hovering around their coast-line, not only neutralized but turned this advantage into a weakness, thus compelling the Confederates to scatter their armies. Every port had to be guarded.

In the West the Federals were almost uniformly successful in the greater battles, the Confederates winning in these but two decisive victories, Chickamauga and Sabine Cross Roads, in Louisiana. Estimating, according to the method of military experts, the percentage of losses of the victor only, Chickamauga was the bloodiest battle of the world, from and including Waterloo down to the present time. Gettysburg and Sharpsburg also rank as high in losses as any battle fought elsewhere in this long period, which takes in the Franco-German and the Russo-Japanese wars. At Sharpsburg or Antietam the losses exceeded those in any other one day's battle.^[87]

The Confederates were successful, excepting Antietam or Sharpsburg and Gettysburg, and perhaps Seven Pines or Fair Oaks, in all the great battles in the East, down to the time when the shattered remnant of Lee's army was overwhelmed at Petersburg and surrendered at Appomattox. The *élan* the Southerners acquired in the many victories they won fighting for their homes is not to be overlooked. But the failure of the North with its overwhelming numbers and resources, to overcome the resistance of the half-famished Confederates until nearly four years had elapsed, can only be fully accounted for, in fairness to the undoubted courage of the Union armies, by the fact, on which foreign military critics are agreed, that the

North had no such generals as Lee and Stonewall Jackson. Only by the superior generalship of their leaders could the Confederates have won as many battles as they did against vastly superior numbers.

But against the United States navy the brilliant generalship of the Confederates and their marvellous courage were powerless.

Accepted histories of the war have been written largely by the army and its friends, and, strangely enough, the general historians have been so attracted by the gallantry displayed in great land battles, and the immediate results, that they have utterly failed to appreciate the services of the United States navy.

The Southerners accomplished remarkable results with torpedoes with the *Merrimac* or *Virginia* and their little fleet of commerce destroyers; but the United States navy, by its effective blockade, starved the Confederacy to death. The Southern government could not market its cotton, nor could it import or manufacture enough military supplies. Among its extremest needs were rails and rolling stock to refit its lines of communication. For want of transportation it was unable to concentrate its armies, and for the same reason its troops were not half fed.

In addition to its services on the blockade, which, in Lord Wolseley's opinion, decided the war, the navy, with General Grant's help, cut the Confederacy in twain by way of the Mississippi. It penetrated every Southern river, severing Confederate communications and destroying depots of supplies. It assisted in the capture, early in the war, of Forts Henry and Donelson, and it conducted Union troops along the Tennessee River into east Tennessee and north Alabama. It furnished objective points and supplies at Savannah, Charleston, and Wilmington, to Sherman on his march from Atlanta; and finally Grant, the great Union general, who had failed to reach Richmond by way of the Wilderness, Spottsylvania, and Cold Harbor, achieved success only when the navy was at his back, holding his base, while he laid a nine months' siege to Petersburg.

That distinguished author, Charles Francis Adams, himself a Union general in the Army of the Potomac, says that the United States navy was the deciding factor in the Civil War. He even says that every single successful operation of the Union forces "hinged and depended on naval supremacy."

The following is from the preface to "The Crisis of the Confederacy," in which, published in 1905, a foreign expert, Captain Cecil Battine, of the King's Hussars, condenses all that needs further to be said here about the purely military side of the Civil War:

The history of the American Civil War still remains the most important theme for the student and the statesman because it was waged between adversaries of the highest intelligence and courage, who fought by land and sea over an enormous area with every device within the reach of human ingenuity, and who had to create every organization needed for the purpose after the struggle had begun. The admiration which the valor of the Confederate soldiers, fighting against superior numbers and resources, excited in Europe; the dazzling genius of some of the Confederate generals, and in some measure jealousy at the power of the United States, have ranged the sympathies of the world during the war and ever since to a large degree on the side of the vanquished. Justice has hardly been done to the armies which arose time and again from sanguinary repulses, and from disasters more demoralizing than any repulse in the field, because they were caused by political and military incapacity in high places, to redeem which the soldiers freely shed their blood as it seemed in vain. If the heroic endurance of the Southern people and the fiery valor of the Southern armies thrill us to-day with wonder and admiration, the stubborn tenacity and courage which succeeded in preserving intact the heritage of the American nation, and which triumphed over foes so formidable, are not less worthy of praise and imitation. The Americans still hold the world's record for hard fighting.

The great majority of the Union soldiers enlisted for the preservation of the Union and not for the abolition of slavery. But among these soldiers there was an abolition element, and very soon the tramp of federal regiments was keeping time to

"John Brown's body lies a mouldering in the ground,
As we go marching on."

Early in the war Generals Frémont and Butler issued orders declaring free the slaves within the Union lines; these orders President Lincoln rescinded.

But Abolition sentiment was growing in the army and at the North, and the pressure upon the President to strike at slavery was increasing. The Union forces were suffering repeated defeats; slaves at home were growing food crops and caring for the families of Confederates who were fighting at the front, and in September, 1862, President Lincoln issued his preliminary proclamation of emancipation, basing it on the ground of military necessity. It was to become effective January 1, 1863.

And here was the same Lincoln who had declared in 1858 his opinion that whites and blacks could not live together as equals, socially and politically; and it was the very same Lincoln who had repeatedly said he cherished no ill-will against his Southern brethren. If the slaves were to be freed, they and the whites should not be left together. He therefore *sought diligently to find some home for the freedmen in a foreign country*. But unfortunately, as already seen, the American negro, a bone of contention at home, was now a pariah to other peoples. Most nations welcome immigrants, but no country was willing to shelter the American freedman, save only Liberia, long before a proven failure, and Hayti, where, under the blacks, anarchy had already been chronic for half a century. Hume tells us, in "The Abolitionists," that for a time Mr. Lincoln even considered setting Texas apart as a home for the negro.

Later the surrender of the Confederate armies, together with the adoption of the Thirteenth Amendment to the Constitution, consummated emancipation, foreseeing which President Lincoln formulated his plan of Reconstruction. Suffrage in the reconstructed States under his plan was to be limited to those who were qualified to vote at the date of secession, which meant the whites. The sole exception he ever made to this rule was a suggestion to Governor Hahn, of Louisiana, that it might be well for the whites (of Louisiana) to give the ballot to a few of the most intelligent of the negroes and to such as had served in the army.

The part the soldiers played, Federal and Confederate, in restoring the Union, is a short story. The clash between them settled without reserve the only question that was really in issue—secession; slavery, that had been the origin of sectional dissensions, was eliminated because it obstructed the success of the Union armies. By their gallantry in battle and conduct toward each other the men in blue and the men in gray restored between the North

and the South the mutual respect that had been lost in the bitterness of sectional strife, and without which there could be no fraternal Union.

Mr. Gladstone, when the war was on, said that the North was endeavoring to "propagate free institutions at the point of the sword." The North was not seeking to propagate in the South any new institution whatever. Mr. Gladstone's paradox loses its point because both sections were fighting for the preservation of the same system of government.

The time has now happily come when, to use the language of Senator Hoar, as Americans, we can, North and South, discuss the causes that brought about our terrible war "in a friendly and quiet spirit, without recrimination and without heat, each understanding the other, each striving to help the other, as men who are bearing a common burden and looking forward with a common hope."

The country, it is believed, has already reached the conclusions that the South was absolutely honest in maintaining the right of secession and absolutely unswerving in its devotion to its ideas of the Constitution, and that the North was equally honest and patriotic in its fidelity to the Union. We need to advance one step further. Somebody was to blame for starting a quarrel between brethren who were dwelling together in amity. If Americans can agree in fixing that blame, the knowledge thus acquired should help them to avoid such troubles hereafter.

It seems to be a fair conclusion that the *initial cause of all our troubles was the formation by Garrison of those Abolition societies* which the Boston people in their resolutions of August 1, 1835, "disapproved of" and described as "associations instituted in the non-slave-holding States, with the intent to act, within the slave-holding States, on the subject of slavery in those States, without their consent." And further, that it was the creation of these societies, the methods they resorted to, and their explicit defiance of the Constitution that roused the fears and passions of the South and caused that section to take up the quarrel that, afterward became sectional; and that, after much hot dispute and many regrettable incidents, North and South, resulted in secession and war.

In every dispute about slavery prior to 1831, the Constitution was always regarded by every disputant as supreme. *The quarrel that was fatal to the*

peace of the Union began when the New Abolitionists put in the new claim, that slavery in the South was the concern of the North, as well as of the South, and that there was a higher law than the Constitution. If the conscience of the individual, instead of human law, is to prescribe rules of conduct, society is at the mercy of anarchists. Czolgosz was conscientious when he murdered McKinley.

Had all Americans continued to agree, after 1831, as they did before that time, that the Constitution of the United States was the supreme law of the land, there would have been no fatal sectional quarrel, no secession, and no war between the North and South.

The immediate surrender everywhere of the Confederates in obedience to the orders of their generals was an imposing spectacle. There was no guerilla warfare. The Confederates accepted their defeat in good faith and have ever since been absolutely loyal to the United States Government, but they have never changed their minds as to the justice of the cause they fought for. They fought for liberty regulated by law, and against the idea that there can be, under our system, any higher law than the Constitution of our country. That the Constitution should always be the supreme law of the land, they still believe, and the philosophic student of past and current history should be gratified to see the tenacity with which Southern people still cling to that idea. It suggests that not only will the Southerners be always ready to stand for our country against a foreign foe, but that whenever our institutions shall be assailed, as they will often be hereafter by visionaries who are impatient of restraints, the cause of liberty, regulated by law, will find staunch defenders in the Southern section of our country.

CHAPTER X

RECONSTRUCTION, LINCOLN-JOHNSON PLAN AND CONGRESSIONAL.

President Lincoln's theory was that acts of secession were void, and that when the seceded States came back into the Union those who were entitled to vote, by the laws existing at the date of the attempted secession, and had been pardoned, should have, and should control, the right of suffrage. Mr. Lincoln had acted on this theory in Tennessee, Louisiana, and Texas, and he further advised Congress, in his message of December, 1863, that this was his plan. Congress, after a long debate, responded in July, 1864, by an act claiming for itself power over Reconstruction. The President answered by a pocket veto, and after that veto Mr. Lincoln was, in November, 1864, re-elected on a platform extolling his "practical wisdom," etc. Congress, during the session that began in December, 1864, did not attempt to reassert its authority but adjourned, March 4, 1865, in sight of the collapse of the Confederacy, leaving the President an open field for his declared policy.

But unhappily, on the 14th of April, 1865, Mr. Lincoln was assassinated, and his death just at this time was the most appalling calamity that ever befell the American people. The blow fell chiefly upon the South, and it was the South the assassin had thought to benefit.

Had the great statesman lived he might, and it is fully believed he would, like Washington, have achieved a double success. Washington, successful in war, was successful in guiding his country through the first eight stormy years of its existence under a new constitution. Lincoln had guided the country through four years of war, and the Union was now safe. With Lee's surrender the war was practically at an end.

Gideon Welles says that on the 10th of April, 1865, Mr. Lincoln, "while I was with him at the White House, was informed that his fellow-citizens would call to congratulate him on the fall of Richmond and surrender of Lee; but he requested their visit should be delayed that he might have time

to put his thoughts on paper, for he desired that his utterances on such an occasion should be deliberate and not liable to misapprehension, misinterpretation, or misconstruction. He therefore addressed the people on the following evening, Tuesday the 11th, in a carefully prepared speech intended to promote harmony and union.

"In this remarkable speech, delivered three days before his assassination, he stated he had prepared a plan for the reinauguration of the sectional authority and reconstruction in 1863, which would be acceptable to the executive government, and that every member of the cabinet fully approved the plan," etc. [\[88\]](#)

In view of his death three days later, this, his last and deliberate public utterance, may be regarded as Abraham Lincoln's will, devising as a legacy to his countrymen his plan of reconstruction. That plan in the hands of his successor was defeated by a partisan and radical Congress. That it was a wise plan the world now knows.

Senator John Sherman, of Ohio, was one of the most influential of those who succeeded in defeating it, and yet he lived to say, in his book published in 1895, [\[89\]](#) Andrew Johnson "adopted substantially the plan proposed and acted on by Mr. Lincoln. After this long lapse of time I am convinced that Mr. Johnson's scheme of reorganization was wise and judicious. It was unfortunate that it had not the sanction of Congress and that events soon brought the President and Congress into hostility."

And the present senator, Shelby Cullom, of Illinois, who as a member of the House of Representatives voted to overthrow the Lincoln-Johnson plan of Reconstruction, has furnished us further testimony. He says in his book, published in 1911: [\[90\]](#)

"To express it in a word, the motive of the opposition to the Johnson plan of Reconstruction was a firm conviction that its success would wreck the Republican party and, by restoring the Democracy to power, bring back Southern supremacy and Northern vassalage."

The Republican party, then dominant in Congress, felt when confronting Reconstruction that it was facing a crisis in its existence. The Democratic party, unitedly opposed to negro suffrage, was still in Northern States a

power to be reckoned with. Allied with the Southern whites, that old party might again control the government unless, by giving the negro the ballot, the Republicans could gain, as Senator Sumner said, the "allies it needed." But the masses at the North were opposed to negro suffrage, and only two or three State constitutions sanctioned it. Indeed, it may be safely said that when Congress convened in December, 1865, a majority of the people of the North were ready to follow Johnson and approve the Lincoln plan of Reconstruction. But the extremists in both branches of the Congress had already determined to defeat the plan and to give the ballot to the ex-slave. To prepare the mind of the Northern people for their programme, they had resolved to rekindle the passions of the war, which were now smouldering, and utilize all the machinery, military and civilian, that Congress could make effective.

Andrew Johnson,^[91] who as vice-president now succeeded to the presidency, though a man of ability, had little personal influence and none of Lincoln's tact. Johnson retained Lincoln's cabinet, and McCullough, who was Secretary of the Treasury under both presidents, says in his "Men and Measures of Half a Century," p. 378:

"The very same instrument for restoring the national authority over North Carolina and placing her where she stood before her secession, which had been approved by Mr. Lincoln, was, by Mr. Stanton, presented at the first cabinet which was held at the executive mansion after Mr. Lincoln's death, and, having been carefully considered at two or three meetings, was adopted as the Reconstruction policy of the administration."

Johnson carried out this plan. All the eleven seceding States repealed their ordinances of secession. Their voters, from which class many leaders had been excluded by the presidential proclamation, all took the oath of allegiance, and reconstructed their State governments. From most of the reconstructed States, senators and representatives were in Washington asking to be seated when Congress convened, December 4, 1865.

The presidential plan of Reconstruction had been promptly accepted by the people of the prostrate States. Almost without exception they had, when permitted, taken the oath and returned to their allegiance.

The wretchedness of these people in the spring of 1865 was indescribable. The labor system on which they depended for most of their money-producing crops was destroyed. Including the disabled, twenty per cent of the whites, who would now have been bread-winners, were gone. The credit system had been universal, and credit was gone. Banks were bankrupt. Confederate currency and bonds were worthless. Provisions were scarce and money even scarcer. Many landholders had not even plough stock with which to make a crop.

There was some cotton, however, that had escaped the ravages of war, and a large part of this also escaped the rapacious United States agents, who were seizing it as Confederate property. This cotton was a godsend. There was another supply of money that came from an unexpected source. The old anti-slavery controversy had made it seem perfectly clear to many moneyed men, North, that free labor was always superior to slave labor; and now, when cotton was bringing a good price, enterprising men carried their money, altogether some hundreds of thousands of dollars, into the several cotton States, to buy plantations and make cotton with free negro labor. Free negro labor was not a success. Those who had reckoned on it lost their money; but this money went into circulation and was helpful.

Above all else loomed the negro problem. Five millions of whites and three and a half millions of blacks were to live together. Thomas Jefferson had said, "Nothing is more certainly written in the Book of Fate than that these people are to be free; *nor is it less certain that the two races, equally free, cannot live in the same government. Nature, habit, opinion have drawn indelible lines between them.*"^[92] And it may truly be said of Jefferson that he was, as quite recently he was declared to be by Dr. Schurman, President of Cornell University, the "apostle of reason, and reason alone."

What system of laws could Southern conventions and legislatures frame, that would enable them to accomplish what Jefferson had declared was impossible? This was the question before these bodies when called together in 1865-66 by Johnson to rehabilitate their States. Two dangers confronted them. One was, armed bands of negroes, headed by returning negro soldiers. Mr. Lincoln had feared this. Early in April of that very year, 1865, he said to General Butler: "I can hardly believe that the South and North can live in peace unless we can get rid of the negroes, whom we have

armed and disciplined, and who have fought with us, to the amount, I believe, of one hundred and fifty thousand." Mississippi, and perhaps one other State, to guard against the danger from this source, enacted that negroes were only to bear arms when licensed. This law was to be fiercely attacked.

The other chief danger was that idleness among the negroes would lead to crime. It soon became apparent that the negro idea was that freedom meant freedom from work. They would not work steadily, even for their Northern friends, who were offering ready money for labor in their cotton fields, and multitudes were loitering in towns and around Freedmen's Bureau offices. Nothing seemed better than the old-time remedies, apprenticeship and vagrancy laws, then found in every body of British or American statutes. These laws Southern legislatures copied, with what appeared to be necessary modifications, and these laws were soon assailed as evidence of an intent to reduce the negro again to slavery. Mr. James G. Blaine, in his "Twenty Years," selected the Alabama statutes for his attack. In the writer's book, "Why the Solid South," pp. 31-36, the Alabama statutes cited by Mr. Blaine are shown to be very similar to and largely copied from the statutes of Vermont, Massachusetts, and Rhode Island.

Had Mr. Lincoln been living he would have sympathized with these Southern law-makers in their difficult task. But to the radicals in Congress nothing could have been satisfactory that did not give Mr. Sumner's party the "allies it needed."

The first important step of the Congress that convened December 4, 1865, was to refuse admission to the congressmen from the States reconstructed under the Lincoln-Johnson plan, and pass a joint resolution for the appointment of a Committee of Fifteen to inquire into conditions in those States.

The temper of that Congress may be gauged by the following extract from the speech of Mr. Shellabarger, of Ohio, on the passage of the joint resolution:

"They framed iniquity and universal murder into law.... Their pirates burned your unarmed commerce on the sea. They carved the bones of your dead heroes into ornaments, and drank from goblets made out of their skulls.

They poisoned your fountains; put mines under your soldiers' prisons; organized bands, whose leaders were concealed in your homes; and commissions ordered the torch and yellow fever to be carried to your cities and to your women and children. They planned one universal bonfire of the North from Lake Ontario to the Missouri," etc.

Congress, while refusing admission to senators elected by the legislatures of the reconstructed States, was permitting these very bodies to pass on amendments to the Federal Constitution; and such votes were counted. Congress now proposed the Fourteenth Amendment, Section III of which provided that no person should hold office under the United States who, having taken an oath, as a Federal or State officer, to support the Constitution, had subsequently engaged in the war against the Union. The Southerners would not vote for a provision that would disfranchise their leaders; they refused to ratify the Fourteenth Amendment, and this helped further to inflame the radicals of the North.

After the Committee of Fifteen had been appointed, Congress proceeded to put the reconstructed States under military control. In the debate on the measure, February 18, 1867, James A. Garfield, who was, at a later date, to become generous and conservative, said exultingly: "This bill sets out by laying its hands on the rebel governments and taking the very breath of life out of them; in the next place, it puts the bayonet at the breast of every rebel in the South; in the next place, it leaves in the hands of Congress utterly and absolutely the work of Reconstruction."

And Congress did its work. Lincoln was in his grave, and Johnson, even with his vetoes, was powerless. By the acts of March 2 and March 23, 1867, the reconstructed governments were swept away. Universal suffrage was given to the negro and most of the prominent whites were disfranchised.

The first suffrage bill was for the District of Columbia, during the debate on which Senator Sumner said: "Now, to my mind, nothing is clearer than the absolute necessity of suffrage for all colored persons in the disorganized States. It will not be enough, if you give it to those who can read and write; you will not in this way acquire the voting force you need there for the protection of Unionists, whether white or black. You will not acquire the new allies who are essential to the national cause."

In the forty-first Congress, beginning March 4, 1871, the twelve reconstructed States, including West Virginia, were represented by twenty-two Republicans and two Democrats in the Senate, and forty-eight Republicans and twelve Democrats in the House of Representatives.

Mr. Sumner's "new allies" were ready to answer to the roll-call.

When Congress had convened in December, 1865, its radical leaders were already bent on universal suffrage for the negro, but the Northern mind was not yet prepared for so radical a measure. The "Committee of Fifteen" was the first step in the programme, which was to hold the Southern States out of the Union and make an appeal to the passions and prejudices of Northern voters in the congressional elections of November, 1866. Valuable material for the coming campaign was already being furnished by the agents of the Freedmen's Bureau. These "adventurers, broken down preachers, and politicians," as Senator Fessenden, of Maine, called them, were, and had been for some time, reporting "outrages," swearing negroes into midnight leagues, and selecting the offices they hoped to fill.

But the chief source of the material relied upon in the congressional campaign of 1866 to exasperate the North, and prod voters to the point of sanctioning negro suffrage in the South, was the official information from the Committee of Fifteen. Its subcommittee of three, to take testimony as to Virginia, North and South Carolina, Georgia, Alabama, Mississippi, and Arkansas, were *all Republicans*. The doings of this subcommittee in Alabama illustrate their methods. Only five persons, who claimed to be citizens, were examined. These were all Republican politicians. The testimony of each was bitterly partisan. "Under the government of the State as it then existed, no one of these witnesses could hope for official preferment. When this Reconstruction plan had been completed the first of these five witnesses became governor of his State; the second became a senator in Congress; the third secured a life position in one of the departments in Washington; the fourth became a circuit judge in Alabama, and the fifth a judge of the Supreme Court of the District of Columbia—all

as Republicans. There was no Democrat in the subcommittee which examined these gentlemen, to cross-examine them; and not a citizen of Alabama was called before that subcommittee to confute or explain their evidence."^[93]

With the material gathered by these means and from these sources, the honest voters of the North were deluded into the election of a Congress that went to Washington, in December, 1866, armed with authority to pass the Reconstruction laws of March, 1867.

Southern counsels were now much divided. Many good men, like Governor Brown, of Georgia; General Longstreet and ex-Senator Albert Gallatin Brown, of Mississippi, advised acquiescence and assistance, "not because we approve the policy of Reconstruction, but because it is the best we can do." These advisers hoped that good men, well known to the negroes, might control them for the country's good; and zealous efforts were made along this line in every State, but they were futile. The blacks had already, before they got the suffrage, accepted the leadership of those claiming to be the "men who had freed them." These leaders were not only bureau agents but army camp-followers; and there was still another brood, who espied from afar a political Eden in the prostrate States and forthwith journeyed to it. All these Northern adventurers were called "carpet-baggers"—they carried their worldly goods in their hand-bags. The Southerners who entered into a joint-stock business with them became "scalawags." These people mustered the negroes into leagues, and everywhere whispered it into their ears that the aim of the Southern whites was to reënslave them.

Politics in the South in the days before the war had always been more or less intense, partly because there were so many who had leisure, and partly because the general rule was joint political discussions. The seams that had divided Whigs and Democrats, Secessionists and Union men, had not been entirely closed up, even by the melting fires of the Civil War. Old feuds for a time played their part in Southern politics, even after March, 1867. These old feuds made it difficult for Southern whites to get together as a race; and, in fact, conservative men dreaded the idea. It tended toward an actual race war which, for many years, had been a nightmare; but in every reconstructed State the negro and his allies finally forced the race issue.

The new rulers not only increased taxes and misappropriated the revenues of counties, cities, and States; they bartered away the credit of State after State. Some of the States, after they were redeemed, scaled their debts by compromising with creditors; others have struggled along with their increased burdens.

There were hundreds of negro policemen, constables, justices of the peace, and legislators who could not write their names. Justice was in many localities a farce. Ex-slaves became judges, representatives in Congress, and United States senators. The eleven Confederate States had been divided into military districts. Many of the officers and men who were scattered over the country to uphold negro rule sympathized with the whites and evidenced their sympathy in various ways. Others, either because they were radicals at heart, or to commend themselves to their superiors, who were some of them aspiring to political places, were super-serviceable; and it was not uncommon for a military officer, in a case where a negro was a party, to order a judge to leave the bench and himself take the place. In communities where negro majorities were overwhelming there were usually two factions, and when political campaigns were on agents for these clans often scoured the fields clear of laborers to recruit their marching bands. In cities these bands made night hideous with shouts and the noise of fifes and drums. The negro would tolerate no defection from his ranks to the whites, and negro women were more intolerant than the men. It sometimes happened that a bloody clash between the races was imminent when white men sought to protect a negro who had dared to speak in favor of the Democratic and Conservative party. In truth, the civilization of the South was being changed from white to negroid.

The final triumph of good government in all the States was at last accomplished by accepting the race issue, as in Alabama in 1874. The first resolution in the platform of the "Democratic and Conservative party" in that State then was, "The radical and dominant faction of the Republican party in this State persistently, and by fraudulent representations, have inflamed the passions and prejudices of the negroes, as a race, against the white people, and have thereby made it necessary for the white people to unite and act together in self-defence and for the preservation of white civilization."

The people of North Carolina recovered the right of self-government in 1870. Other States followed from time to time, the last two being Louisiana and South Carolina in 1877.

Edwin L. Godkin, who was for long at the head of the *Nation* and the *Evening Post*, of New York, is thought by some competent judges to have been the ablest editor this country has ever had. After the last of the negro governments set up in the South had passed away, looking back over the whole bad business, Mr. Godkin, in a letter to his friend Charles Eliot Norton, written from Sweet Springs, West Virginia, September 3, 1877, said: "I do not see in short how the negro is ever to be worked into a system of government for which you and I could have much respect."^[94]

Garrison is dead. At the centenary of his birth, December 12, 1904, an effort was made to arouse enthusiasm. There was only a feeble response; but we still have extremists. Professor Josiah Royce, of Harvard, in "Race Questions" (1906), speaking of race antipathies as "trained hatred," says, pp. 48-49: "We can remember that they are childish phenomena in our lives, phenomena on a level with the dread of snakes or of mice, phenomena that we share with the cats and with the dogs, not noble phenomena, but caprices of our complex nature."

CHAPTER XI

THE SOUTH UNDER SELF-GOVERNMENT

For now more than thirty years, whites and blacks, both free, have lived together in the reconstructed States. In some of them there have been local clashes, but in none of them has there been race war, predicted by Jefferson and feared by Lincoln; and there probably never will be such a war, unless it shall come through the intervention of such an outside force as produced in the South the conflict between the races at the polls in 1868-76.

Every State government set up under the plan of Congress had wrought ruin, and the ruin was always more complete where the negroes were most numerous, as in South Carolina and Louisiana.

The rule of the carpet-bagger and the negro was now superseded by governments based on Abraham Lincoln's idea, the idea he expressed in the debate with Douglas in 1858, when he said: "While they [the two races] do remain together *there must be the position of inferior and superior*, and I, as much as any other man, *am in favor of having the superior position assigned to the white man.*"

Conducted on this basis, the present governments in the reconstructed States have endured now for periods varying from thirty-six to forty-two years, and in every State, without any exception, the prosperity of both whites and blacks has been wonderful, and this in spite of the still existent abnormal animosities engendered by congressional reconstruction.

In the present State governments the race problem seems to have reached, in its larger lines, its only practicable solution. There is still, however, much friction between whites and blacks. Higher culture among the masses, especially of the dominant race, and wise leadership in both races, will in time minimize this, but it is not to be expected, nor is it ever to be desired, that racial antipathies should entirely cease to exist. The result of such cessation would be amalgamation, a solution that American whites will never tolerate.

Deportation, as a solution of the negro problem, is impracticable. Mr. Lincoln, much as he desired the separation of the races, could not accomplish it, even when he had all the war power of the government in his hands. He was, as we have seen, unable to find a country that would take the 3,500,000 of blacks then in the seceded States. Now, there are in the South, including Delaware, according to the census of 1910, 8,749,390, and, quite naturally, the American negro is more unwilling than ever to leave America.

Another solution sometimes suggested in the South is the repeal of the Fifteenth Amendment, which declares that the negro shall not be deprived of the ballot because of his race, but agitation for this would appear to be worse than useless.

The negro vote in the reconstructed States is, and has for years been, quite small, not large enough to be considered a factor in any of them. One cause of this is that the whites enforce against the blacks rigidly the tests required by law, but the chief reason is, that the negro, who is qualified, does not often apply for registration. He finds work now more profitable than voting. He can not, he knows, control, nor can he, if disposed to do so, sell his ballot as he once did. One of the most signal and durable evils of Congressional Reconstruction was the utter debasement of the suffrage in eleven States where the ballot had formerly been notably pure. Gideon Welles saw clearly when he said in his diary, June 23, 1867 (p. 102, vol. III): "Under the pretence of elevating the negro the radicals are degrading the whites and debasing the elective franchise, bringing elections into contempt." During the rule of the negro and the alien, in every black county, where the negro majority was as two to one, there were, as a rule, two Republican candidates for every fat office, and an election meant, for the negro, a golden harvest. Rival candidates were mercilessly fleeced by their black constituencies, and the belief South is that as a rule the carpet-baggers, in their hegira, returned North as poor as when they came.

In the Reconstruction era the whites fought fraud with fraud; and even after recovering control they, the whites, felt justified in continuing to defraud the negro of his vote. To restore the purity of the ballot-box was the chief reason for the amendments to State constitutions, by means of which

amendments, having in view the limitations of the Federal Constitution, as many negroes and as few whites as was practicable were excluded.

This accounts in part for the smallness of the negro vote South. A more potent reason is that the Democratic party, dominated by whites, selects its candidates in primaries; and the negro, seeing no chance to win, does not care to pay a poll tax or otherwise qualify for registration.

Southern whites have now for more than three decades been governing the blacks in their midst. It is the most difficult task that has ever been undertaken in all the history of popular government, but sad experience has demonstrated that legal restriction of the negro vote in the South there must be.

Party spirit tends always to blind the vision, and, as we have seen in this review of the past, it often stifles conscience; and this even where the masses of the people are approximately homogeneous. Southern statesmen are now dealing not only with party spirit, but with perpetual race friction manifesting itself in various forms. Failure there must be in minor matters and in certain localities; the progress that has been made can only be fairly estimated by considering general results. Those who sympathize with the South think they see there among the whites a growing spirit of altruism, begotten of responsibility, and this promises much for the amelioration of race friction.

Since obtaining control of their State governments the whites in the Southern States have as a rule increased appropriations for common schools by at least four hundred per cent, and though paying themselves by far the greater proportion of these taxes, they have continued to divide revenues pro rata between the white and colored schools.

Industrial results have been amazing. The following figures, taken from the Annual Blue Book, 1911 edition, of the *Manufacturers' Record*, Baltimore, Maryland, include West Virginia among the reconstructed States.

The population of these States was, in 1880, 13,608,703; in 1910, 23,613,533.

Manufacturing capital, 1880, \$147,156,624. In 1900—twenty years—it was \$1,019,056,200.

Cotton crop, whole South, 1880, 5,761,252 bales. In 1911 it was about 15,000,000.

Of this cotton crop Southern mills took, in 1880, 321,337 bales, and in 1910, 2,344,343 bales.

In 1880 the twelve reconstructed States cut, of lumber, board measure, 2,981,274,000 feet; and in 1909 22,445,000,000 feet.

Their output of pig-iron was, in 1880, 264,991 long tons; in 1910, 3,048,000 tons. The assessed value of taxable property was, in 1880, \$2,106,971,271; in 1910, \$6,522,195,139.

The negro, though the white man, with his superior energy and capacity, far outstrips him, has shared in this material prosperity. His property in these States has been estimated as high as \$500,000,000.

During the last decade, 1900-1910, the white population of the South increased by 24.4 per cent, while the negro population in the same States increased only 10.4 per cent. There has been a very considerable gain of whites over blacks since 1880, the result largely of a greater natural increase of whites over blacks, immigrants not counted. All this indicates that the negro problem is gradually being minimized.

Taken in the aggregate, the shortcomings of the negro are numerous and regrettable, but not greater than was to be expected. The general advance of an inferior race will never equal that of one which is superior by nature and already centuries ahead. The laggard and thriftless among the inferior people will naturally be more, and it is from these classes that prison houses are filled.

There is a very considerable class of negroes who are improving mentally and morally, but improvidence is a characteristic of the race, and very many of them, even though they labor more or less steadily, will never accumulate. The third class, much larger than among the whites, is composed of those who are idle, dissipated, and criminal. Taken altogether, however, what Booker Washington says is true: "There cannot be found, in the civilized or uncivilized world, a like number of negroes whose economic, educational, and religious life is so far advanced as that of the

ten millions within this country."^[95] This advancement is one of the results of slavery. When the negroes come to recognize this, as some of their leaders already do,^[96] and come to appreciate the advantages for further improvement they have had since their emancipation, they will cease to repine over the bondage of their ancestors. There were undoubtedly evils in slavery, but, after all, there was some reason in the advice given by the good Spanish Bishop Las Casas to the King of Spain—that it would be rightful to enslave and thus Christianize and civilize the African savage. Herbert Spencer, "Illustrations of Universal Progress" (p. 444), says: "Hateful though it is to us, and injurious as it would be now, slavery was once beneficial, was one of the *necessary phases of human progress*."

Sir Harry Johnston, African explorer and student of the negro race, in both the old and the new world, and perhaps the most eminent authority on a question he has, in a fashion, made his own, says: "Intellectually, and perhaps physically, he (the negro) has attained the highest degree of advancement as yet in the United States."^[97]

"In Alabama (most of all) the American negro is seen at his best, as peasant, peasant proprietor, artisan, professional man, and member of society."^[98]

Race animosities are now abnormal, both South and North. The prime reasons for this are two:

1. The bitter conflict during reconstruction for race supremacy and the false hopes once held out to the negro of ultimate social equality with the whites. Among the early measures of congressional reconstruction was a "civil rights" enactment which the negroes regarded as giving to them all the rights of the white man. Their Supreme Court in Alabama decided, in "Burns vs. The State," that the "civil rights" laws conferred the right to intermarriage. Negroes, North, no doubt also believed in this construction. But the Supreme Court of the United States later held that the States, and not Congress, had jurisdiction over the marriage relation within the States. All the Southern and a number of the Northern States have since forbidden the intermarriage of whites and blacks, and so the negro's hopes of equal rights in this regard have vanished.

This disappointment and his utter failure to secure the social equality that once seemed his, have tended to embitter the negro against the white man.

2. Whites have been embittered against blacks by the frequency in later years of the crime of the negro against white women. This horrible offence began to be common in the South some thirty-two or three years since, or perhaps a little earlier, and somewhat later it appeared in the North, where it seems to have been as common, negro population considered, as in the South. The crime was almost invariably followed by lynching, which, however, was not always for the same crime. The following is the list of lynchings in the sections, as kept by the *Chicago Tribune* since it began to compile them:

1885	184
1886	138
1887	122
1888	142
1889	176
1890	127
1891	192
1892	205
1893	200
1894	190
1895	171
1896	181
1897	166
1898	127
1899	107
1900	107
1901	185
1902	96
1903	104
1904	87
1905	66
1906	66
1907	68
1908	100
1909	87
1910	74

The general decrease, while population is increasing, is encouraging; but lynching itself is a horrible crime; and lynching for one crime begets lynching for another. Of the total number lynched last year, nine were whites; sixty-five were negroes, among them three women; and only twenty-two were for crimes of negroes against white women. The other crimes were murder, attempts to murder, robbery, arson, etc.

Census returns indicate that in the country at large the criminality of the negro, as compared with that of the white man, is nearly three times greater, and that the ratio of negro criminality is much higher North than South.

Such returns also indicate that so far education has not lessened negro criminality,^[99] but it is not known that any well-educated negro has been guilty of the crime against white women.

In the South the negro is excluded from many occupations for which the best of them are fitted, but in the North his industrial conditions are worse. Fewer occupations are open to him and the wisest members of his race are counselling him to remain in the more favorable industrial atmosphere of the South.

The dislike of negroes for whites has been increased South by the laws which separate them from whites in schools, public conveyances, etc. But it is to be remembered that these laws were intended to prevent intermarriage; they are in part the result of race antipathies. But the sound reason for them is that they tend to prevent intimacies which, at the points where the races are in closest touch with each other, might result in intermarriage. Professor E. D. Cope, of the University of Pennsylvania, one of the very highest of American authorities on the race question, in a powerful article published in 1890,^[100] advocated the deportation of the negroes from the South, no matter at what cost. Otherwise he predicted eventual amalgamation, which would be the destruction of a large portion of the finest race in the world.

This little study now comes to a close. An effort has been made to sketch briefly in this chapter the difficulties the South has encountered in dealing with the negro problem, and to outline the measure of success it has achieved. However imperfectly the author may have performed his task, it must be clear to the reader that no such problem as the present was ever before presented to a self-governing people. Never was there so much need of that culture from which alone can come a high sense of duty to others. The negro must be encouraged to be self-helpful and useful to the community. If he is to do all this and remain a separate race, he must have leadership among his own people. In the Mississippi Black Belt there is now a town of some 4,000 negroes, Mound Bayou, completely organized

and prospering. It may be that in the future negroes seeking among themselves the amenities of life may congregate into communities of their own, cultivating adjacent lands, as the French do in their agricultural villages. Wherever they may be, they must practise the civic virtues, honesty, and obedience to law. W. H. Councill, a negro teacher, of Huntsville, Alabama, said some years since in a magazine article: "When the gray-haired veterans who followed Lee and Jackson pass away, the negro will have lost his best friends." This is true, but it is hoped that time and culture, while not producing social equality, will allay race animosities and bring the negro other friends to take the place of the departing veterans.

The white man, with his pride of race, must more and more be made to feel that *noblesse oblige*. His sense of duty to others must measure up to his responsibilities and opportunities. He must accord to the negro all his rights under the laws as they exist.

The South is exerting itself to better its common schools, but it cannot compete in this regard with the North. Northern philanthropists are quite properly contributing to education in the South. They should consider well the needs of both races. Any attempt to give to the negroes advantages superior to those of the whites, who are now treating the negro fairly in this respect, might look like another attempt to put, in negro language, "the bottom rail on top."

Looking over the whole field covered by this sketch, it is wonderful to note how the chain of causation stretches back into the past. Reconstruction was a result of the war; secession and war resulted from a movement in the North, in 1831, against conditions then existing in the South. The negro, the cause of the old quarrel between the sections, is located now much as he was then. How full of lessons, for both the South and the North, is the history of the last eighty years!

There is even a chord that connects the burning of a negro at Coatesville, Pennsylvania, by an excited mob on the 13th of August, 1911, with the burning of the Federal Constitution at Framingham, Massachusetts, by that other excited mob of madmen, under Garrison, on the fourth day of July, 1854. One body of outlaws was defying the laws of Pennsylvania; the other was defying the fundamental laws of the nation.

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FOOTNOTES:

[1] Gladstone, "Kin Beyond the Sea."

[2] Warfield, in his "Kentucky Resolutions of 1798," relates that John Breckenridge introduced the Kentucky and John Taylor, of Caroline, moved the Virginia resolutions. In 1814 Taylor made it known that Madison was the author of the Virginia resolves, but not till 1821 did Jefferson admit his authorship of the Kentucky resolutions. Jefferson was Vice-President when they were drawn, and it would have been thought unseemly for him to appear openly in a canvass against the President, but by correspondence with his friends he "gradually drew out a program of action" (Warfield, p. 17). The Kentucky Resolutions were sent by the Governor to the Legislatures of the other States, ten of which, being controlled by the Federalists, are known to have declared against them (Warfield, p. 115). But of course the resolutions were canvassed by the public before the presidential election of 1800.

[3] Taylor was so deeply impressed by the conference, which was protracted, that two days later, May 11, 1794, he made an extended note of it which he sent to Mr. Madison. At the foot of his note Taylor says, among other things: "He (T.) is thoroughly convinced that the design to break up the Union is contemplated. The assurance, the manner, the earnestness, and the countenances with which the idea was uttered, all disclosed the most serious intention. It is also probable that K. (King) and E. (Ellsworth) having heard that T. (Taylor) was against the (adoption of) the Constitution have hence imbibed a mistaken opinion that he was secretly an enemy of the Union, and conceived that he was a fit instrument (as he was about retiring) to infuse notions into the anti-federal temper of Virginia, consonant to their views."—"Disunion Sentiment in the Congress in 1794" (with fac-simile of Taylor memorandum), by Gaillard Hunt, Editor of Writings of James Madison. Lowdermilk Co., Washington, D. C., 1905.

[4] C. F. Robertson, "The Louisiana Purchase," etc. "Papers of the American Association," vol. I, pp. 262, 263.

[5] "American State Documents and Federal Relations," p. 21.

- [6] Henry Cabot Lodge's "Webster," p. 176.
- [7] "Slavery and Anti-Slavery," 3d ed., 1885.
- [8] *Am. Archives*, 4th series, vol. I, p. 696.
- [9] *Ib.*, p. 1136.
- [10] *Ib.*, p. 735.
- [11] "State Documents on Federal Relations," Ames, pp. 203-4.
- [12] Ames, p. 203.
- [13] *Ib.*, p. 206.
- [14] Ames, 195.
- [15] See Garrison's "Garrison."
- [16] See article in *Independent*, 1906, Miss Mahony.
- [17] "Webster's Works," vol. V, pp. 366-67, 1851.
- [18] *Ib.*, ed. 1851, vol. V, pp. 266-67.
- [19] "The Negro Problem," Pickett, 1809.
- [20] Garrison's "Garrison," vol. I, p. 113.
- [21] George Ticknor Curtis's "Life of Buchanan," vol. II, p. 283.
- [22] Garrison's "Garrison," vol. I.
- [23] *Ib.*, Vol. II, p. 202.
- [24] Hart's "Slavery and Abolition," p. 163.
- [25] *Ib.*, pp. 217-20.
- [26] "Life of James Buchanan," George Ticknor Curtis, vol. II, pp. 277-78.
- [27] Referred to in "Life of Andrew Jackson," W. G. Sumner, p. 350.
- [28] Hart, *supra*.
- [29] The late Professor William Graham Sumner, of Yale, in his "Life of Andrew Jackson," 1888, treats of the excitement at Charleston, South Carolina, in 1835, during Jackson's administration, over Abolition circulars, etc. Dr. Albert Bushnell Hart, Professor of History at Harvard, in his "Abolition and Slavery," 1906, treats of the same subject. The following extracts from these books will show how these authors picture that exciting period, and our italics will emphasize the *sang-froid* with which they touch off what so profoundly affected public sentiment, both North and South, *when the events were occurring*. Professor Sumner has this to say:
- "The Abolition Society adopted the policy of sending documents, papers, and pictures against slavery to the Southern States.

"If the intention was, as charged, to excite the slaves to revolt, *the device, as it seems to us now*, must have fallen short of its object, for the chance that anything could get into the hands of the black man must *have been poor indeed*.

"These publications, however, caused *a panic and a wild indignation* in the South."—Sumner's "Jackson," p. 350.

Why should the Southerners of that day go *wild* over conduct for which the professor of this era has no word of condemnation?

Dr. Hart follows Professor Sumner's treatment. These are his words:

"The free negroes of the South, the Abolitionists could not reach except by *mailing publications to them*, a process which *fearfully exasperated* the South *without reaching the persons addressed*."—Hart's "Abolition and Slavery," p. 216.

Why should Southerners be "fearful" when they were intercepting all the dangerous circulars, etc., they could find? And why should they be exasperated at all?

Dr. Hart's chair at Harvard is within gunshot of Faneuil Hall, yet the great meeting there of August 31, 1835, is not mentioned in either his or Professor Sumner's book, nor is there to be found in either of them *any explanation of the reasons underlying the general and emphatic condemnation throughout the North at that period of the Abolitionists and their methods*.

[30] Garrison's "Garrison," vol. III, p. 412.

[31] "Slavery and the Domestic Slave Trade," Andrews, pp. 156-57.

[32] Within perhaps a year Mr. Lincoln was compelled to bring these negroes home; they were starving.

[33] "Channing's Works," vol. II, ed. 1837, pp. 131-32.

[34] Garrison's "Garrison," vol. III, p. 214.

[35] Hart's "Slavery and Abolition," p. 256.

[36] "Channing's Works," vol. II, ed. 1847, p. 237.

[37] "Life of Buchanan," vol. II, p. 280.

[38] Garrison's "Garrison," vol. III, p. 247.

[39] "The Middle Period," John W. Burgess, p. 274.

[40] "Notes on North America," London, 1851, vol. II, p. 486.

[41] "Parties and Slavery," Smith, pp. 3, 4.

[42] McMaster says: "The great statesman was behind the times."—"Webster," p. 19.

[43] "Vindication of Webster," William C. Wilkinson, p. 69.

- [44] McMaster's "Webster."
- [45] *Congressional Globe*, 31st Congress, 1st session, Appendix, p. 263.
- [46] "Vindication of Webster," William C. Wilkinson, p. 191.
- [47] McMaster's "Webster," p. 316 *et seq.*
- [48] Professor McMaster in the chapter preceding that containing these extracts, has collected much evidence to show that Webster aspired to be President, and the biographer entitles the chapter, "Longing for the Presidency," apparently the author's clod on the grave of a buried reputation.
- [49] *Ib.*, p. 160.
- [50] "Daniel Webster and the Sentiment of Union," John Fiske, "Essays Historical and Literary," pp. 408-9.
- [51] "Daniel Webster: A Vindication," p. 47.
- [52] McMaster's "Webster," p. 340.
- [53] *Ableman v. Boothe*, 21 How., 506.
- [54] Fite, "Presidential Campaign of 1860," p. 243.
- [55] "Parties and Slavery," Theodore Clarke Smith, professor of history in Williams College, p. 96.
- [56] "Rhodes," vol. I, p. 192.
- [57] Vol. I, p. 66.
- [58] Smith, "Parties and Slavery," pp. 118-20.
- [59] The writer's father, who had been a nullifier and a lifelong follower of Calhoun, joined the Know-Nothings in the hope of saving the Union, but withdrew when he found that in the North the party was not true to its Union pledges. Here was a typical case of Southern unwillingness to resort to secession.
- [60] *Ib.*, pp. 138-9.
- [61] Theodore Clarke Smith, "Parties and Slavery."
- [62] Garrison's "Garrison."
- [63] "The Negro and the Nation," George Spring Merriam, p. 120.
- [64] Sanborn's "Life of John Brown," p. 466.
- [65] *Ib.*, p. 515.
- [66] "History of United States," Rhodes, vol. I.
- [67] Channing.
- [68] Hart.
- [69] Theodore Clarke Smith, "Parties and Slavery," p. 303.

[70] For the humorous side of life in the South in the old day, see "Simon Suggs," J. J. Hooper; "Georgia Scenes," Judge Longstreet; and "Flush Times of Alabama and Mississippi," by Baldwin.

[71] "Memoirs of John H. Reagan," p. 261.

[72] Mr. Lincoln took that position in his great speech at Chicago, in 1858, when beginning his campaign for the senatorship.

[73] Lincoln, "Complete Works," vol. IV, p. 9.

[74] "Calhoun's Works," vol. VI, p. 311.

[75] *Independent*, 1906.

[76] Life and Letters and Journals of George Ticknor.

[77] "The Presidential Campaign of 1860," p. 195, Fite, 1911.

[78] "Virginia's Attitude on Slavery and Secession," Mumford, pp. 211-12.

[79] Alexander Johnston, "Lalor's Encyclopædia," vol. III, p. 163.

[80] *Ableman v. Booth*, 21 How.

[81] Alexander Johnston, "Lalor's Encyclopædia," vol. III, p. 707.

[82] "The Presidential Campaign of 1860," Emerson David Fite, 1911, introductory chapter.

[83] See Fite, "Campaign of 1860," *passim*, and especially speech of Schurz, p. 244 *et seq.*

[84] Mrs. Chestnut, wife of the Confederate general, James Chestnut, writes in her "Diary from Dixie," under date of 1861, at Montgomery, Alabama, then the Confederate capital: "In Mrs. Davis's drawing-room last night, the President took a seat by me on the sofa where I sat. He talked for nearly an hour. He laughed at our faith in our own powers. We are like the British. We think every Southerner equal to three Yankees at least. We will have to be equivalent to a dozen now. After his experience of the fighting qualities of Southerners in Mexico, he believes that we will do all that can be done by pluck and muscle, endurance and dogged courage, dash, and red-hot patriotism. And yet his tone was not sanguine. *There was a sad refrain running through it all.* For one thing, either way, he thinks it will be a long war. That floored me at once. It has been too long for me already. Then he said, before the end came we would have many bitter experiences. He said only fools doubted the courage of the Yankees, or their willingness to fight when they saw fit. And now that we have stung their pride, we have roused them till they will fight like devils."

[85] "Diary of Gideon Welles," 3 vols., *passim*.

[86] "Studies, Military and Diplomatic," p. 282 *et seq.* These studies make a volume of rare historic value.

[87] According to that standard work, E. P. Alexander's "Memoirs," pp. 244, 245, and 274, the Confederates, who stood their ground at Sharpsburg on the day of

battle and the day after, lost in killed and wounded thirty-two per cent. The French army at Waterloo entirely dissolved, with a loss in killed and wounded of only thirty-one per cent. (See figures in Henderson's "Stonewall Jackson.")

[88] Gideon Welles in an essay, "Lincoln and Johnson," *The Galaxy*, April, 1872.

[89] "John Sherman's Recollections," vol. I, p. 361.

[90] "Fifty Years of Public Service," Cullom, p. 146.

[91] The final estimate of Gideon Welles, Secretary of the Navy under both Lincoln and Johnson, is this: "He (Johnson) has been faithful to the Constitution, although his administrative capabilities and management may not equal some of his predecessors. Of measures he was a good judge but not always of men."—"Diary of Gideon Welles," vol. III, p. 556.

[92] "Jefferson's Works," vol. I, p. 48.

[93] "Why the Solid South," p. 20.

[94] Ogden's "Life and Letters of Edwin Lawrence Godkin," vol. II, p. 114.

[95] Pickett, pp. 399-400.

[96] "The Negro Problem," Pickett, 1909, pp. 399-400.

[97] "The Negro in the New World," Sir Harry Johnston, p. 478.

[98] *Ib.*, p. 470.

[99] "The Negro Problem," William Pickett, pp. 136-38. Rare Traits, etc., of the Negro, Statistician, Prudential Ins. Co. of America, p. 219 *et seq.*

[100] "Two Perils of the Indo-European," *The Open Court*, January 23, 1890, p. 2052.

Transcriber's note:

Hyphenation is inconsistent.

Obvious printer's errors have been corrected.

Page 49: 'Prior to the rise of the Abolitionists in 1831, emancipationists

in the South had been free to grapple with conditions as they found them.'

The words "in the" have been supplied by the transcriber.

Index reference to Johnston, Sir Harry: the transcriber has changed page 257 to read 237.

*** END OF THE PROJECT GUTENBERG EBOOK THE ABOLITION
CRUSADE AND ITS CONSEQUENCES: FOUR PERIODS OF
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